Smt. Velagapudi Durgamba Siddhartha School of Law

LL.B. (3 Year) Degree Programme – Year I, Semester I

LAW OF TORTS

Course Code: 26LLB104

Complete Academic Notes

General Principles, Defences, Vicarious Liability, Specific Torts, Negligence, Strict and Absolute Liability and Remedies

Units 1 – 5 • Every syllabus topic explained in detail

With definitions, explanations, examples, flowcharts, tables and landmark case laws

Criminal-law references are to the Bharatiya Nyaya Sanhita, 2023, with the old IPC sections in brackets

Syllabus Checklist (Unit-wise Topic List)

The table below lists every topic of the prescribed syllabus (Course Code 26LLB104) in the exact syllabus order (1.1 to 5.4). Where a syllabus line contains several sub-topics (for example, the eight general defences in 1.4), each is explained under its own side heading within that topic. Each topic begins on a fresh page.

Unit	No.	Topic (as in the syllabus)	Status
UNIT 1	1.1	Definition, Nature, Scope, and Objects of Torts: Prescribing standards of human conduct and redressal of wrongs.	Covered
	1.2	Core Concepts: The concept of unliquidated damages, distinction between tort, crime, and breach of contract; expanding character of duties.	Covered
	1.3	Foundations of Liability: Wrongful act, violation of duty in rem, damnum sine injuria, injuria sine damnum, and the place of motive in torts.	Covered
	1.4	General Defences: Volenti non fit injuria, necessity, plaintiff's default, Act of God, inevitable accident, private defense, statutory authority, and judicial/parental acts.	Covered
UNIT 2	2.1	Vicarious Liability: Basis, scope, and justification; express authorization, ratification, and abetment.	Covered
	2.2	Master and Servant Relationships: Arising out of and in the course of employment, the control test, borrowed servant, and distinguishing an independent contractor from a servant.	Covered
	2.3	Special Relationships & Immunity: Principal and agent, corporation and principal officer; Doctrine of sovereign immunity and its relevance in India.	Covered
	2.4	Extinguishments of Liability: Actio personalis moritur cum persona (and exceptions), waiver and acquiescence, release, accord and satisfaction, and limitation.	Covered
UNIT 3	3.1	Torts affecting the body: Assault, battery, mayhem, and false imprisonment.	Covered
	3.2	Defamation: Libel, slander, and the law relating to privileges.	Covered
	3.3	Mental and Legal Harms: Malicious prosecution, shortened expectation of life, and nervous shock.	Covered
	3.4	Interference with Relations: Torts affecting marital relations, domestic relations, parental relations, and master-servant relations.	Covered
UNIT 4	4.1	Torts against Immovable Property: Trespass to land, trespass ab initio, and dispossession.	Covered
	4.2	Torts against Movable Property: Trespass to goods, detinue, and conversion.	Covered
	4.3	Torts against Business Interests: Injurious falsehood, misstatements, and passing off.	Covered
	4.4	Nuisance: Definition, essentials, and types; Acts constituting nuisance (obstructions of highways, interference with light and air, pollution of air, water, and noise).	Covered
UNIT 5	5.1	Negligence: Basic concepts, theories, standards of care, and the doctrine of contributory negligence.	Covered
	5.2	Evidentiary Rules & Specific Negligence: Res ipsa loquitur, professional liability, liability of common carriers, and product liability of manufacturers.	Covered
	5.3	Absolute and Strict Liability: The rule in Rylands v. Fletcher and liability for harm caused by inherently dangerous industries.	Covered

Unit	No.	Topic (as in the syllabus)	Status
	5.4	Legal Remedies: Award of damages (simple, special, punitive), remoteness of damage (foreseeability and directness), injunction, specific restitution, and extra-legal remedies (self-help, re-entry, distress damage feasant, and abetment of nuisance).	Covered

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UNIT 1
Introduction and Principles of Liability

Topics in this Unit

1.1 Definition, Nature, Scope, and Objects of Torts: Prescribing standards of human conduct and redressal of wrongs.

1.2 Core Concepts: The concept of unliquidated damages, distinction between tort, crime, and breach of contract; expanding character of duties.

1.3 Foundations of Liability: Wrongful act, violation of duty in rem, damnum sine injuria, injuria sine damnum, and the place of motive in torts.

1.4 General Defences: Volenti non fit injuria, necessity, plaintiff's default, Act of God, inevitable accident, private defense, statutory authority, and judicial/parental acts.

Topic 1.1: Definition, Nature, Scope, and Objects of Torts: Prescribing standards of human conduct and redressal of wrongs.

Introduction

The word **"tort"** comes from the Latin *tortum*, meaning "twisted" or "crooked", and from the French word *tort*, meaning "wrong". In law, a tort is a **civil wrong** for which the remedy is an action for **unliquidated damages**. The law of torts protects a person's interests in his body, reputation, property, liberty and relations against wrongful interference by others. It tells people how they must behave towards one another, and it gives compensation when someone is harmed by another's wrongful conduct.

In India, the law of torts is **largely uncodified**. It is based mainly on English common law, which Indian courts have applied on the principle of "justice, equity and good conscience", modified to suit Indian conditions. Some parts are found in statutes such as the Fatal Accidents Act, 1855, the Limitation Act, 1963, the Consumer Protection Act, 2019 and the Motor Vehicles Act, 1988.

Definition

> **Salmond:** "A tort is a civil wrong for which the remedy is a common law action for unliquidated damages, and which is not exclusively the breach of a contract or the breach of a trust or other merely equitable obligation."

> **Winfield:** "Tortious liability arises from the breach of a duty primarily fixed by law; this duty is towards persons generally and its breach is redressible by an action for unliquidated damages."

> **Section 2(m), Limitation Act, 1963:** "'Tort' means a civil wrong which is not exclusively a breach of contract or breach of trust."

> **Fraser:** "A tort is an infringement of a right in rem of a private individual giving a right of compensation at the suit of the injured party."

Detailed Explanation

1. Analysis of the Definitions

From these definitions, the essential features of a tort are:

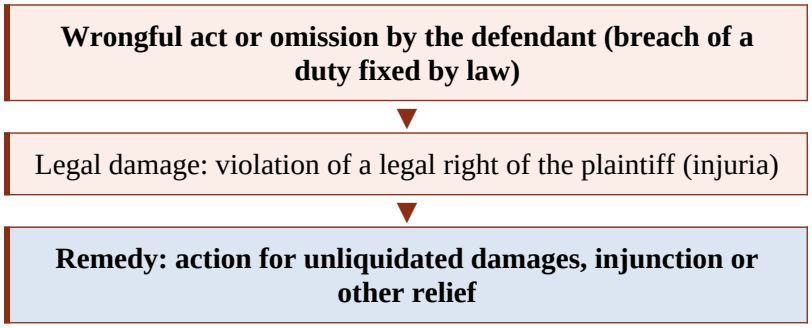
1. **It is a civil wrong.** It is not a crime (although the same act may also be a crime), and the proceedings are civil.
2. **It is not exclusively a breach of contract or trust.** If the wrong is only a breach of contract or only a breach of trust, it is not a tort.
3. **The duty is fixed by law**, not by agreement of the parties.

4. **The duty is owed to persons generally** (a duty *in rem*), not to a particular person.
5. **The remedy is unliquidated damages**, i.e. damages fixed by the court, not agreed in advance by the parties. Other remedies such as injunction are also available.

2. Essentials of a Tort

1. **A wrongful act or omission** by the defendant.
2. **Legal damage** to the plaintiff, i.e. violation of a legal right of the plaintiff (*injuria*).
3. **The act must give rise to a legal remedy**, i.e. an action for unliquidated damages (*ubi jus ibi remedium*: where there is a right, there is a remedy).

Flowchart: Essentials of tortious liability



3. Nature of Tort: "Law of Tort" or "Law of Torts"?

There are two theories about the nature of tortious liability:

Theory	Supported by	Meaning
General principle theory ("Law of Tort")	Winfield	All harm caused to another without just cause is a tort, unless the defendant can justify it. The law can recognise new torts.
Pigeon-hole theory ("Law of Torts")	Salmond	There is only a fixed set of specific torts (assault, defamation, nuisance, etc.), like pigeon-holes. If a wrong does not fit any pigeon-hole, there is no tort.

Modern law takes a middle path. Courts have created new torts (e.g. negligence as an independent tort in *Donoghue v Stevenson*, 1932; constitutional torts in India), which supports Winfield. But courts do not treat every harm as a tort (e.g. *damnum sine injuria*), which supports Salmond in part.

4. Scope of the Law of Torts

The law of torts covers the protection of many interests:

Interest protected	Torts
Body and personal liberty	Assault, battery, false imprisonment, negligence causing injury
Reputation	Defamation (libel and slander)
Property	Trespass to land and goods, conversion, detinue, nuisance
Mind and emotions	Nervous shock

Interest protected	Torts
Family and other relations	Loss of consortium, loss of services
Business and economic interests	Passing off, injurious falsehood, negligent misstatement, inducing breach of contract
Legal process	Malicious prosecution, abuse of process
Public and environmental safety	Strict and absolute liability, public nuisance, environmental torts
Rights against the State	Constitutional torts (compensation for violation of fundamental rights)

5. Objects (Functions) of the Law of Torts

1. **Prescribing standards of human conduct:** the law of torts tells people what conduct is expected of them, e.g. to take reasonable care while driving, not to defame others, not to trespass on others' land. This is the **deterrent** or **regulatory** function.
2. **Redressal of wrongs (compensation):** the main object is to compensate the injured person, putting him, as far as money can, in the position he would have been in if the tort had not been committed (*restitutio in integrum*).
3. **Prevention of harm:** remedies such as injunctions prevent the continuance or repetition of wrongs (e.g. an injunction against a nuisance).
4. **Distribution of loss:** through vicarious liability and insurance, the loss is spread over those best able to bear it (employers, companies, insurers).
5. **Vindication of rights:** even where there is no actual loss, the law recognises the violation of a right (e.g. nominal damages in trespass).
6. **Appeasement and justice:** the law provides a peaceful remedy so that injured persons do not take revenge.

6. Development of the Law of Torts in India

1. The law of torts in India developed through judicial decisions rather than legislation. A *Civil Wrongs Bill* drafted by Sir Frederick Pollock (1886) was never enacted.
2. Indian courts apply English principles only so far as they are suitable to Indian conditions.
3. Indian courts have also developed new principles, such as **absolute liability** (*M.C. Mehta v Union of India*, 1987) and **constitutional torts** (*Rudul Sah*, 1983; *Nilabati Behera*, 1993).
4. Tort litigation in India has been less common than in England because of delays, costs and lack of awareness; but motor accident claims, consumer cases and public law compensation have increased its importance.

Examples

- A drives his car carelessly and injures B, a pedestrian. A has breached the duty of care that the law imposes on all drivers, and B can claim unliquidated damages for negligence.
- A publishes a false statement in a newspaper that B, a doctor, is a cheat. B can sue A for defamation, as his right to reputation has been violated.

- A builds a factory that emits poisonous smoke, harming the crops of neighbouring farmers. The farmers can sue for nuisance and seek an injunction.

Case Laws

Case Law: Jay Laxmi Salt Works (P) Ltd v State of Gujarat

Year: 1994 **Court:** Supreme Court of India

Facts / Background: The State of Gujarat constructed a reclamation bund (embankment) to prevent the ingress of sea water. Because of defects in its planning and construction, the bund caused water to flood the salt works of the appellant during heavy rains, destroying its salt. The appellant claimed damages. (Facts summarised briefly.)

Legal Issue: Was the State liable in tort for the loss caused by the faulty construction of the bund, and what is the nature of tortious liability?

Court's Decision / What the Court Held: The Supreme Court held the State liable for negligence, since it had failed to take the care that a reasonable person would take in planning and constructing the bund. In its judgment, the Court discussed the nature and scope of the law of torts, observing that the law of torts is a developing area, and that its boundaries are expanding to protect persons from harm caused by the wrongful conduct of others.

Relevance to the Topic: The case shows that tortious liability arises from the breach of a duty fixed by law, and that the law of torts is flexible and developing.

Important Points

- Tort means a civil wrong that is not exclusively a breach of contract or trust (s.2(m), Limitation Act, 1963).
- The remedy is an action for unliquidated damages.
- Essentials: wrongful act, legal damage (injuria) and legal remedy.
- Winfield (general principle, "law of tort") v Salmond (pigeon-hole, "law of torts").
- Objects: prescribing standards of conduct, compensation, prevention, loss distribution, vindication of rights.
- The law of torts in India is largely uncodified and based on English common law, adapted to Indian conditions.

Remember: The maxim *ubi jus ibi remedium* (where there is a right, there is a remedy) is the foundation of the law of torts.

Topic 1.2: Core Concepts: The concept of unliquidated damages, distinction between tort, crime, and breach of contract; expanding character of duties.

Introduction

Three core ideas help us understand what makes a tort different from other wrongs. First, the remedy in tort is **unliquidated damages**. Second, a tort must be distinguished from a **crime** and from a **breach of contract**, although the same act may sometimes be all three. Third, the duties recognised by the law of torts are **not fixed**; they keep expanding as society changes.

Definition

> **Liquidated damages:** a sum of money fixed in advance by the parties (for example, in a contract) as the amount payable on breach.

> **Unliquidated damages:** a sum of money that is not fixed in advance but is assessed by the court according to the loss suffered and the circumstances of the case.

Detailed Explanation

1. The Concept of Unliquidated Damages

1. In tort, the parties have no prior agreement about the amount of compensation, because the duty arises by law, not by agreement.
2. The court assesses the damages after considering the nature of the injury, the loss suffered, the conduct of the parties and other circumstances.
3. Unliquidated damages distinguish tort from:
   - a claim for a **liquidated sum** (e.g. a debt, or a fixed sum under a contract);
   - a breach of trust, where the remedy is an account or equitable compensation.
4. Damages may be **nominal** (where a right is violated but no loss is caused), **compensatory** (for actual loss), **aggravated** (for injury to feelings) or **exemplary** (to punish). These are discussed in Topic 5.4.

2. Distinction between Tort and Crime

Basis	Tort	Crime
Nature of wrong	Private wrong: infringement of private (civil) rights of an individual	Public wrong: a wrong against society as a whole
Parties	The injured person (plaintiff) sues the wrongdoer (defendant)	The State prosecutes the accused
Object	Compensation of the injured person	Punishment of the offender and protection of society
Remedy	Unliquidated damages, injunction, etc.	Imprisonment, fine, death penalty, etc.

Basis	Tort	Crime
Law	Largely uncodified (judge-made law)	Codified: Bharatiya Nyaya Sanhita, 2023 (formerly IPC) and special laws
Procedure	Civil procedure (Code of Civil Procedure, 1908)	Criminal procedure (BNSS, 2023, formerly CrPC)
Standard of proof	Preponderance of probabilities	Proof beyond reasonable doubt
Compromise	The plaintiff can settle or withdraw the case freely	Only compoundable offences can be compounded
Intention	Generally not essential (e.g. negligence, strict liability)	*Mens rea* (guilty mind) is generally essential
Death of the party	The action may abate on death (actio personalis rule, with exceptions)	Prosecution generally ends on the death of the accused

Overlap: the same act may be both a tort and a crime, e.g. assault, defamation, public nuisance, wrongful confinement. In such cases, both civil and criminal proceedings can be taken. For example, defamation is a tort and also an offence under s.356 BNS (ss.499–500 IPC); assault is a tort and also an offence under s.130 BNS (s.351 IPC).

3. Distinction between Tort and Breach of Contract

Basis	Tort	Breach of Contract
Source of duty	Duty fixed by law	Duty fixed by the agreement of the parties
To whom owed	Persons generally (duty in rem)	A specific person or persons (duty in personam)
Consent	Duty exists without consent	Duty arises from consent (offer and acceptance)
Privity	Not required	Privity of contract is required (with exceptions)
Damages	Unliquidated	May be liquidated or unliquidated
Object of damages	Restore the plaintiff to the position before the tort	Put the plaintiff in the position as if the contract had been performed
Motive	Sometimes relevant (e.g. malicious prosecution)	Generally irrelevant
Exemplary damages	May be awarded in some cases	Generally not awarded (except in limited cases such as breach of promise to marry)
Limitation	Varies (often one year for personal torts; three years residuary)	Generally three years

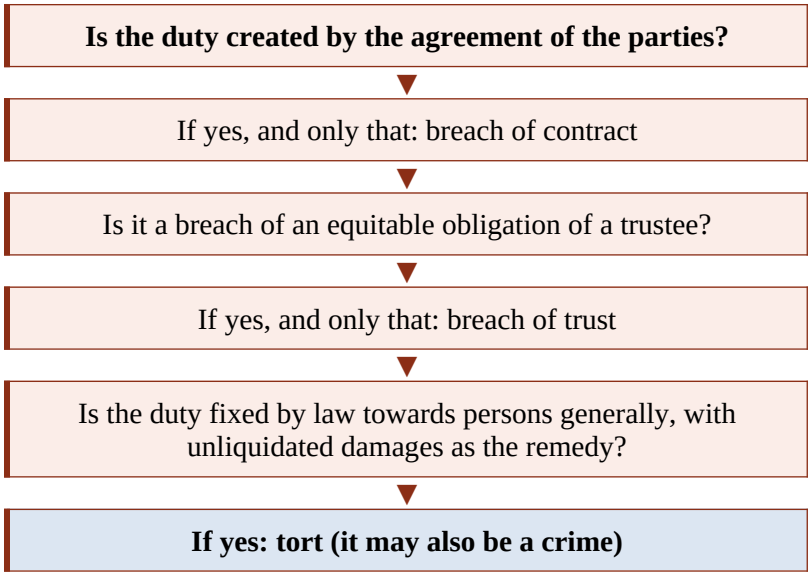
Overlap: the same act may be both a breach of contract and a tort. For example, a doctor who negligently treats a patient may be liable for breach of contract and also for the tort of

negligence. In *Donoghue v Stevenson* (1932), the absence of a contract between the consumer and the manufacturer did not prevent liability in tort.

4. Distinction between Tort and Breach of Trust

1. A breach of trust is a wrong recognised by equity, where a trustee fails to perform his duties.
2. The remedy is an account or equitable compensation, which is a liquidated sum.
3. A breach of trust is not a tort, unless it also involves a tortious act.

Flowchart: Classifying a civil wrong



5. Expanding Character of Duties

1. The law of torts is **dynamic**. As society, technology and industry develop, new duties are recognised.
2. **Examples of expansion:**
   - **Negligence** was recognised as an independent tort with a general duty of care towards "neighbours" (*Donoghue v Stevenson*, 1932).
   - **Negligent misstatement** causing economic loss became actionable (*Hedley Byrne v Heller*, 1964).
   - **Absolute liability** for hazardous industries (*M.C. Mehta v Union of India*, 1987).
   - **Constitutional torts**: compensation for violation of fundamental rights by the State (*Rudul Sah v State of Bihar*, 1983; *Nilabati Behera v State of Orissa*, 1993).
   - **Environmental torts** and the polluter pays principle (*Indian Council for Enviro-Legal Action v Union of India*, 1996).
   - **Privacy**: recognised as a fundamental right in *K.S. Puttaswamy v Union of India* (2017), with consequences for tortious claims for misuse of private information.
   - **Product liability** codified in the Consumer Protection Act, 2019.
   - **Medical negligence** and consumer remedies (*Indian Medical Association v V.P. Shantha*, 1995).

3. Lord Macmillan said in *Donoghue v Stevenson*: "The categories of negligence are never closed."

Examples

- A dishonest employee steals money from his employer. This is a crime (theft), a tort (conversion) and a breach of his contract of employment.
- A bus company's driver drives negligently and injures a passenger. The passenger can sue in contract (breach of the implied term to carry safely) or in tort (negligence).

Case Laws

Case Law: Rudul Sah v State of Bihar

Year: 1983 **Court:** Supreme Court of India

Facts / Background: Rudul Sah was acquitted by a Sessions Court in 1968, but was kept in jail for more than 14 years after his acquittal, until 1982. He filed a writ petition under Article 32 for his release and for compensation.

Legal Issue: Can the Supreme Court award compensation in a writ petition for the violation of the fundamental right to life and personal liberty under Article 21?

Court's Decision / What the Court Held: The Court held that Article 21 would be denuded of its significant content if the power of the Court were limited to passing orders of release from illegal detention. It ordered the State of Bihar to pay Rs. 30,000 as interim compensation, in addition to the Rs. 5,000 already paid, without prejudice to his right to file a civil suit for damages.

Relevance to the Topic: The case marks the beginning of **constitutional torts** in India and illustrates the expanding character of duties in the law of torts.

Important Points

- Unliquidated damages are fixed by the court, not by the parties.
- Tort is a private wrong (compensation); crime is a public wrong (punishment).
- Tort involves a duty fixed by law towards persons generally; contract involves a duty fixed by agreement towards specific persons.
- The same act may be a tort, a crime and a breach of contract.
- The duties in tort keep expanding: negligence, misstatement, absolute liability, constitutional torts, environmental torts, product liability.

Remember: "The categories of negligence are never closed" (Lord Macmillan).

Topic 1.3: Foundations of Liability: Wrongful act, violation of duty in rem, damnum sine injuria, injuria sine damnum, and the place of motive in torts.

Introduction

Tortious liability rests on certain foundations. There must be a **wrongful act** by the defendant, which violates a **legal right** of the plaintiff and a **legal duty** owed by the defendant to persons generally. The law looks at whether a legal right has been violated, not merely at whether loss has been caused. This gives rise to two important maxims: **damnum sine injuria** (damage without legal injury, not actionable) and **injuria sine damnum** (legal injury without damage, actionable). The motive of the defendant is generally irrelevant.

Definition

> **Damnum:** actual damage or loss (of money, comfort, health, etc.).

> **Injuria:** the infringement of a legal right of a person.

> **Damnum sine injuria:** damage without the infringement of a legal right. It is **not actionable**.

> **Injuria sine damnum:** infringement of a legal right without actual damage. It is **actionable**.

Detailed Explanation

1. Wrongful Act

1. A wrongful act is an act or omission that the law regards as a violation of the rights of another person.
2. An **act** includes a positive act (e.g. hitting someone) or an **omission** (e.g. failure to repair a dangerous building that one has a duty to repair).
3. An omission is a tort only when there is a legal duty to act.
4. The act must be one that is legally wrongful; a morally wrongful act is not necessarily a tort (e.g. failing to save a drowning stranger is not a tort in general).
5. **Legally wrongful act** = an act that violates a legal right of another, without legal justification.

2. Violation of Duty in Rem

1. In tort, the defendant's duty is owed to **persons generally** (a duty *in rem*), unlike a contract, where it is owed to a particular person.

2. Every person has a right *in rem* to the safety of his body, reputation and property, and everyone else has a corresponding duty not to violate it.
3. Example: the duty not to defame applies towards everyone; the duty of a driver to take care applies towards all road users.

3. Legal Damage

1. The plaintiff must prove **legal damage**, i.e. the violation of a legal right (*injuria*).
2. Actual damage (*damnum*) is neither necessary nor sufficient by itself.
3. The two maxims below explain this principle.

4. Damnum Sine Injuria (Damage without Injury)

1. **Meaning:** a person suffers actual loss, but no legal right of his is violated. There is no remedy.
2. **Reason:** every person has the right to use his property and conduct his lawful business, even if it causes loss to others. The law cannot give a remedy for every loss.
3. **Examples:**
   - A opens a school next to B's school and charges lower fees. B loses students. No action lies (*Gloucester Grammar School Case*, 1410).
   - Lawful competition in trade causing loss to rivals (*Mogul Steamship Co v McGregor, Gow & Co*, 1892).
   - Digging on one's own land, which cuts off underground water flowing to a neighbour's land (*Mayor of Bradford v Pickles*, 1895).
   - Exercising the right of free speech in a non-defamatory manner, even if it causes loss.

5. Injuria Sine Damnum (Injury without Damage)

1. **Meaning:** a legal right of a person is violated, even though he has suffered no actual loss. He can sue.
2. **Reason:** the law protects rights themselves. Some rights are **absolute**, and their violation is actionable *per se* (without proof of damage).
3. **Torts actionable per se:** trespass to land, trespass to the person (assault, battery, false imprisonment), libel, and slander in certain cases.
4. **Examples:**
   - A walks across B's land without permission, causing no damage. B can sue for trespass.
   - A returning officer wrongfully refuses to accept a qualified voter's vote, even though the candidate he wished to vote for wins (*Ashby v White*, 1703).
   - Wrongful arrest and detention of an MLA to prevent him from attending the Assembly (*Bhim Singh v State of J&K*, 1985).

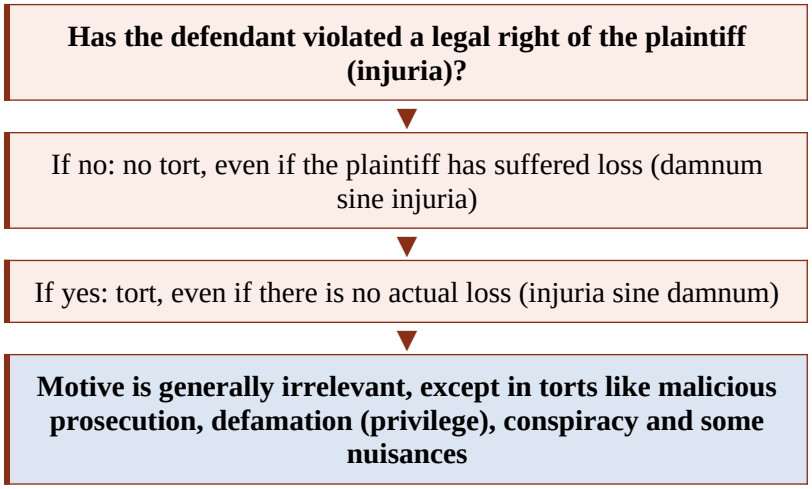
Basis	Damnum sine injuria	Injuria sine damnum
Meaning	Damage without violation of a legal right	Violation of a legal right without damage
Actionable?	No	Yes

Basis	Damnum sine injuria	Injuria sine damnum
Legal right violated?	No	Yes
Actual loss?	Yes	Not necessary
Remedy	None	Damages (at least nominal)
Leading cases	*Gloucester Grammar School* (1410), *Mayor of Bradford v Pickles* (1895)	*Ashby v White* (1703), *Bhim Singh* (1985)

6. Place of Motive in Torts

1. **Motive** is the ulterior reason or purpose for doing an act. **Intention** is the desire to bring about the consequences of the act.
2. **General rule:** motive is irrelevant in the law of torts. A lawful act does not become unlawful because of a bad motive, and an unlawful act does not become lawful because of a good motive.
3. **Mayor of Bradford v Pickles (1895):** even if the defendant acted maliciously, his act was lawful; malice did not make it a tort.
4. **Exceptions (where motive or malice is relevant):**
   - **Malicious prosecution:** malice is an essential element.
   - **Defamation:** malice defeats the defences of qualified privilege and fair comment.
   - **Conspiracy:** the purpose of the combination is relevant.
   - **Nuisance:** in some cases, a malicious purpose may make an otherwise reasonable act unreasonable (e.g. *Christie v Davey*, 1893, where a neighbour made noise deliberately to annoy; and *Hollywood Silver Fox Farm v Emmett*, 1936, where guns were fired to disturb breeding foxes).
   - **Injurious falsehood:** malice is required.
   - **Exemplary damages:** malice may increase the damages.
5. **Malice in law and malice in fact:**
   - *Malice in law* means doing a wrongful act intentionally without just cause or excuse.
   - *Malice in fact* (actual malice) means an improper motive, such as ill will or spite.

Flowchart: Is the plaintiff's claim actionable?



Examples

- A opens a cinema next to B's cinema, attracting B's customers. B's loss is damnum sine injuria.
- A police officer wrongfully detains C for two hours and releases him. Even though C suffers no monetary loss, he can sue for false imprisonment (injuria sine damnum).

Case Laws

Case Law: Ashby v White

Year: 1703 **Court:** Court of King's Bench / House of Lords (England)

Facts / Background: The plaintiff, a qualified voter, was wrongfully prevented from voting by the defendant, a returning officer. The candidate whom the plaintiff wished to support won the election anyway, so the plaintiff suffered no actual loss.

Legal Issue: Can a person sue for the violation of his legal right to vote when he has suffered no damage?

Court's Decision / What the Court Held: The plaintiff was held entitled to damages. Holt C.J., whose dissenting opinion in the King's Bench was upheld by the House of Lords, said that if a plaintiff has a right, he must have a means to vindicate and maintain it, and a remedy if he is injured in its exercise; every injury imports a damage, even if it does not cost the party a penny.

Relevance to the Topic: The leading case on **injuria sine damnum** and the maxim *ubi jus ibi remedium*.

Case Law: Gloucester Grammar School Case (Hamlyn v More)

Year: 1410 **Court:** Court of Common Pleas (England)

Facts / Background: The defendant, a schoolmaster, set up a rival school next to the plaintiff's school. Because of the competition, the plaintiff had to reduce his fees from 40 pence to 12 pence per student per quarter.

Legal Issue: Can the plaintiff recover damages for the loss caused by the lawful competition of the defendant?

Court's Decision / What the Court Held: The Court held that no action lay, since the defendant had a lawful right to open a school, and loss caused by lawful competition is not a legal injury.

Relevance to the Topic: The leading case on **damnum sine injuria**.

Case Law: Mayor of Bradford v Pickles

Year: 1895 **Court:** House of Lords (England)

Facts / Background: The defendant dug on his own land, which cut off and discoloured underground water percolating to the plaintiffs' (the Corporation's) reservoir. His purpose was to force the Corporation to buy his land at a high price.

Legal Issue: Is the defendant liable because of his malicious motive in doing an act that was otherwise lawful?

Court's Decision / What the Court Held: The House of Lords held that the defendant was not liable. He had a legal right to dig on his own land, and the water percolating underground was not the subject of property. Lord Halsbury held that if it was a lawful act, however ill the motive might be, he had a right to do it.

Relevance to the Topic: The leading case that **motive is irrelevant** in torts, and an example of damnum sine injuria.

Case Law: Bhim Singh v State of Jammu and Kashmir

Year: 1985 **Court:** Supreme Court of India

Facts / Background: Bhim Singh, a Member of the Legislative Assembly of Jammu and Kashmir, was wrongfully arrested and detained by the police with mala fide intention to prevent him from attending a session of the Assembly. He was not produced before a Magistrate within the required time.

Legal Issue: Is the State liable to compensate a person for illegal detention, even after he is released?

Court's Decision / What the Court Held: The Court held that his fundamental rights under Articles 21 and 22(2) had been violated, and awarded Rs. 50,000 as compensation against the State.

Relevance to the Topic: An Indian example of **injuria sine damnum** and constitutional tort: violation of the right to liberty is compensated even without proof of financial loss.

Important Points

- Tortious liability needs a wrongful act and legal damage (injuria).
- Duty in tort is a duty in rem, owed to persons generally.
- Damnum sine injuria is not actionable (*Gloucester Grammar School*, *Bradford v Pickles*).
- Injuria sine damnum is actionable (*Ashby v White*, *Bhim Singh*).
- Torts actionable per se: trespass, assault, battery, false imprisonment, libel.
- Motive is generally irrelevant (*Bradford v Pickles*); exceptions: malicious prosecution, defamation, conspiracy, some nuisances, injurious falsehood.

Remember: The test is the violation of a legal right, not the existence of loss.

Topic 1.4: General Defences: Volenti non fit injuria, necessity, plaintiff's default, Act of God, inevitable accident, private defense, statutory authority, and judicial/parental acts.

Introduction

When the plaintiff proves the essentials of a tort, the defendant may still escape liability by proving a **defence**. The defences that apply to most torts are called **general defences** (or "justifications" or "general exceptions"). Some torts have their own special defences (e.g. truth and privilege in defamation). This topic explains the general defences listed in the syllabus.

Definition

> A **general defence** is a legal justification or excuse that the defendant may plead to avoid liability for an act that would otherwise be a tort.

Detailed Explanation

1. Overview of General Defences

Defence	Basic idea
Volenti non fit injuria	The plaintiff consented to the risk of harm
Necessity	The act was done to prevent greater harm
Plaintiff's default (the plaintiff the wrongdoer; contributory negligence)	The plaintiff's own wrongful act or fault caused the harm
Act of God (vis major)	Harm caused by extraordinary natural forces that could not be foreseen or prevented
Inevitable accident	Harm that could not be avoided by reasonable care
Private defence	Reasonable force used to protect person or property
Statutory authority	The act was authorised by a statute
Judicial and parental (quasi-judicial) acts	Acts done by judges or persons in authority, such as parents and teachers, in exercise of their powers

2. Volenti Non Fit Injuria (Consent)

1. **Meaning:** "to a willing person, no injury is done". If the plaintiff voluntarily consents to suffer harm or to run the risk of harm, he cannot sue.
2. **Express or implied consent:** consent may be express (e.g. signing a consent form for surgery) or implied from conduct (e.g. a spectator at a cricket match accepts the risk of being hit by the ball).
3. **Essentials:**
   - The plaintiff had **knowledge** of the risk.
   - The plaintiff **voluntarily agreed** to bear the risk.

4. **Knowledge is not consent (scienti non fit injuria is not the rule):** mere knowledge of the risk is not enough; the plaintiff must have freely agreed to bear it (*Smith v Baker*, 1891).
5. **Limitations:**
   - Consent must be **free**, not obtained by fraud or compulsion.
   - Consent to one act is not consent to a different or more serious act.
   - Consent is not a defence to negligence beyond the risks consented to.
   - **Rescue cases:** a person who is injured while trying to rescue another from danger created by the defendant is not treated as having consented (*Haynes v Harwood*, 1935).
   - **Unfair Contract Terms**: in England, the Unfair Contract Terms Act, 1977 restricts exclusion of liability for negligence causing death or personal injury.
   - Consent is no defence to an illegal act (*ex turpi causa*).

3. Necessity

1. **Meaning:** an act causing harm is justified if done to **prevent greater harm** to the public or to the defendant or a third person.
2. **Essentials:**
   - There was an imminent danger.
   - The act was reasonably necessary to prevent the danger.
   - The harm caused was not out of proportion to the harm prevented.
3. **Examples:** pulling down a house to stop a fire from spreading; destroying a ship's cargo to save the ship in a storm; force-feeding a prisoner on hunger strike to save her life (*Leigh v Gladstone*, 1909); a doctor operating on an unconscious patient in an emergency.
4. **Necessity v private defence:** in necessity, harm is caused to an innocent person; in private defence, it is caused to a wrongdoer.

4. Plaintiff's Default (Plaintiff the Wrongdoer and Contributory Negligence)

1. **Ex turpi causa non oritur actio:** no action arises from a base (illegal) cause. A plaintiff who is himself engaged in an illegal act at the time of the harm may be denied a remedy, but this is not an absolute rule; the harm must be closely connected with the illegal act.
2. **Bird v Holbrook (1828)** shows the limits: the defendant set a spring-gun in his garden without notice; the plaintiff, a trespasser, was injured. The defendant was held liable, despite the plaintiff's trespass.
3. **Contributory negligence:** where the plaintiff's own negligence contributed to his injury, the damages are reduced in proportion to his share of fault (apportionment). This is explained in Topic 5.1.
4. **Plaintiff's sole fault:** if the harm is caused entirely by the plaintiff's own fault, the defendant is not liable.

5. Act of God (Vis Major)

1. **Meaning:** an event caused by **natural forces** (without human intervention) that is so extraordinary that it could not have been foreseen and its effects could not have been prevented by reasonable care.
2. **Essentials:**
   - The event was due to natural forces (e.g. extraordinary rainfall, storm, earthquake, lightning, tidal wave).
   - The event was so extraordinary that it could not be anticipated or guarded against.
3. **Examples:** an extraordinary rainfall causing artificial lakes to burst (*Nichols v Marsland*, 1876); a sudden cyclone causing a wall to fall.
4. **Not an Act of God:** heavy rainfall that is normal for the season (e.g. monsoon rains in India) is not an Act of God. In *Ramalinga Nadar v Narayana Reddiar* (Kerala High Court, 1971), it was observed that the act of a mob is not an Act of God, because it involves human agency.
5. **Relevance to strict liability:** Act of God is a defence to the rule in *Rylands v Fletcher*, but not to absolute liability under *M.C. Mehta*.

6. Inevitable Accident

1. **Meaning:** an accident that could not have been prevented by the exercise of **ordinary care, caution and skill** by the defendant.
2. Unlike Act of God, it does not require natural forces; it may involve human activity.
3. **Essentials:**
   - The defendant did not intend the harm.
   - The defendant took all reasonable care, and the harm could not have been avoided.
4. **Examples:** a bullet fired at a pheasant glances off a tree and injures a person (*Stanley v Powell*, 1891); a vehicle's axle suddenly breaks, despite proper maintenance (*Padmavati v Dugganaika*, Karnataka High Court, 1975, where the plaintiffs' injuries after jumping from a jeep whose axle broke were held to be the result of an inevitable accident).
5. **Note:** in negligence, proof that the defendant took reasonable care means he is not negligent anyway; so this defence is mainly important in torts of strict liability and trespass.

Basis	Act of God	Inevitable accident
Cause	Natural forces only	May involve human agency
Foreseeability	Extraordinary and unforeseeable	Could not be avoided by reasonable care
Example	Extraordinary storm, earthquake	Sudden mechanical failure despite care

7. Private Defence

1. **Meaning:** a person is justified in using **reasonable force** to protect his own person or property, or that of another, against an unlawful attack.
2. **Essentials:**
   - There must be an imminent threat of unlawful harm.

- The force used must be **reasonable and proportionate** to the threat.
- The force must be used for defence, not for revenge or punishment.

3. **Defence of property:** a person may take reasonable measures to protect property (e.g. fixing broken glass on a wall), but measures that cause serious injury without warning (e.g. spring-guns) are excessive (*Bird v Holbrook*, 1828).
4. **Criminal law parallel:** the right of private defence is recognised in ss.34–44 of the Bharatiya Nyaya Sanhita, 2023 (formerly ss.96–106 IPC).
5. *Collins v Renison* (1754): pushing a person off a ladder to remove him was held excessive.

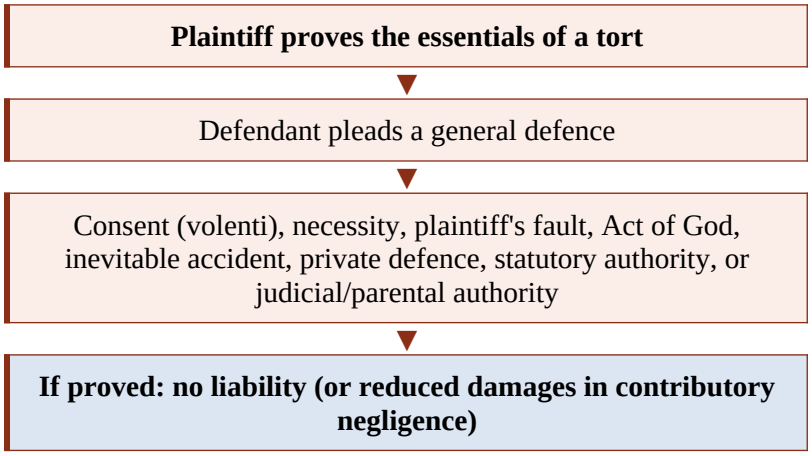
8. Statutory Authority

1. **Meaning:** an act authorised by a statute is not actionable, even if it causes harm, provided it is done **without negligence** and within the limits of the authority.
2. **Absolute and conditional authority:**
   - **Absolute authority:** the statute authorises the act notwithstanding any nuisance or injury; no liability arises for necessary harm, though compensation may be provided by the statute.
   - **Conditional authority:** the act may be done only if it does not cause nuisance or injury to others.
3. **Limits:** the defence does not cover harm caused by negligence or by acts beyond the statutory powers.
4. **Example:** a railway authorised by statute to run trains is not liable for damage caused by sparks from engines, if it has taken all reasonable care (*Vaughan v Taff Vale Railway Co,* 1860).
5. *Smith v London and South Western Railway* (1870): where there was negligence (dry grass left near the line), the railway was liable.

9. Judicial and Parental (Quasi-Judicial) Acts

1. **Judicial acts:** judges and magistrates are not liable in tort for acts done in the exercise of their judicial functions, even if they act wrongly, provided they act in good faith within their jurisdiction. In India, this is provided by the **Judicial Officers' Protection Act, 1850** and the **Judges (Protection) Act, 1985**.
2. **Executive officers** acting in good faith under a judicial order are also protected.
3. **Quasi-judicial acts:** bodies such as university authorities, disciplinary committees and club committees are protected when they act in good faith and follow natural justice.
4. **Parental and quasi-parental authority:** parents, guardians and teachers may use **reasonable and moderate** force to discipline a child, e.g. reasonable correction. Excessive force is not justified.
   - In India, corporal punishment in schools is prohibited by s.17 of the Right of Children to Free and Compulsory Education Act, 2009, so a teacher cannot rely on this defence for physical punishment.
   - The authority of a ship's captain over passengers and crew is another example of quasi-parental authority.

Flowchart: How the defendant can escape liability



Examples

- A spectator at a motor race is injured when a car flies off the track. He cannot sue, as he accepted the risk (*Hall v Brooklands*).
- A doctor operates on an unconscious accident victim to save her life. This is justified by necessity.
- A fire brigade officer pulls down a hut to stop a fire from spreading to a whole colony. This is necessity.

Case Laws

Case Law: Hall v Brooklands Auto Racing Club

Year: 1933 **Court:** Court of Appeal (England)

Facts / Background: The plaintiff paid to watch a motor race at the defendant's track. Two cars collided, and one of them shot over the railing into the crowd, injuring the plaintiff. No accident of this kind had happened before.

Legal Issue: Is the defendant liable, or did the plaintiff consent to the risk?

Court's Decision / What the Court Held: The Court held that the defendant was not liable. A spectator at a motor race must be taken to have accepted the risk of such an accident, which was inherent in the sport. The risk was one that the spectator impliedly agreed to bear.

Relevance to the Topic: The leading case on **implied consent** (volenti non fit injuria).

Case Law: Smith v Baker & Sons

Year: 1891 **Court:** House of Lords (England)

Facts / Background: The plaintiff worked in a quarry drilling holes. A crane carrying stones swung over his head without warning. He knew of the risk, and had continued working. A stone fell from the crane and injured him.

Legal Issue: Does the plaintiff's knowledge of the risk mean that he consented to it, so that

the defence of volenti applies?

Court's Decision / What the Court Held: The House of Lords held that the employer was liable. Mere knowledge of the risk did not mean that the plaintiff had voluntarily agreed to bear it; he continued working because of his employment, not because he accepted the risk. The maxim is *volenti non fit injuria*, not *scienti non fit injuria*.

Relevance to the Topic: Knowledge of risk is not the same as consent.

Case Law: Haynes v Harwood

Year: 1935 **Court:** Court of Appeal (England)

Facts / Background: The defendant's servant left a horse van unattended in a crowded street. A boy threw a stone at the horses, which bolted. A police constable on duty saw that a woman and children were in danger, ran out and stopped the horses, but was seriously injured.

Legal Issue: Can the defendant rely on volenti non fit injuria against a rescuer?

Court's Decision / What the Court Held: The Court held that the defendant was liable. The defence did not apply because the constable had acted under a legal and moral duty to rescue people in danger created by the defendant's negligence; he did not freely accept the risk.

Relevance to the Topic: The **rescue cases** exception to volenti.

Case Law: Nichols v Marsland

Year: 1876 **Court:** Court of Appeal (England)

Facts / Background: The defendant had created artificial lakes on his land by damming a natural stream. An extraordinary rainfall, greater than any in living memory, caused the embankments to break, and the escaping water carried away four bridges belonging to the plaintiff.

Legal Issue: Is the defendant liable under the rule of strict liability, or is he protected by the defence of Act of God?

Court's Decision / What the Court Held: The Court held that the defendant was not liable, because the escape of water was caused by an Act of God, an extraordinary natural event that could not reasonably have been anticipated.

Relevance to the Topic: The leading case on **Act of God**.

Case Law: Stanley v Powell

Year: 1891 **Court:** Queen's Bench Division (England)

Facts / Background: The defendant and the plaintiff were members of a shooting party. The defendant fired at a pheasant, but a pellet glanced off a tree and injured the plaintiff.

Legal Issue: Is the defendant liable for the injury caused by the pellet?

Court's Decision / What the Court Held: The Court held that the defendant was not liable, since the injury was the result of an inevitable accident that could not have been avoided by reasonable care.

Relevance to the Topic: The leading case on **inevitable accident**.

Case Law: Bird v Holbrook

Year: 1828 **Court:** Court of Common Pleas (England)

Facts / Background: The defendant set a spring-gun in his walled garden to protect his valuable tulips, without any notice. The plaintiff, a young man, climbed into the garden to catch a peahen that had strayed, and was injured by the spring-gun.

Legal Issue: Can the defendant justify the injury as a lawful defence of his property against a trespasser?

Court's Decision / What the Court Held: The Court held that the defendant was liable. Setting a spring-gun without notice was not a reasonable means of defending property, and the plaintiff's trespass did not justify such injury.

Relevance to the Topic: The limits of **private defence of property** and of the defence that the plaintiff was a wrongdoer.

Case Law: Leigh v Gladstone

Year: 1909 **Court:** King's Bench Division (England)

Facts / Background: The plaintiff, a suffragette imprisoned in Winson Green prison, went on a hunger strike. The prison officials forcibly fed her to save her life. She sued for battery.

Legal Issue: Was force-feeding justified by necessity?

Court's Decision / What the Court Held: The Court held that the force-feeding was justified as necessary to save the plaintiff's life, and the defendants were not liable. (The correctness of the decision has been questioned in later times, as modern law gives more weight to the autonomy of a competent adult.)

Relevance to the Topic: An illustration of the defence of **necessity**.

Case Law: Vaughan v Taff Vale Railway Co

Year: 1860 **Court:** Court of Exchequer Chamber (England)

Facts / Background: The defendants were authorised by statute to run a railway with locomotive engines. Sparks from an engine set fire to the plaintiff's woods adjoining the railway, although all reasonable precautions had been taken.

Legal Issue: Is the railway company liable for the fire damage, despite statutory authority?

Court's Decision / What the Court Held: The Court held that the defendants were not

liable, since they were authorised by statute to use locomotives, and they had not been negligent.

Relevance to the Topic: The leading case on **statutory authority**.

Important Points

- Volenti non fit injuria: free and voluntary consent with knowledge of the risk (*Hall v Brooklands*); knowledge alone is not enough (*Smith v Baker*); does not apply to rescuers (*Haynes v Harwood*).
- Necessity: harm to prevent greater harm (*Leigh v Gladstone*).
- Plaintiff's default: illegal act or contributory negligence; excessive measures still create liability (*Bird v Holbrook*).
- Act of God: extraordinary natural events (*Nichols v Marsland*).
- Inevitable accident: harm not avoidable with reasonable care (*Stanley v Powell*).
- Private defence: reasonable and proportionate force only.
- Statutory authority: no liability for harm necessarily caused without negligence (*Vaughan v Taff Vale*).
- Judicial acts are protected by the Judicial Officers' Protection Act, 1850 and the Judges (Protection) Act, 1985; parental authority allows only reasonable correction.

Remember: Act of God requires natural forces; inevitable accident does not.

UNIT 2
Vicarious Liability and Extinguishment of Liability

Topics in this Unit

2.1 Vicarious Liability: Basis, scope, and justification; express authorization, ratification, and abetment.

2.2 Master and Servant Relationships: Arising out of and in the course of employment, the control test, borrowed servant, and distinguishing an independent contractor from a servant.

2.3 Special Relationships & Immunity: Principal and agent, corporation and principal officer; Doctrine of sovereign immunity and its relevance in India.

2.4 Extinguishments of Liability: Actio personalis moritur cum persona (and exceptions), waiver and acquiescence, release, accord and satisfaction, and limitation.

Topic 2.1: Vicarious Liability: Basis, scope, and justification; express authorization, ratification, and abetment.

Introduction

Generally, a person is liable only for his own wrongful acts. But in certain cases, the law makes one person liable for the torts committed by another, even though he did not commit the wrong himself and was not at fault. This is called **vicarious liability** ("vicarious" means "in place of another"). The most important example is the liability of an employer (master) for the torts of his employee (servant) committed in the course of employment.

Definition

> **Vicarious liability** is the liability of one person for the tort committed by another person, because of a special relationship between them, even though the first person was not personally at fault.

> **Salmond:** a master is liable for every wrongful act of his servant committed in the course of employment.

Detailed Explanation

1. Basis of Vicarious Liability: Two Maxims

1. **Qui facit per alium facit per se:** "he who does an act through another does it himself". When a person authorises another to do an act, the act is treated as the act of the person who authorised it.
2. **Respondeat superior:** "let the superior (principal) answer". The superior is responsible for the acts of his subordinate.

2. Relationships Giving Rise to Vicarious Liability

Relationship	Liability
Master and servant (employer and employee)	Master liable for torts of the servant in the course of employment
Principal and agent	Principal liable for torts of the agent within the scope of authority
Partners	Each partner liable for torts of a co-partner in the ordinary course of the firm's business (s.26, Indian Partnership Act, 1932)
Company and its officers/employees	Company liable for torts of its servants and agents
State and its servants	State liable for torts of its servants, subject to sovereign immunity (Art 300)
Owner and driver of a vehicle	Owner liable where the driver drives as his servant or agent

3. Justifications (Rationale) for Vicarious Liability

1. **Deep pocket theory:** the employer usually has more money than the employee and can pay compensation; he can also insure against liability.
2. **Control:** the employer controls the work of the employee and can prevent wrongs by supervision.
3. **Benefit and burden:** since the employer takes the benefit of the employee's work, he should also bear the burden of the losses it causes.
4. **Loss distribution:** the employer can spread the loss among his customers through prices and insurance.
5. **Deterrence:** it encourages employers to select careful employees, train them and supervise them.
6. **Identification:** the employee's act is treated as the act of the employer (*qui facit per alium*).
7. **Public policy:** it ensures that the victim is not left without a remedy.

4. Scope: Modes of Liability for Another's Tort

A person may be liable for another's tort in three ways:

Liability by Express Authorisation

1. If A expressly authorises B to commit an act that is a tort, A is liable for it as if he did it himself.
2. Example: A instructs B to enter C's land and cut C's trees. A is liable for trespass along with B.
3. Both are **joint tortfeasors** and are jointly and severally liable.

Liability by Ratification

1. **Ratification** means subsequent approval of an act done on one's behalf without prior authority. "Every ratification relates back and is equivalent to a prior command."
2. **Conditions for ratification to create liability:**
   - The act must have been done **on behalf of** the person ratifying, not on the doer's own behalf.
   - The person ratifying must have **full knowledge** of the act (or intend to ratify whatever was done).
   - The person ratifying must have been **competent** to authorise the act at the time it was done and at the time of ratification.
3. Example: A's servant, without authority, seizes B's goods in the belief that they belong to A, intending to act for A. A later approves the seizure with knowledge of the facts. A is liable for the conversion.
4. Ratification also exists in contract law (ss.196–200, Indian Contract Act, 1872).

Liability by Abetment

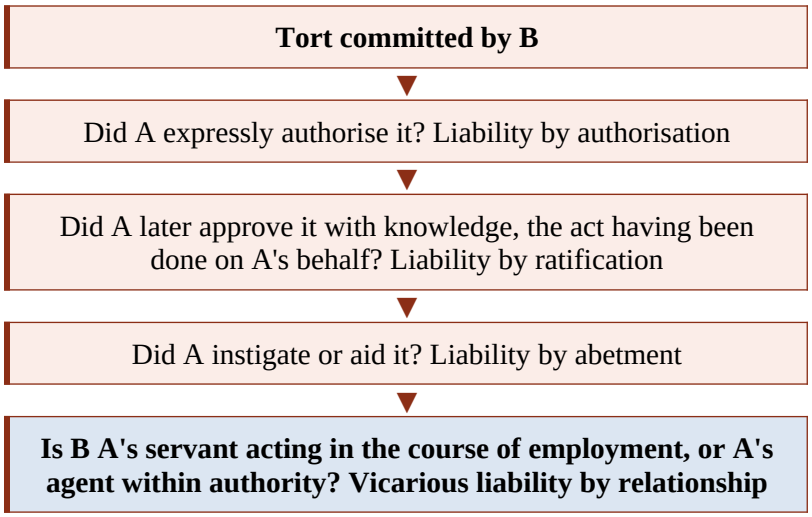
1. A person who **abets** (instigates, encourages, aids or procures) the commission of a tort is liable as a joint tortfeasor.

2. Example: A encourages B to assault C. A is liable for the assault along with B.
3. Inducing a person to commit a breach of contract is a separate tort (*Lumley v Gye*, 1853; see Topic 3.4).

5. Joint Tortfeasors

1. When two or more persons commit a tort together, or one authorises, ratifies or abets the tort of another, they are **joint tortfeasors**.
2. They are **jointly and severally liable**: the plaintiff may sue all of them or any one of them for the whole amount.
3. Contribution between them may be claimed according to the extent of their responsibility.

Flowchart: When is a person liable for another's tort?



Examples

- A taxi company's driver negligently hits a pedestrian while driving a passenger. The company is vicariously liable.
- A landowner tells his watchman to beat any person who enters his orchard. The watchman beats a boy. The landowner is liable for the battery by express authorisation.

Case Laws

Case Law: Ormrod v Crosville Motor Services Ltd

Year: 1953 **Court:** Court of Appeal (England)

Facts / Background: The owner of a car asked a friend to drive the car from Birkenhead to Monte Carlo, where the owner would meet him and they would go on holiday together. On the way, the friend negligently collided with the plaintiff's bus.

Legal Issue: Is the owner of the car liable for the negligence of the friend, who was not his servant?

Court's Decision / What the Court Held: The Court held that the owner was vicariously liable, because the friend was driving the car on the owner's business and for the owner's purposes, as his agent. Lord Denning said that the owner is liable if the car is being driven by

his servant or agent on his behalf, with his authority, for a purpose of his.

Relevance to the Topic: Vicarious liability can arise from an **agency** relationship based on authority, not only from employment.

Case Law: Lister v Hesley Hall Ltd

Year: 2001 **Court:** House of Lords (England)

Facts / Background: The warden of a boarding house for boys, employed by the defendants, sexually abused the boys in his care. The boys sued the employer.

Legal Issue: Is an employer vicariously liable for intentional wrongs of an employee that the employer would never have authorised?

Court's Decision / What the Court Held: The House of Lords held the employer vicariously liable, applying the **close connection** test: the warden's torts were so closely connected with his employment (caring for the boys) that it was fair and just to hold the employer liable.

Relevance to the Topic: The modern justification for vicarious liability, focusing on the connection between the employment and the wrong.

Important Points

- Vicarious liability is liability for another's tort without personal fault.
- Maxims: *qui facit per alium facit per se* and *respondeat superior*.
- Justifications: deep pocket, control, benefit and burden, loss distribution, deterrence, public policy.
- Modes: express authorisation, ratification (acts done on one's behalf, approved with knowledge), and abetment.
- Joint tortfeasors are jointly and severally liable.
- *Ormrod* (1953): liability of a car owner for an agent-driver; *Lister* (2001): close connection test.

Remember: Ratification relates back to the time of the act and is equivalent to a prior command.

Topic 2.2: Master and Servant Relationships: Arising out of and in the course of employment, the control test, borrowed servant, and distinguishing an independent contractor from a servant.

Introduction

The most common form of vicarious liability is the liability of a **master** (employer) for the torts of his **servant** (employee). Two questions must be answered: (1) Was the wrongdoer a servant (and not an independent contractor)? (2) Did he commit the tort **in the course of his employment**? If both answers are yes, the master is liable.

Definition

Servant: a person employed by another to do work under the employer's control and direction as to the manner in which the work is done.

Independent contractor: a person who undertakes to produce a given result, but is not controlled in the manner of doing the work.

Salmond's test for course of employment: a wrongful act is done in the course of employment if it is either (a) a wrongful act authorised by the master, or (b) a wrongful and unauthorised mode of doing some act authorised by the master.

Detailed Explanation

1. Who is a Servant? Tests

The Control Test

1. The traditional test: a person is a servant if the employer can control **what** he does and **how** he does it.
2. *Yewens v Noakes* (1880): a servant is a person subject to the command of his master as to the manner in which he shall do his work.
3. This test is unsuitable for skilled professionals (doctors, engineers, pilots), whose employers cannot control how they work.

Other Tests

1. **Integration (organisation) test:** a person is a servant if his work is an integral part of the business (Lord Denning in *Stevenson, Jordan and Harrison v Macdonald and Evans*, 1952).
2. **Multiple (economic reality) test:** considers control, payment of wages, provision of equipment, the power to dismiss, who bears the financial risk, and the intention of the parties (*Ready Mixed Concrete v Minister of Pensions*, 1968).
3. **Hospitals:** a hospital is liable for the negligence of its doctors and nurses employed by it (*Cassidy v Ministry of Health*, 1951).

2. Servant v Independent Contractor

Basis	Servant	Independent Contractor
Control	Employer controls the manner of work	Employer controls only the result
Contract	Contract of service	Contract for services
Payment	Usually wages or salary	Usually a fee for the job
Tools	Usually provided by the employer	Usually his own
Example	A chauffeur	A taxi driver hired for a journey
Vicarious liability	Employer liable for torts in the course of employment	Employer generally not liable

3. Liability for Independent Contractors: Exceptions

The employer is generally not liable for the torts of an independent contractor, but he is liable where:

1. he **authorised** or **ratified** the tort;
2. he was **personally negligent** (e.g. in selecting an incompetent contractor);
3. the work is **inherently dangerous** or involves strict liability (e.g. *Rylands v Fletcher*);
4. there is a **non-delegable duty**, e.g. a statutory duty, a duty to provide a safe system of work to employees, or work on a highway;
5. the work involves withdrawal of support from neighbouring land.

4. Course of Employment

1. The master is liable only if the servant committed the tort **in the course of employment**, i.e. while doing the work he was employed to do, even if he did it in a wrong or unauthorised way.
2. **Examples of acts in the course of employment:**
   - **Careless acts:** a petrol tanker driver lights a cigarette while transferring petrol, causing an explosion (*Century Insurance Co v Northern Ireland Road Transport Board*, 1942).
   - **Acts against express prohibition:** a bus driver races with another bus against instructions (*Limpus v London General Omnibus Co*, 1862).
   - **Mistakes:** a servant wrongly believes he is acting in the master's interest.
   - **Fraud:** a solicitor's clerk defrauds a client (*Lloyd v Grace, Smith & Co*, 1912).
   - **Wilful wrongs closely connected with employment:** *Lister v Hesley Hall* (2001).
3. **Acts outside the course of employment** (the master is not liable):
   - **Frolic of his own:** the servant does something for his own purpose, unconnected with his work (e.g. a driver goes on a personal trip).
   - **Acts beyond the scope of employment:** a bus conductor drives the bus and causes an accident (*Beard v London General Omnibus Co*, 1900).
   - **Personal acts of revenge or violence** not connected with work.

4. **Giving lifts against instructions:**
   - *Twine v Bean's Express* (1946): a driver gave a lift to a hitchhiker against orders; the employer was not liable to the hitchhiker.
   - *Rose v Plenty* (1976): a milkman used a boy to help deliver milk, against orders; the employer was liable, because the boy was helping with the employer's business.
   - In India, *Pushpabai Purshottam Udeshi v Ranjit Ginning & Pressing Co* (1977) held the employer liable when its manager, while driving the company's car on company business, gave a lift to a person who was killed in an accident.

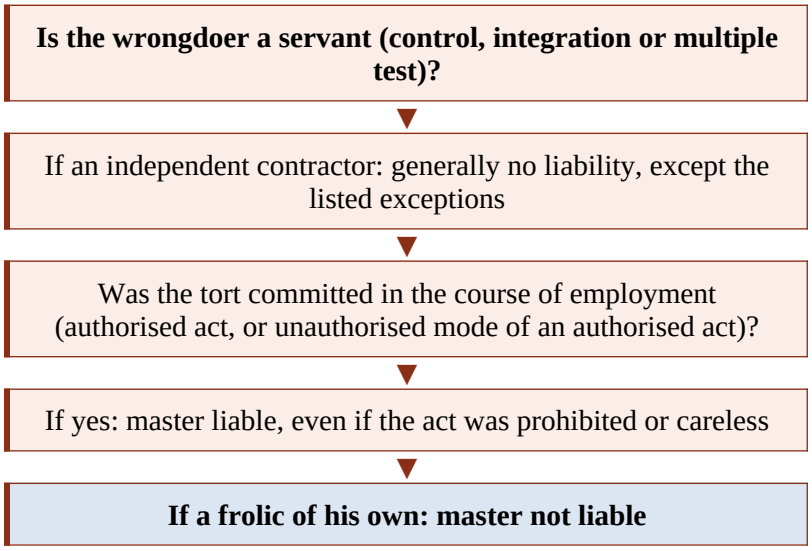
5. "Arising Out of and in the Course of Employment"

1. This phrase is used in **workmen's compensation** law (Employee's Compensation Act, 1923, s.3), where the employer must pay compensation for injuries to the employee caused by accidents arising out of and in the course of employment.
2. "**Arising out of**" means there is a causal connection between the employment and the injury.
3. "**In the course of**" means the accident happened during the period and place of employment.
4. In vicarious liability, the main question is whether the tort was committed "in the course of" employment.

6. Borrowed Servant (Hired Servant)

1. Sometimes a master (the general employer) lends his servant to another person (the temporary employer).
2. **Question:** who is liable for the borrowed servant's torts?
3. **Rule:** the general employer remains liable unless he proves that **control** over the manner of work had passed to the temporary employer. There is a strong presumption that the general employer remains liable (*Mersey Docks and Harbour Board v Coggins & Griffith*, 1947).
4. Factors: who pays the servant, who can dismiss him, who controls the manner of work, and the duration of the loan.

Flowchart: Is the master vicariously liable?



Examples

- A shop assistant, while serving a customer, negligently drops a heavy box on the customer's foot. The shop owner is liable.
- A company's driver uses the company car on Sunday to visit his relatives and causes an accident. This is a frolic of his own, and the company is generally not liable.

Case Laws

Case Law: Limpus v London General Omnibus Co

Year: 1862 **Court:** Court of Exchequer Chamber (England)

Facts / Background: The defendants' bus driver had written instructions not to race with or obstruct other buses. Against these instructions, he drove his bus across the path of the plaintiff's bus to get passengers, causing an accident.

Legal Issue: Is the employer liable when the driver acted against express instructions?

Court's Decision / What the Court Held: The Court held the employer liable, since the driver was doing the work he was employed to do (driving the bus and getting passengers), though in a wrongful and prohibited manner. A prohibition limiting the manner of doing the work does not limit the course of employment.

Relevance to the Topic: An act against **express prohibition** may still be within the course of employment.

Case Law: Century Insurance Co Ltd v Northern Ireland Road Transport Board

Year: 1942 **Court:** House of Lords (UK)

Facts / Background: A driver of a petrol tanker, employed by the respondents, was transferring petrol from the tanker to an underground tank at a petrol station. While doing so, he lit a cigarette and threw away the lighted match, causing a fire and explosion.

Legal Issue: Was the driver's careless act of smoking within the course of his employment?

Court's Decision / What the Court Held: The House of Lords held that the employer was liable. Lighting the cigarette was not in itself an act of employment, but it was a negligent way of doing his job of transferring petrol, so it was within the course of employment.

Relevance to the Topic: A **careless act** while doing one's job is within the course of employment.

Case Law: Beard v London General Omnibus Co

Year: 1900 **Court:** Court of Appeal (England)

Facts / Background: At the end of a journey, the conductor of the defendants' bus, in the

absence of the driver, drove the bus to turn it around, and negligently injured the plaintiff.

Legal Issue: Was the conductor acting in the course of his employment while driving the bus?

Court's Decision / What the Court Held: The Court held that the defendants were not liable, because the conductor was employed to collect fares, not to drive the bus. His act was outside the scope of his employment.

Relevance to the Topic: Acts **outside the scope of the servant's employment** do not make the master liable.

Case Law: Mersey Docks and Harbour Board v Coggins & Griffith (Liverpool) Ltd

Year: 1947 **Court:** House of Lords (UK)

Facts / Background: The Harbour Board (general employer) hired out a crane along with its driver to a firm of stevedores (temporary employer). The stevedores directed the driver what to lift, but not how to operate the crane. The driver negligently injured a person.

Legal Issue: Which employer was liable for the borrowed servant's negligence?

Court's Decision / What the Court Held: The House of Lords held that the Harbour Board, the general employer, was liable, because it had not transferred control over the manner in which the crane was operated. The burden on the general employer to prove a transfer of control is heavy.

Relevance to the Topic: The leading case on the **borrowed servant**.

Case Law: Pushpabai Purshottam Udeshi v Ranjit Ginning & Pressing Co (P) Ltd

Year: 1977 **Court:** Supreme Court of India

Facts / Background: The manager of the respondent company was driving the company's car on company business. He gave a lift to the appellant's husband, and the car met with an accident due to the manager's negligence. The husband died. His widow sued the company.

Legal Issue: Is the company vicariously liable for the death of a person who was given a lift by its manager?

Court's Decision / What the Court Held: The Supreme Court held the company liable, since the manager was driving the car in the course of his employment, and giving a lift to the deceased could not be said to be outside the course of employment in the circumstances. The Court observed that the law has moved towards a wider view of the course of employment.

Relevance to the Topic: An Indian application of the **course of employment** test.

Important Points

- Master liable for torts of a servant committed in the course of employment.
- Tests of servant: control, integration, multiple/economic reality.
- Independent contractor: employer generally not liable, except for authorisation, negligence in selection, dangerous work, non-delegable duties.
- Course of employment includes careless acts (*Century Insurance*), prohibited modes (*Limpus*) and fraud (*Lloyd*); excludes frolics and acts beyond the scope of employment (*Beard*).
- Borrowed servant: the general employer remains liable unless control over the manner of work passes (*Mersey Docks*).
- *Pushpabai* (1977): Indian application.

Remember: A prohibition on the **mode** of work does not limit the **scope** of employment.

Topic 2.3: Special Relationships & Immunity: Principal and agent, corporation and principal officer; Doctrine of sovereign immunity and its relevance in India.

Introduction

Apart from master and servant, vicarious liability also arises in other relationships, such as principal and agent and a corporation and its officers. The most important and controversial question in India is the **liability of the State** for the torts of its servants: whether the State can claim **sovereign immunity**. This question is governed by Article 300 of the Constitution and a series of Supreme Court decisions.

Definition

Agent: "a person employed to do any act for another, or to represent another in dealings with third persons" (s.182, Indian Contract Act, 1872).

Sovereign immunity: the doctrine that the State is not liable in tort for acts done in the exercise of its sovereign functions. It comes from the English maxim "**the King can do no wrong**".

Detailed Explanation

1. Principal and Agent

1. A principal is liable for the torts of his agent committed **within the scope of the agent's authority**, whether actual or apparent.
2. **Section 238, Indian Contract Act, 1872:** misrepresentations made or frauds committed by agents acting in the course of their business for their principals have the same effect on agreements as if they were made or committed by the principal.
3. The principal is liable even if the agent acted for his own benefit, as long as he acted within his authority (*Lloyd v Grace, Smith & Co*, 1912).
4. If the agent acted outside his authority, the principal is not liable (*State Bank of India v Shyama Devi*, 1978).

2. Corporation and Its Principal Officers

1. A corporation (company) is a separate legal person, but it can act only through human agents (directors, officers, employees).
2. **Vicarious liability:** a company is liable for the torts of its servants and agents committed in the course of employment or within authority.
3. **Direct liability (identification doctrine):** the acts and state of mind of the "directing mind and will" of the company (its senior officers and directors) are treated as the acts of the company itself (*Lennard's Carrying Co v Asiatic Petroleum*, 1915).

4. A company may be liable even for torts requiring malice, such as malicious prosecution, if committed by its officers within their authority (*Citizens' Life Assurance Co v Brown*, 1904, Privy Council).
5. **Ultra vires torts:** older cases held that a company was not liable for torts committed while doing ultra vires acts, but the modern view is that it is liable if the tort was committed in the course of its business.
6. **Personal liability of officers:** directors are personally liable for torts that they themselves commit or direct.

3. Doctrine of Sovereign Immunity

English Position

1. At common law, the Crown was immune from tort liability ("the King can do no wrong").
2. The **Crown Proceedings Act, 1947** abolished this immunity, and the Crown is now liable in tort like a private person, subject to some exceptions.

Indian Constitutional Provision

1. **Article 300(1):** the Government of India may sue or be sued by the name of the Union of India, and the Government of a State may sue or be sued by the name of the State, in the same cases as the Dominion of India and the provinces might have sued or been sued before the Constitution, subject to any law made by Parliament or the State Legislature.
2. So the liability of the State today is the same as that of the **East India Company**, traced back through the Government of India Acts of 1858, 1915 and 1935.
3. No general law on the liability of the State has been enacted, although the Law Commission (1st Report, 1956) recommended one.

4. Development through Cases

Distinction between Sovereign and Non-Sovereign Functions

1. **P&O Steam Navigation Co v Secretary of State for India (1861):** the Supreme Court of Calcutta held that the East India Company (and so the Government) was liable for torts committed in the exercise of **non-sovereign** (commercial) functions, but not for **sovereign** functions (e.g. making war and peace, administration of justice).
2. **State of Rajasthan v Vidyawati (1962):** the Supreme Court held the State liable for the death of a pedestrian caused by the negligent driving of a government jeep being taken from the workshop to the Collector's residence. This was not a sovereign function.
3. **Kasturilal Ralia Ram Jain v State of UP (1965):** the Court held that the State was not liable for the loss of gold seized by the police and misappropriated by a head constable, because the power to arrest, search and seize was a sovereign function. The Court regretted the situation and suggested that the legislature should enact a law.

Decline of Sovereign Immunity

1. **Rudul Sah v State of Bihar (1983):** compensation for illegal detention under Article 32 (see Topic 1.2).
2. **Nilabati Behera v State of Orissa (1993):** the Court held that sovereign immunity is not a defence in a claim for compensation for violation of fundamental rights under Articles

32 and 226. This is a **public law remedy** based on strict liability, distinct from a private law claim in tort.

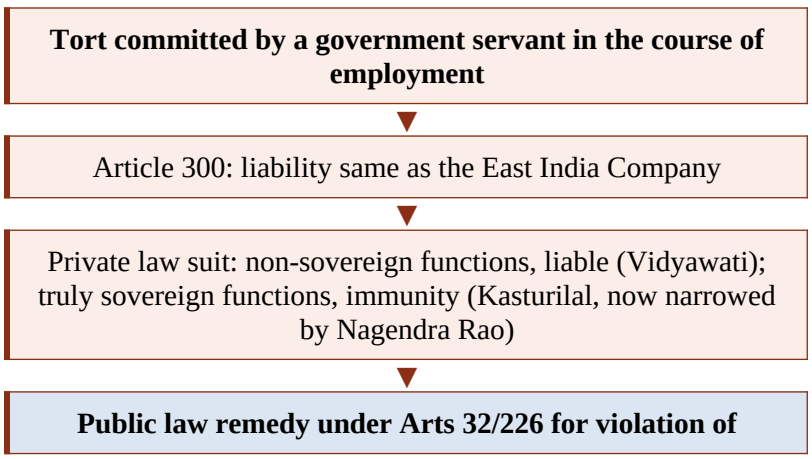
3. **N. Nagendra Rao & Co v State of AP (1994):** the Court held that the State is liable for the negligence of its officers in seizing and keeping goods under the Essential Commodities Act. It observed that the distinction between sovereign and non-sovereign functions is outdated, and that only a narrow class of functions (defence, foreign affairs, administration of justice, legislation) are truly sovereign. It said that *Kasturilal* had lost much of its force.
4. **Common Cause v Union of India (1999)** and **Chairman, Railway Board v Chandrima Das (2000):** the State was held liable to pay compensation (in *Chandrima Das*, for the rape of a Bangladeshi woman by railway employees in a railway building).

Case	Year	Result
P&O Steam Navigation	1861	Sovereign v non-sovereign distinction
Vidyawati	1962	State liable: driving a jeep is not a sovereign function
Kasturilal	1965	State not liable: police seizure is a sovereign function
Rudul Sah	1983	Compensation for violation of Art 21
Nilabati Behera	1993	Sovereign immunity not a defence in public law compensation
N. Nagendra Rao	1994	Sovereign immunity limited to a narrow class of functions
Chandrima Das	2000	State liable; compensation even to a foreign national

5. Relevance of Sovereign Immunity in India Today

1. In **private law** (civil suits for damages), the sovereign/non-sovereign distinction still technically survives, since *Kasturilal* has not been formally overruled, but its scope has been greatly narrowed (*Nagendra Rao*).
2. In **public law** (writs under Articles 32 and 226), sovereign immunity is **not** a defence for violations of fundamental rights (*Nilabati Behera*).
3. Many statutes provide for compensation (e.g. the Motor Vehicles Act, the Railways Act).
4. The Law Commission's recommendation for legislation remains unimplemented.

Flowchart: Is the State liable for the tort of its servant?



fundamental rights: no sovereign immunity (Nilabati Behera)

Examples

- A government truck carrying office files negligently hits a cyclist. The State is liable (non-sovereign function, as in *Vidyawati*).
- A person dies in police custody due to torture. The State is liable to pay compensation in a writ petition (*Nilabati Behera*).

Case Laws

Case Law: Lloyd v Grace, Smith & Co

Year: 1912 **Court:** House of Lords (UK)

Facts / Background: Mrs. Lloyd, a widow, went to the defendants, a firm of solicitors, for advice about her property. The firm's managing clerk, who handled conveyancing, fraudulently induced her to transfer her property to him, and then disposed of it for his own benefit.

Legal Issue: Is the firm liable for the fraud of its clerk, which was committed for his own benefit and not for the firm?

Court's Decision / What the Court Held: The House of Lords held the firm liable, because the clerk was acting within the scope of his apparent authority as the firm's representative, even though the fraud was for his own benefit.

Relevance to the Topic: A principal is liable for the fraud of his agent committed within the scope of authority, even for the agent's own benefit.

Case Law: State Bank of India v Shyama Devi

Year: 1978 **Court:** Supreme Court of India

Facts / Background: The respondent gave money and a cheque to a bank employee, who was her husband's friend, for depositing in her account, without following the bank's procedure (no deposit slip). The employee misappropriated the money.

Legal Issue: Is the bank liable for the misappropriation by its employee?

Court's Decision / What the Court Held: The Court held that the bank was not liable, because the employee had received the money in his personal capacity as a friend, not in the course of his employment with the bank.

Relevance to the Topic: The principal is not liable for an act done by the agent outside his authority and employment.

Case Law: State of Rajasthan v Vidyawati

Year: 1962 **Court:** Supreme Court of India

Facts / Background: The driver of a government jeep, employed by the State, was driving the jeep back from the workshop after repairs to the Collector's residence. He drove rashly and negligently, and knocked down a pedestrian, who died. The widow sued the State.

Legal Issue: Is the State liable for the negligence of its driver?

Court's Decision / What the Court Held: The Court held the State liable. Driving the jeep from the workshop was not a sovereign function, and the State was liable like any other employer. The Court observed that there was no justification for the State to claim immunity in such a case in a democratic welfare State.

Relevance to the Topic: The State is liable for the torts of its servants in **non-sovereign functions**.

Case Law: Kasturilal Ralia Ram Jain v State of Uttar Pradesh

Year: 1965 **Court:** Supreme Court of India

Facts / Background: Kasturilal, a jeweller, was arrested by the Meerut police on suspicion of possessing stolen property. Gold and silver seized from him were kept in the police malkhana. The gold was misappropriated by a head constable who fled to Pakistan. On his release, Kasturilal sued the State for the value of the gold.

Legal Issue: Is the State liable for the negligence of the police in keeping seized property?

Court's Decision / What the Court Held: The Court held that the State was not liable, since the power to arrest, search and seize property is a sovereign power, and the negligence occurred in exercising that power. The Court however suggested that the legislature should consider enacting a law to make the State liable in such cases.

Relevance to the Topic: The leading case recognising **sovereign immunity**, though now narrowed.

Case Law: Nilabati Behera v State of Orissa

Year: 1993 **Court:** Supreme Court of India

Facts / Background: The petitioner's son, aged 22, was taken into police custody for interrogation. His body, with multiple injuries, was found on the railway track the next day. His mother wrote a letter to the Supreme Court, which was treated as a writ petition.

Legal Issue: Can the State claim sovereign immunity against a claim for compensation for custodial death under Article 32?

Court's Decision / What the Court Held: The Court held that the State was liable to pay compensation. A claim for compensation for the violation of fundamental rights under Articles 32 and 226 is a public law remedy based on strict liability, to which the defence of sovereign immunity is not available. *Kasturilal* applies only to private law claims in tort.

The Court awarded Rs. 1,50,000 to the mother.

Relevance to the Topic: Sovereign immunity is **not a defence** to public law compensation.

Case Law: N. Nagendra Rao & Co v State of Andhra Pradesh

Year: 1994 **Court:** Supreme Court of India

Facts / Background: The appellant's stock of fertilisers and foodgrains was seized by officers under the Essential Commodities Act. After the proceedings, the authorities were directed to return the goods, but by then much of the stock had deteriorated due to the negligence of the officers.

Legal Issue: Is the State liable for the negligence of its officers in exercising statutory powers?

Court's Decision / What the Court Held: The Court held the State liable. It observed that in a welfare State, the functions of the State are not limited to sovereign functions; only functions such as defence, foreign affairs, administration of justice and legislation are truly sovereign. The doctrine of sovereign immunity has no relevance in present-day India for most State activities, and the ratio of *Kasturilal* is confined to its own facts.

Relevance to the Topic: The modern **narrow view** of sovereign immunity.

Important Points

- A principal is liable for the agent's torts within authority (*Lloyd v Grace, Smith*); not outside it (*Shyama Devi*).
- A company is liable vicariously and directly (identification doctrine); it can be liable for malicious torts.
- Article 300: State liability is the same as that of the East India Company.
- *P&O* (1861): sovereign v non-sovereign distinction.
- *Vidyawati* (1962): State liable; *Kasturilal* (1965): State not liable.
- *Nilabati Behera* (1993): no sovereign immunity in public law compensation.
- *Nagendra Rao* (1994): sovereign immunity narrowed to a small class of functions.

Remember: There is still no general law on State liability in India, despite the Law Commission's 1956 recommendation.

Topic 2.4: Extinguishments of Liability: Actio personalis moritur cum persona (and exceptions), waiver and acquiescence, release, accord and satisfaction, and limitation.

Introduction

A right of action in tort, once it has arisen, may come to an end in certain ways. This is called the **extinguishment** or **discharge** of tortious liability. The liability may end because of the death of a party, the conduct of the plaintiff (waiver, acquiescence, release, accord and satisfaction), a judgment, or the expiry of the period of limitation.

Definition

> **Extinguishment of liability** means the termination of the right to sue for a tort, after the cause of action has arisen.

> **Actio personalis moritur cum persona:** "a personal action dies with the person".

Detailed Explanation

1. Modes of Extinguishment

Mode	Meaning
Death (actio personalis rule)	A personal action ends on the death of either party, subject to exceptions
Waiver	The plaintiff gives up his right to sue in tort, e.g. by choosing a remedy in contract
Acquiescence	The plaintiff stands by and allows the defendant to continue the wrong without objection
Release	The plaintiff voluntarily gives up his claim, usually in writing
Accord and satisfaction	The parties agree on a substitute for the claim (accord), and it is performed (satisfaction)
Judgment	Once a court has decided the claim, it cannot be sued upon again (res judicata)
Limitation	The suit must be filed within the period fixed by the Limitation Act, 1963

2. Actio Personalis Moritur cum Persona

The Rule at Common Law

1. At common law, a personal action in tort came to an end on the death of either the plaintiff or the defendant.
2. **Baker v Bolton (1808):** the death of a person could not be complained of as an injury in a civil court; a husband could not recover damages for the death of his wife.

3. This rule caused great injustice, since the dependants of a person killed by another's wrong had no remedy.

Exceptions and Statutory Changes (England)

1. The **Fatal Accidents Act, 1846** (Lord Campbell's Act) allowed dependants to sue for the death of a person.
2. The **Law Reform (Miscellaneous Provisions) Act, 1934** provided that most causes of action survive for or against the estate of a deceased person, except defamation.

Position in India

1. **The Legal Representatives' Suits Act, 1855:** allows an action to be brought by or against the executors or representatives of a deceased person for wrongs committed by or against the deceased in respect of his **property**, within one year before his death.
2. **Section 306, Indian Succession Act, 1925:** all demands and rights to prosecute or defend any action existing in favour of or against a person at the time of his death survive to and against his executors or administrators, **except** causes of action for defamation, assault (as defined in the Indian Penal Code, now BNS) or other personal injuries **not causing the death** of the party.
3. **The Fatal Accidents Act, 1855:** allows the legal representatives to sue for compensation for the benefit of the wife, husband, parent and child of a person whose death was caused by a wrongful act, neglect or default.
4. **Motor Vehicles Act, 1988 (s.166):** legal representatives can claim compensation for death in motor accidents.
5. **Courts' interpretation:** the words "personal injuries not causing the death of the party" in s.306 have been interpreted narrowly, so that most actions survive. However, a suit for defamation abates on the death of the plaintiff (*Melepurath Sankunni Ezhuthassan v Thekittil Geopalankutty Nair*, 1986).

3. Waiver and Acquiescence

1. **Waiver by election:** where the plaintiff has a choice of remedies (e.g. in tort or in contract), and he chooses one, he waives the other. For example, if a person's goods are wrongfully sold by another, he may sue in tort for conversion, or "waive the tort" and sue for the money received (quasi-contract).
2. **Acquiescence:** if the plaintiff, knowing of the infringement of his right, stands by and allows the defendant to continue (for example, to spend money on construction), he may be barred from suing, especially for equitable relief such as an injunction.
3. Acquiescence must involve knowledge and conduct implying consent; mere delay is not always acquiescence.

4. Release

1. A release is the voluntary giving up of a right of action by the plaintiff, usually for consideration or under seal.
2. A release obtained by fraud, mistake or undue influence is not valid.
3. Release of one joint tortfeasor may, depending on its terms, release the others.

5. Accord and Satisfaction

1. **Accord:** an agreement between the plaintiff and the defendant to settle the claim by a substitute (e.g. payment of a sum of money).
2. **Satisfaction:** the performance of the agreement.
3. When both are complete, the right of action is extinguished.
4. If the defendant fails to perform the accord, the plaintiff may sue on the original claim or on the accord.

6. Judgment

1. A final judgment by a competent court on a cause of action bars a fresh suit on the same cause (s.11, CPC: res judicata).
2. In continuing wrongs (e.g. continuing nuisance or trespass), a fresh cause of action arises every day.

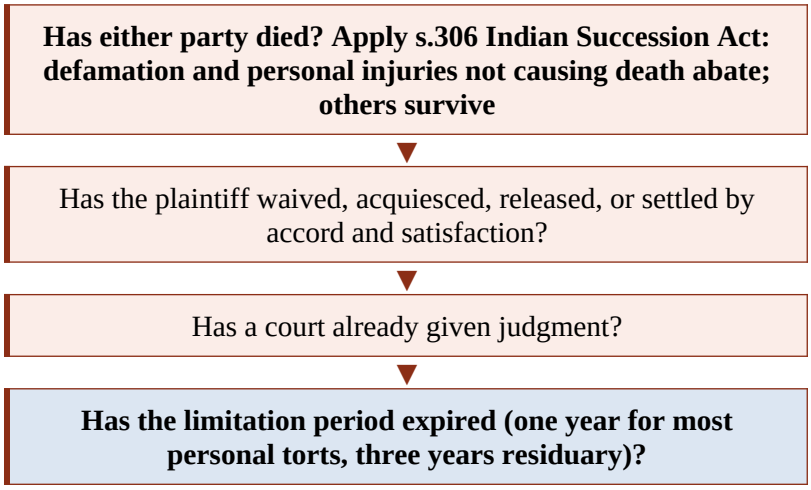
7. Limitation

1. **Limitation Act, 1963:** a suit for a tort must be filed within the period prescribed in the Schedule; otherwise it is barred (s.3), though the right itself is not extinguished, except in certain cases (e.g. s.27 for property).
2. **Some important periods (Schedule):**

Article	Suit	Period	Starting point
72	Compensation for acts done or omitted under an enactment	1 year	When the act or omission takes place
73	False imprisonment	1 year	When the imprisonment ends
74	Malicious prosecution	1 year	When the plaintiff is acquitted or the prosecution is otherwise terminated
75	Libel	1 year	When the libel is published
76	Slander	1 year	When the words are spoken or, if not actionable without special damage, when the special damage results
82	By executors or administrators under the Fatal Accidents Act, 1855	2 years	Date of death of the person killed
113	Any suit for which no period is provided elsewhere (residuary)	3 years	When the right to sue accrues

3. **Continuing wrongs (s.22):** a fresh period begins to run at every moment during which the wrong continues.
4. **Disability (s.6):** if the plaintiff is a minor, insane or an idiot when the right to sue accrues, the period begins to run when the disability ends.
5. **Fraud (s.17):** where the plaintiff's right is concealed by fraud, the period begins when the fraud is discovered.

Flowchart: Has the tort liability come to an end?



Examples

- A sues B for defamation and dies while the suit is pending. The suit abates (s.306, Indian Succession Act).
- A's land is encroached upon by B's construction. A watches B build for a year without objection. When the building is complete, A seeks an injunction to demolish it. A's acquiescence may prevent the injunction.
- A is falsely imprisoned and released on 1 January 2026. He must sue by 1 January 2027 (Art 73).

Case Laws

Case Law: Melepurath Sankunni Ezhuthassan v Thekittil Geopalankutty Nair

Year: 1986 **Court:** Supreme Court of India

Facts / Background: The appellant filed a suit for damages for defamation against the respondent. The suit was dismissed by the trial court, and the appellant's appeal was also dismissed. While his second appeal was pending, the appellant died, and his legal representatives sought to continue the appeal.

Legal Issue: Does a suit or appeal for damages for defamation survive the death of the plaintiff?

Court's Decision / What the Court Held: The Court held that, under s.306 of the Indian Succession Act, 1925, a cause of action for defamation does not survive the death of the plaintiff, and the appeal abated. It rejected the argument that, since the suit had been decided, the cause of action had merged into the decree; since the plaintiff had lost, there was no decree in his favour to survive.

Relevance to the Topic: The leading Indian case on the **actio personalis** rule as applied by s.306.

Case Law: Baker v Bolton

Year: 1808 **Court:** Court of King's Bench (Nisi Prius) (England)

Facts / Background: The plaintiff and his wife were travelling on the defendant's stage coach, which overturned because of the defendant's negligence. The wife was seriously injured and died about a month later. The husband sued for the loss of his wife's services and companionship.

Legal Issue: Can the plaintiff recover damages for the death of his wife?

Court's Decision / What the Court Held: Lord Ellenborough held that "in a civil court the death of a human being could not be complained of as an injury". The husband could recover damages only for the loss of her services between the accident and her death, not for her death itself.

Relevance to the Topic: The common law rule that death gives no cause of action, later changed by the Fatal Accidents Acts.

Important Points

- Modes of extinguishment: death, waiver, acquiescence, release, accord and satisfaction, judgment, limitation.
- Actio personalis moritur cum persona: personal actions die with the person (*Baker v Bolton*, 1808).
- India: s.306 Indian Succession Act; defamation, assault and personal injuries not causing death abate (*Melepurath*, 1986).
- The Fatal Accidents Act, 1855 and the Legal Representatives' Suits Act, 1855 are exceptions.
- Limitation: one year for false imprisonment, malicious prosecution, libel and slander; three years residuary.
- Continuing wrongs give a fresh cause of action every day (s.22, Limitation Act).

Remember: Under s.306, an action for defamation does not survive the death of the plaintiff.

UNIT 3
Torts Against Persons and Personal Relations

Topics in this Unit

3.1 Torts affecting the body: Assault, battery, mayhem, and false imprisonment.

3.2 Defamation: Libel, slander, and the law relating to privileges.

3.3 Mental and Legal Harms: Malicious prosecution, shortened expectation of life, and nervous shock.

3.4 Interference with Relations: Torts affecting marital relations, domestic relations, parental relations, and master-servant relations.

Topic 3.1: Torts affecting the body: Assault, battery, mayhem, and false imprisonment.

Introduction

The law protects every person's right to the safety of his body and his personal liberty. Interference with these rights is called **trespass to the person**. Its main forms are **assault**, **battery** and **false imprisonment**. **Mayhem** is an older form of serious bodily injury. These torts are **actionable per se**, without proof of actual damage, because they violate the absolute right to bodily security and freedom. The same acts are often also crimes under the Bharatiya Nyaya Sanhita, 2023.

Definition

> **Assault:** an act of the defendant which causes the plaintiff reasonable apprehension of the infliction of a battery on him by the defendant.

> **Battery:** the intentional and direct application of force to another person without lawful justification.

> **Mayhem:** an injury that disables a person from fighting, e.g. depriving him of a limb or an eye; in modern law, it is treated as a serious form of battery.

> **False imprisonment:** the total restraint of the liberty of a person, for however short a time, without lawful justification.

Detailed Explanation

1. Assault

Essentials

1. **Threat of force:** the defendant does an act (usually a gesture or attempt) that threatens to use force against the plaintiff.
2. **Reasonable apprehension:** the plaintiff must reasonably believe that the defendant intends to use force and has the **present ability** to carry it out.
3. **Intention:** the defendant must intend to cause such apprehension.

Important Rules

1. **Mere words are generally not an assault**, but words accompanied by threatening gestures may be. Words may also negative an assault (e.g. *Tuberville v Savage*, 1669, where the defendant put his hand on his sword and said "If it were not assize-time, I would not take such language from you"; the words showed that he did not intend to strike).

2. **Present ability:** pointing an unloaded gun at a person who does not know it is unloaded may be an assault, because the apprehension is reasonable (*R v St George*, 1840).
3. Examples: shaking a fist at someone within striking distance; advancing towards someone with a stick; setting a dog on someone.
4. **Criminal law:** s.130 BNS (s.351 IPC) defines assault.

2. Battery

Essentials

1. **Use of force:** the defendant applies force to the plaintiff's body, however slight (touching, pushing, spitting, throwing water).
2. **Directness:** the force must be applied directly (by the defendant's act), not merely consequentially.
3. **Without lawful justification:** there is no consent or other defence.
4. **Intention:** the act must be intentional or reckless; negligent harm is dealt with under negligence.

Important Rules

1. **Hostility:** *Cole v Turner* (1704) held that "the least touching of another in anger is a battery". Ordinary touching in daily life (e.g. in a crowd, a tap on the shoulder to attract attention) is not a battery.
2. **No injury is necessary:** the tort is actionable per se.
3. Medical treatment without consent is a battery, except in emergencies (necessity).
4. **Criminal law:** force (s.128 BNS), criminal force (s.129 BNS) (ss.349–350 IPC).

Basis	Assault	Battery
Nature	Apprehension of force	Actual application of force
Contact	No physical contact needed	Physical contact needed
Example	Raising a fist to strike	Actually striking
Relationship	Usually precedes battery	Usually follows assault

3. Mayhem

1. **Meaning:** mayhem is an old common law term for a serious injury that deprives a person of a limb or member useful in fighting (e.g. an arm, a leg, an eye, or front teeth), making him less able to defend himself.
2. In modern law, mayhem is no longer treated as a separate tort; it is a **serious battery** for which **aggravated damages** may be awarded.
3. **Criminal law parallel:** grievous hurt (s.116 BNS; s.320 IPC), such as permanent privation of the sight of an eye, or of any member or joint.
4. There is no well-known modern case law on mayhem as a distinct tort; such cases are decided as battery.

4. False Imprisonment

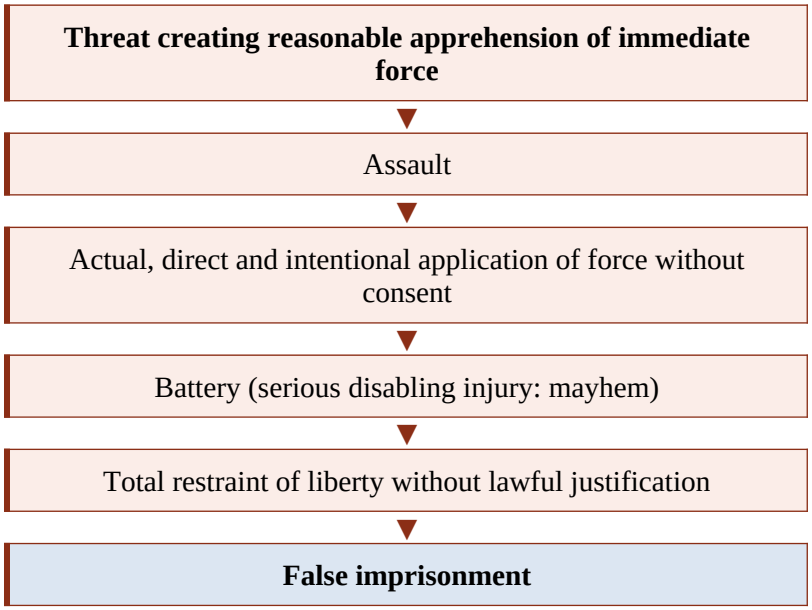
Essentials

1. **Total restraint** of the plaintiff's liberty: the plaintiff must be completely prevented from moving from a place.
2. **Without lawful justification:** e.g. not under a valid arrest or court order.

Important Rules

1. **Total, not partial, restraint:** blocking a person's path in one direction, while he is free to go another way, is not false imprisonment (*Bird v Jones*, 1845).
2. **Knowledge not essential:** the plaintiff need not know that he is being imprisoned (*Meering v Grahame-White Aviation Co*, 1919).
3. **Physical barriers not necessary:** restraint may be by threat of force or by asserting authority (e.g. a police officer telling a person he is under arrest).
4. **Duration:** any period of time, however short.
5. **Reasonable conditions:** a person who enters premises on certain conditions (e.g. a mine, a ferry) may be prevented from leaving until the conditions are satisfied (*Robinson v Balmain New Ferry Co*, 1910; *Herd v Weardale Steel, Coal and Coke Co*, 1915).
6. **Illegal detention by the State:** compensation in public law (*Rudul Sah*, 1983; *Bhim Singh*, 1985).
7. **Criminal law:** wrongful restraint (s.126 BNS; s.339 IPC) and wrongful confinement (s.127 BNS; s.340 IPC).
8. **Remedies:** damages; *habeas corpus* (Arts 32 and 226); self-help (reasonable force to escape).
9. **Limitation:** one year from the end of the imprisonment (Art 73, Limitation Act).

Flowchart: Torts to the person



Examples

- A raises a stick to strike B, who is standing nearby. B runs away. A has committed assault.
- A spits on B's face. This is battery.
- A shopkeeper locks a customer in a room for an hour, suspecting theft without reasonable grounds. This is false imprisonment.

Case Laws

Case Law: Stephens v Myers

Year: 1830 **Court:** Nisi Prius (England)

Facts / Background: At a parish meeting, the defendant became angry and advanced towards the plaintiff, who was sitting in the chair, with his fist clenched, intending to strike him. He was stopped by other persons before he could reach the plaintiff.

Legal Issue: Is advancing towards a person with intent to strike, without actually striking, an assault?

Court's Decision / What the Court Held: The Court held that this was an assault, since the defendant was advancing with intent to strike, and would have reached the plaintiff almost immediately if he had not been stopped. There was a present ability to carry out the threat.

Relevance to the Topic: The leading case on **assault**: threat plus present ability.

Case Law: Cole v Turner

Year: 1704 **Court:** Nisi Prius (England)

Facts / Background: The case concerned a claim of battery arising from physical contact between the parties. (Facts summarised briefly; the case is famous for the statement of principle by Holt C.J.)

Legal Issue: When does touching another person amount to battery?

Court's Decision / What the Court Held: Holt C.J. laid down that "the least touching of another in anger is a battery"; but if two or more meet in a narrow passage and one touches the other gently without violence, it is no battery; if any of them uses violence against the other to force his way in a rude inordinate manner, it is a battery.

Relevance to the Topic: The classic statement of the requirement of **hostile touching** in battery.

Case Law: Bird v Jones

Year: 1845 **Court:** Court of Queen's Bench (England)

Facts / Background: Part of a public highway (a bridge) was enclosed for spectators to watch a boat race. The plaintiff insisted on passing through the enclosed area. He was prevented from going forward by the defendant, but was free to go back the way he came.

Legal Issue: Is partial restraint of a person's movement false imprisonment?

Court's Decision / What the Court Held: The Court held that there was no false imprisonment, since the restraint was not total; the plaintiff was free to go in another direction.

Relevance to the Topic: False imprisonment requires **total restraint**.

Case Law: Meering v Grahame-White Aviation Co Ltd

Year: 1919 **Court:** Court of Appeal (England)

Facts / Background: The plaintiff was suspected of theft from his employers. He was taken to the company's office and kept in a waiting room, with two of the company's security officers outside. He did not know that he was being guarded and was not free to leave.

Legal Issue: Can a person be falsely imprisoned without knowing that he is imprisoned?

Court's Decision / What the Court Held: The Court held that this was false imprisonment, since the plaintiff's liberty was in fact restrained. Knowledge of the imprisonment was not necessary. Atkin L.J. observed that a person could be imprisoned without knowing it, for example while asleep, drunk or unconscious.

Relevance to the Topic: Knowledge of restraint is not necessary for false imprisonment.

Case Law: Herd v Weardale Steel, Coal and Coke Co Ltd

Year: 1915 **Court:** House of Lords (UK)

Facts / Background: A miner, who had gone down a mine for his shift, refused to continue working, claiming that the work was dangerous. He asked to be taken up before the end of his shift, but the employer refused to let him use the lift until the shift ended.

Legal Issue: Is refusing to take the miner up before the end of the shift false imprisonment?

Court's Decision / What the Court Held: The House of Lords held that there was no false imprisonment. The miner had entered the mine on the terms of his contract, and the employer was not bound to provide the lift before the agreed time.

Relevance to the Topic: Restraint according to **reasonable conditions** voluntarily accepted is not false imprisonment.

Important Points

- Assault: reasonable apprehension of immediate force (*Stephens v Myers*).
- Battery: direct and intentional application of force (*Cole v Turner*).
- Mayhem: serious disabling injury; now treated as aggravated battery.
- False imprisonment: total restraint without justification (*Bird v Jones*); knowledge not necessary (*Meering*); reasonable conditions (*Herd*).
- All are actionable per se.

- Criminal parallels in the BNS: ss.126–131 and s.116.

Remember: Mere words alone generally do not amount to an assault.

Topic 3.2: Defamation: Libel, slander, and the law relating to privileges.

Introduction

Every person has a right to his **reputation**, i.e. the good opinion that others have of him. **Defamation** is the wrong of injuring a person's reputation by making a false statement about him to others. In India, defamation is both a **tort** (civil wrong) and a **crime** (s.356 BNS; ss.499–500 IPC). The right to reputation is also part of the right to life under Article 21, and it must be balanced against the right to freedom of speech and expression under Article 19(1)(a).

Definition

> **Winfield:** "Defamation is the publication of a statement which tends to lower a person in the estimation of right-thinking members of society generally, or which tends to make them shun or avoid that person."

> **Salmond:** "The wrong of defamation consists in the publication of a false and defamatory statement concerning another person without lawful justification."

Detailed Explanation

1. Kinds of Defamation: Libel and Slander

Basis	Libel	Slander
Form	Permanent form (writing, print, picture, statue, film, recording, broadcast, online post)	Transient form (spoken words, gestures)
Appeal	To the eye (generally)	To the ear (generally)
Criminal liability (England)	Can be a crime	Not a crime in England
Actionable per se?	Yes, without proof of special damage	Only on proof of special damage, except in certain cases
Limitation (India)	1 year from publication (Art 75)	1 year from the words or from special damage (Art 76)

Slander actionable per se (in English law):

1. imputation of a criminal offence punishable with imprisonment;
2. imputation of a contagious or infectious disease;
3. imputation of unchastity to a woman (Slander of Women Act, 1891);
4. imputation of unfitness or incompetence in the plaintiff's office, profession, trade or business.

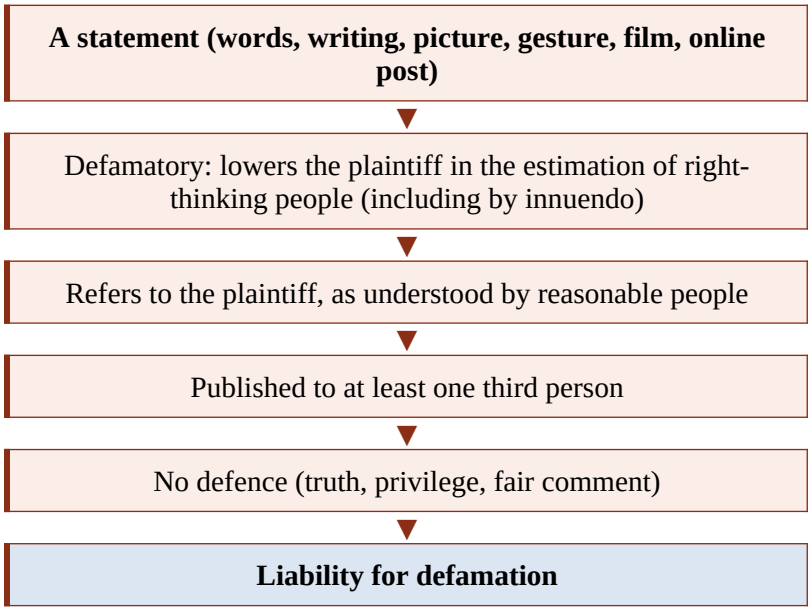
Position in India: in civil law, Indian courts have generally treated both libel and slander as actionable per se, without insisting strictly on the English distinction. In criminal law, s.356 BNS makes no distinction between libel and slander.

Broadcasts and films: in England, broadcasting and public performances of plays are treated as libel by statute (Defamation Act, 1952; Theatres Act, 1968). A film is libel (*Youssoupoff v MGM*, 1934).

2. Essentials of Defamation

1. **The statement must be defamatory:** it must tend to lower the plaintiff in the estimation of right-thinking members of society, or expose him to hatred, ridicule or contempt, or cause him to be shunned or avoided.
   - The test is the opinion of **right-thinking members of society generally**, not of a particular section.
   - **Innuendo:** a statement that is innocent on its face may be defamatory because of a secondary meaning known to those who hear or read it (*Tolley v J.S. Fry & Sons*, 1931; *Cassidy v Daily Mirror Newspapers*, 1929).
2. **The statement must refer to the plaintiff:** the reasonable reader must understand it as referring to the plaintiff. Intention to refer to him is not necessary (*E. Hulton & Co v Jones*, 1910; *Newstead v London Express Newspaper*, 1940).
   - **Defamation of a class:** a statement about a large class (e.g. "all lawyers are thieves") is not actionable by an individual member, unless it can be understood as referring to him in particular (*Knupffer v London Express Newspaper*, 1944).
3. **The statement must be published:** it must be communicated to at least one person other than the plaintiff.
   - Communication only to the plaintiff is not publication.
   - Communication between husband and wife is not publication.
   - Each repetition is a fresh publication; the person who repeats it is also liable.
   - Dictating a letter to a typist may be publication.

Flowchart: Essentials of defamation



3. Defences to Defamation

(a) Justification (Truth)

1. Truth is a complete defence in civil law. The defendant must prove that the statement is substantially true.
2. In criminal law (s.356 BNS, Exception 1), truth is a defence only if the imputation was made for the **public good**.

(b) Fair Comment

1. A fair comment on a matter of **public interest** is a defence.
2. **Essentials:**
   - It must be a **comment** (opinion), not an assertion of fact.
   - It must be on a matter of **public interest** (e.g. public conduct of public men, books, plays, films, sports).
   - It must be **fair**, i.e. an honest expression of opinion based on true facts.
   - It must not be **malicious**.

(c) Privilege

Privilege is the defence that the statement was made on an occasion where the law allows a person to speak freely, in the public interest. There are two kinds.

Absolute privilege: no action lies, even if the statement is false and made with malice. It covers:

1. **Parliamentary proceedings:** statements made in Parliament or State Legislatures, and reports published by their authority (Arts 105 and 194).
2. **Judicial proceedings:** statements by judges, lawyers, parties and witnesses in the course of judicial proceedings.
3. **State communications:** communications between high officers of State on matters of State.
4. **Communications between spouses.**

Qualified privilege: the defendant is protected only if the statement was made **honestly and without malice**. It covers:

1. Statements made in the discharge of a **legal, moral or social duty** to a person who has a corresponding interest or duty to receive it (e.g. a reference about a former servant to a prospective employer; a complaint to the police).
2. Statements made to protect one's own interest or a common interest.
3. **Fair and accurate reports** of parliamentary, judicial and public proceedings.
4. **Fair reporting on public officials:** in *R. Rajagopal v State of Tamil Nadu* (1994), the Supreme Court held that a public official cannot sue for damages for defamation in respect of acts in the discharge of official duties unless he proves that the publication was made with reckless disregard for truth; truth need not be proved by the defendant if he shows he acted after reasonable verification.

Basis	Absolute privilege	Qualified privilege
Protection	Complete, even if false and malicious	Only if made honestly, without malice
Effect of malice	Irrelevant	Defeats the defence
Examples	Parliament, courts, State communications	Duty and interest, fair reports, references

(d) Other Defences

1. **Consent:** the plaintiff consented to the publication.
2. **Apology and amends:** in England, the offer of amends under the Defamation Act, 1996; in India, an apology may reduce damages.
3. **Innocent dissemination:** distributors (e.g. newsagents, libraries) who did not know and had no reason to know of the defamatory content.

4. Defamation and the Constitution

1. Article 19(2) allows reasonable restrictions on free speech in relation to defamation.
2. In *Subramanian Swamy v Union of India* (2016), the Supreme Court upheld the constitutional validity of criminal defamation (ss.499–500 IPC), holding that the right to reputation is part of Article 21.
3. Online defamation: social media posts can be defamatory; intermediaries are protected under s.79 of the IT Act, 2000, if they observe due diligence.

5. Remedies

1. Damages (general, special, aggravated, exemplary).
2. Injunction to restrain publication or republication.
3. Criminal prosecution under s.356 BNS (simple imprisonment up to two years, or fine, or both, or community service).

Examples

- A newspaper falsely reports that a businessman evades taxes. This is libel.
- A tells a group of people that B, a doctor, is a quack. This is slander affecting B's profession.
- A former employer writes an honest but inaccurate reference about his former employee to a prospective employer. This is protected by qualified privilege, unless malice is proved.

Case Laws

Case Law: E. Hulton & Co v Jones

Year: 1910 **Court:** House of Lords (UK)

Facts / Background: A newspaper published a humorous article about "Artemus Jones", a fictional churchwarden from Peckham, describing his immoral conduct with a woman in

France. There was a real Artemus Jones, a barrister, who was not a churchwarden and did not live in Peckham, but his friends believed that the article referred to him.

Legal Issue: Is the newspaper liable when it did not intend to refer to the plaintiff?

Court's Decision / What the Court Held: The House of Lords held the newspaper liable. The test is whether reasonable people who knew the plaintiff would understand the article as referring to him, not whether the defendant intended to refer to him.

Relevance to the Topic: Intention to defame is not necessary; the test is how the statement is understood.

Case Law: Cassidy v Daily Mirror Newspapers Ltd

Year: 1929 **Court:** Court of Appeal (England)

Facts / Background: The newspaper published a photograph of Mr. Cassidy (also known as Corrigan) with a woman, with a caption announcing their engagement. Mr. Cassidy was in fact married to the plaintiff, Mrs. Cassidy, although they lived apart. Her acquaintances thought she was not his wife but was living with him in immorality.

Legal Issue: Is an innocent-looking statement defamatory because of facts known to readers (innuendo)?

Court's Decision / What the Court Held: The Court held the newspaper liable. The statement, read with the facts known to the plaintiff's acquaintances, implied that she was not married to Mr. Cassidy and was living in immorality. It was defamatory by innuendo, even though the newspaper did not know the facts.

Relevance to the Topic: Innuendo can make an innocent statement defamatory.

Case Law: Tolley v J.S. Fry & Sons Ltd

Year: 1931 **Court:** House of Lords (UK)

Facts / Background: The plaintiff was a famous amateur golfer. Without his consent, the defendants published an advertisement for their chocolate showing a caricature of him with a packet of their chocolate in his pocket. Amateurs were not supposed to receive payment for advertising.

Legal Issue: Was the advertisement defamatory, by implying that the plaintiff had prostituted his amateur status for money?

Court's Decision / What the Court Held: The House of Lords held that the advertisement was capable of a defamatory meaning by innuendo, since it suggested that the plaintiff had accepted money for the advertisement, which would be inconsistent with his status as an amateur.

Relevance to the Topic: Another example of **defamation by innuendo**.

Case Law: Youssoupoff v Metro-Goldwyn-Mayer Pictures Ltd

Year: 1934 **Court:** Court of Appeal (England)

Facts / Background: The defendants produced a film about Rasputin, showing a character, Princess Natasha, who was seduced or raped by Rasputin. The plaintiff, Princess Youssoupoff, claimed that the character would be understood as her.

Legal Issue: Is a defamatory film libel or slander, and is the imputation defamatory?

Court's Decision / What the Court Held: The Court held that the film was libel, since it was in a permanent form, and that the imputation of having been raped or seduced was defamatory, since it would cause her to be shunned and avoided. Large damages were awarded.

Relevance to the Topic: A **film** is a permanent form, and so defamation in it is **libel**.

Case Law: R. Rajagopal v State of Tamil Nadu

Year: 1994 **Court:** Supreme Court of India

Facts / Background: A Tamil magazine wished to publish the autobiography of Auto Shankar, a prisoner sentenced to death, which allegedly disclosed his links with several police and prison officials. The officials threatened action against the magazine.

Legal Issue: Can the press publish material about public officials based on public records, and what is the scope of the right to privacy and the law of defamation?

Court's Decision / What the Court Held: The Court held that the right to privacy is part of Article 21, but a person cannot claim privacy over matters that are part of public records. In the case of public officials, the remedy of damages for defamation is not available for acts and conduct relevant to the discharge of their official duties unless the official proves that the publication was made with reckless disregard for truth. The State or its officials cannot impose a prior restraint on the publication.

Relevance to the Topic: The leading Indian case on defamation of **public officials** and the press.

Important Points

- Defamation: publication of a statement that lowers a person's reputation in the eyes of right-thinking people.
- Libel: permanent form; slander: transient form. In India, both are generally actionable per se in civil law.
- Essentials: defamatory statement, reference to the plaintiff, publication.
- Innuendo (*Cassidy*, *Tolley*); intention not necessary (*Hulton v Jones*); film is libel (*Youssoupoff*).
- Defences: justification (truth), fair comment, absolute and qualified privilege, consent.
- Public officials: *R. Rajagopal* (1994).

- Criminal defamation: s.356 BNS (ss.499–500 IPC), upheld in *Subramanian Swamy* (2016).

Remember: Malice defeats qualified privilege and fair comment, but not absolute privilege.

Topic 3.3: Mental and Legal Harms: Malicious prosecution, shortened expectation of life, and nervous shock.

Introduction

The law of torts protects not only the body and property but also a person's **mind** and his freedom from **unjustified legal proceedings**. This topic deals with three such harms: **malicious prosecution** (misuse of the legal process against a person), **shortened expectation of life** (loss caused when an injury reduces a person's lifespan), and **nervous shock** (psychiatric injury caused by the defendant's wrongful act).

Definition

> **Malicious prosecution:** the institution of criminal (or certain civil) proceedings against a person maliciously and without reasonable and probable cause, which terminate in his favour and cause him damage.

> **Shortened expectation of life:** a head of damages for the loss of the prospect of a normal span of life, caused by a tortious injury.

> **Nervous shock:** a recognised psychiatric illness (not mere grief or distress) caused by the defendant's wrongful act, for which damages may be claimed.

Detailed Explanation

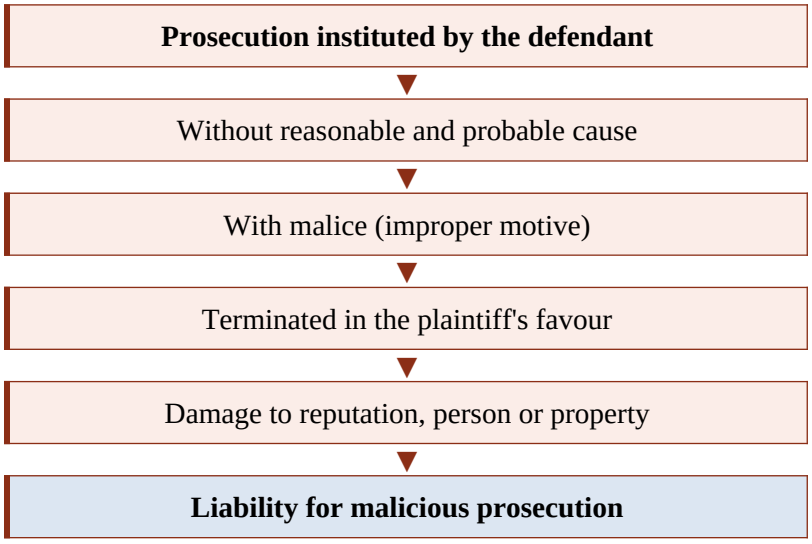
A. Malicious Prosecution

1. Essentials

The plaintiff must prove:

1. **Prosecution by the defendant:** the defendant instituted or was actively instrumental in setting the law in motion against the plaintiff (e.g. by filing a complaint or FIR). Merely giving information to the police, which the police act upon independently, may not be enough.
2. **Absence of reasonable and probable cause:** there was no honest belief, based on reasonable grounds, that the plaintiff was guilty.
3. **Malice:** the defendant acted with an improper motive, i.e. not with the purpose of bringing an offender to justice but for some other purpose, such as spite or revenge.
4. **Termination of the proceedings in favour of the plaintiff:** the plaintiff must have been acquitted or discharged, or the prosecution must have been withdrawn or quashed. No suit can be filed while the prosecution is pending.
5. **Damage:** the plaintiff suffered damage to his reputation, person (e.g. imprisonment) or property (e.g. expenses of defence).

Flowchart: Essentials of malicious prosecution



2. Burden of Proof

The burden of proving all the essentials, including the absence of reasonable and probable cause, is on the **plaintiff**.

3. Malicious Civil Proceedings

In general, malicious civil proceedings do not give rise to this tort, except in some cases such as malicious insolvency or winding-up petitions, or malicious execution against property.

4. Malicious Prosecution v False Imprisonment

Basis	Malicious prosecution	False imprisonment
Nature	Misuse of legal process	Unlawful restraint without legal process
Malice	Essential	Not essential
Damage	Must be proved	Actionable per se
Limitation	1 year from acquittal or termination (Art 74)	1 year from end of imprisonment (Art 73)

B. Shortened Expectation of Life

1. Meaning

1. When a tortious injury reduces a person's expected lifespan, he loses the prospect of a happy life for those years. This loss has been treated as a separate head of damages.
2. **Flint v Lovell (1935):** a 70-year-old man injured in a motor accident had his life expectancy reduced; the Court of Appeal allowed damages for loss of expectation of life.
3. **Benham v Gambling (1941):** the House of Lords held that the damages should be for the loss of a **prospect of a predominantly happy life**, not for the loss of years as such, and that only a moderate, conventional sum should be awarded (it reduced the award for a child to £200).

4. **England:** this head of damages was **abolished** by the Administration of Justice Act, 1982 (s.1), although the plaintiff's suffering caused by awareness of reduced life expectancy can be considered in damages for pain and suffering.

2. Position in India

1. Indian courts, especially in **motor accident** claims, award a conventional sum under the head "**loss of expectation of life**" or "**loss of estate**" to the legal representatives of the deceased.
2. In *National Insurance Co Ltd v Pranay Sethi* (2017), the Supreme Court fixed conventional amounts for "loss of estate", "loss of consortium" and "funeral expenses" (Rs. 15,000, Rs. 40,000 and Rs. 15,000 respectively), to be increased by 10% every three years.

C. Nervous Shock

1. Meaning

1. Nervous shock means a **recognised psychiatric illness** (e.g. post-traumatic stress disorder, clinical depression) caused by the shock of witnessing or learning of an injury. Mere grief, fear or distress is not enough.
2. **Primary victims:** persons who are themselves in physical danger, or reasonably fear for their own safety.
3. **Secondary victims:** persons who suffer shock from seeing or hearing of injury to others.

2. Development of the Law

Case	Year	Principle
Victorian Railways Commissioners v Coultas (PC)	1888	No recovery for nervous shock without physical impact (later rejected)
Dulieu v White & Sons	1901	Recovery allowed where the plaintiff feared for her own safety (primary victim)
Hambrook v Stokes Bros	1925	Recovery allowed for a mother who feared for her children's safety
Bourhill v Young	1943	No recovery; the plaintiff was not a foreseeable victim
McLoughlin v O'Brian	1983	Recovery for a mother who saw her family in hospital shortly after an accident (immediate aftermath)
Alcock v Chief Constable of South Yorkshire Police	1992	Control mechanisms for secondary victims

3. Control Mechanisms for Secondary Victims (Alcock)

A secondary victim can recover only if:

1. there was a **close tie of love and affection** with the primary victim (presumed for parents, children and spouses);
2. he was **close in time and space** to the accident or its immediate aftermath;

3. he perceived the accident or its aftermath with his **own unaided senses** (not through television or being told by others);
4. psychiatric injury was **reasonably foreseeable** in a person of ordinary fortitude.

4. Position in India

1. Indian courts recognise nervous shock as a head of damages, generally following English principles, especially in motor accident and consumer cases, but there are relatively few reported decisions dealing with it as a distinct tort.
2. Compensation for mental agony is also awarded in consumer cases and constitutional tort cases.

Examples

- A files a false complaint of theft against B out of personal enmity. B is arrested, tried and acquitted. B can sue A for malicious prosecution.
- A mother rushes to the hospital and sees her children severely injured in an accident caused by the defendant's negligence an hour earlier. She suffers clinical depression. She may recover for nervous shock (*McLoughlin v O'Brian*).

Case Laws

Case Law: West Bengal State Electricity Board v Dilip Kumar Ray

Year: 2007 **Court:** Supreme Court of India

Facts / Background: The respondent, an employee, had been prosecuted at the instance of the appellant Board, and the proceedings ended in his favour. He then sued the Board for damages for malicious prosecution. (Facts summarised briefly.)

Legal Issue: What must be proved to succeed in an action for malicious prosecution?

Court's Decision / What the Court Held: The Court explained the essentials of malicious prosecution: the plaintiff must prove that he was prosecuted by the defendant, that the prosecution ended in his favour, that it was instituted without reasonable and probable cause, that it was instituted maliciously (with an improper purpose), and that he suffered damage. The Court explained "reasonable and probable cause" as an honest belief in the guilt of the accused based on a full conviction, founded upon reasonable grounds, of the existence of circumstances that would lead an ordinarily prudent and cautious person to the conclusion that the person charged was probably guilty.

Relevance to the Topic: The leading Indian statement of the **essentials of malicious prosecution**.

Case Law: Dulieu v White & Sons

Year: 1901 **Court:** King's Bench Division (England)

Facts / Background: The plaintiff, a pregnant woman, was behind the bar of her husband's public house when the defendants' servant negligently drove a horse-drawn van into the premises. She was not physically hurt, but she suffered severe nervous shock, and gave birth

prematurely.

Legal Issue: Can damages be recovered for nervous shock without physical impact?

Court's Decision / What the Court Held: The Court held that the plaintiff could recover, because the shock arose from a reasonable fear of immediate personal injury to herself.

Relevance to the Topic: The beginning of recovery for **nervous shock** for a primary victim.

Case Law: Bourhill v Young

Year: 1943 **Court:** House of Lords (UK)

Facts / Background: A motorcyclist (Young) negligently collided with a car and was killed. The plaintiff, a pregnant fishwife, was getting off a tram about 45 feet away. She did not see the accident but heard the crash, and later saw blood on the road. She suffered nervous shock and gave birth to a stillborn child.

Legal Issue: Did the motorcyclist owe a duty of care to the plaintiff?

Court's Decision / What the Court Held: The House of Lords held that the motorcyclist owed no duty of care to the plaintiff, because she was outside the area of foreseeable danger, and it was not reasonably foreseeable that a person in her position would suffer nervous shock.

Relevance to the Topic: Liability for nervous shock depends on the **foreseeability** of harm to the plaintiff.

Case Law: Alcock v Chief Constable of South Yorkshire Police

Year: 1992 **Court:** House of Lords (UK)

Facts / Background: At the Hillsborough football stadium disaster in 1989, 95 people were crushed to death (the toll later rose) due to the police's negligence in crowd control. Relatives of the victims, some of whom were in the stadium and some of whom watched the events on live television, sued for nervous shock.

Legal Issue: When can secondary victims recover damages for nervous shock?

Court's Decision / What the Court Held: The House of Lords laid down the control mechanisms: a close tie of love and affection, proximity in time and space to the event or its immediate aftermath, and perception by the plaintiff's own unaided senses. All the claimants before the House of Lords failed, including those who watched the events on television.

Relevance to the Topic: The leading case on **secondary victims** of nervous shock.

Important Points

- Malicious prosecution: prosecution by the defendant, without reasonable and probable cause, with malice, terminated in the plaintiff's favour, causing damage (*Dilip Kumar Ray*).

- Limitation: one year from acquittal (Art 74).
- Shortened expectation of life: conventional damages (*Flint v Lovell*, *Benham v Gambling*); abolished in England in 1982; in India, "loss of estate" in motor accident cases (*Pranay Sethi*, 2017).
- Nervous shock: recognised psychiatric illness; primary victims (*Dulieu v White*); foreseeability (*Bourhill v Young*); control mechanisms for secondary victims (*Alcock*).

Remember: Mere grief or distress is not nervous shock; a recognised psychiatric illness is required.

Topic 3.4: Interference with Relations: Torts affecting marital relations, domestic relations, parental relations, and master-servant relations.

Introduction

The law protects certain family and service relationships. When a third person wrongfully interferes with these relationships, causing the loss of the society or services of a spouse, child or servant, the injured party may sue. These torts developed in English common law when wives, children and servants were treated as giving "services" to the husband, father or master. Many of these actions have been abolished in England, and they are rarely used in India, but they remain part of the syllabus as a recognised branch of the law of torts.

Definition

> **Consortium:** the right of a spouse to the society, companionship, affection, comfort and services of the other spouse.

> **Per quod servitium amisit:** "whereby he lost the services". It is the basis of the master's or parent's action for loss of services of a servant or child injured by the defendant.

Detailed Explanation

1. Torts Affecting Marital Relations

Loss of Consortium

1. **The husband's action:** at common law, a husband could sue a person who, by a tortious act (e.g. negligence or battery), injured his wife and deprived him of her consortium and services.
2. **The wife's action:** at common law, a wife had no corresponding action for loss of her husband's consortium (*Best v Samuel Fox & Co*, 1952).
3. **England:** the husband's action was abolished by the Administration of Justice Act, 1982.
4. **India:** in motor accident cases, the Supreme Court awards compensation for "**loss of consortium**" to the spouse, children and parents of a deceased person. In *Magma General Insurance Co v Nanu Ram* (2018) and *United India Insurance Co v Satinder Kaur* (2020), it recognised "spousal consortium", "parental consortium" and "filial consortium".

Enticement and Harbouring

1. Enticing a spouse away, or harbouring a spouse who has left, without justification, was actionable at common law.
2. These actions were abolished in England by the Law Reform (Miscellaneous Provisions) Act, 1970.

Adultery

1. At common law, a husband could claim damages from a man who committed adultery with his wife ("criminal conversation"). This was later replaced by a claim for damages in divorce proceedings, and then abolished in England (1970).
2. In India, adultery is a ground for divorce, and s.497 IPC (criminal adultery) was struck down in *Joseph Shine v Union of India* (2018); adultery is not an offence under the BNS.

2. Torts Affecting Parental Relations

Loss of Services of a Child

1. A parent could sue a person who injured his child, if the child was rendering services to the parent (even slight services, such as helping at home), on the basis of *per quod servitium amisit*.
2. **Seduction:** a parent could sue a man who seduced his daughter, causing her to be unable to render services (e.g. due to pregnancy). The action was based on loss of services, not the injury to the daughter. It was abolished in England in 1970.
3. **Abduction:** taking a child away from the lawful custody of the parent or guardian, without consent, is a tort.
4. **Limitation in India:** a suit for compensation for loss of service occasioned by the seduction of the plaintiff's servant or daughter must be brought within one year (Art 77, Limitation Act).

Modern Approach

1. Injured children can sue in their own right for injuries.
2. Parents may claim expenses incurred for the child's treatment.
3. In death cases, parents can claim compensation under the Fatal Accidents Act, 1855 and the Motor Vehicles Act, 1988.

3. Torts Affecting Domestic Relations

1. Domestic relations include relations within the household, such as with domestic servants and family members.
2. Interference with domestic relations is usually dealt with through the master's action for loss of services or the parental actions above.

4. Torts Affecting Master-Servant Relations

Action per quod servitium amisit

1. A master could sue a person who wrongfully injured his servant, causing the master to lose the servant's services.
2. **IRC v Hambrook (1956):** the Crown could not sue for the loss of services of a civil servant injured by a negligent driver, because the action is limited to menial or domestic servants.
3. Abolished in England by the Administration of Justice Act, 1982.

Enticement and Harbouring of a Servant

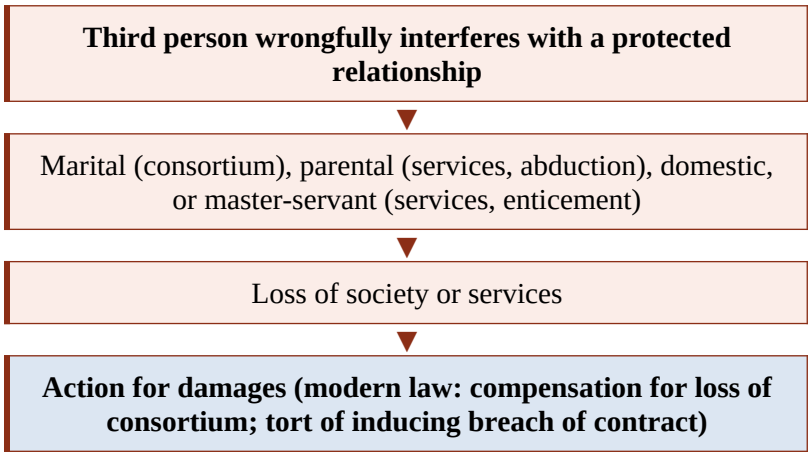
1. Persuading a servant to leave his master's service in breach of contract is actionable.
2. Knowingly employing a servant who has left his master in breach of contract is also actionable.

Inducing Breach of Contract

1. A person who knowingly and intentionally induces another to break a contract with a third person, causing loss, commits the tort of inducing breach of contract.
2. This tort originated in the master-servant context in *Lumley v Gye* (1853), but now applies to all contracts.
3. **Essentials:** a valid contract; the defendant's knowledge of it; intention to induce a breach; actual breach; damage.
4. **Limitation in India:** one year from the date of the breach (Art 78, Limitation Act).

Relationship	Torts	Status in modern law
Marital	Loss of consortium, enticement, harbouring, adultery	Mostly abolished in England; loss of consortium recognised in Indian motor accident cases
Parental	Loss of services, seduction, abduction	Seduction abolished in England; abduction remains; Art 77 in India
Domestic	Loss of services of household members	Rarely used
Master and servant	Per quod servitium amisit, enticement, inducing breach of contract	Inducing breach of contract remains important

Flowchart: Interference with relations



Examples

- A rival theatre owner persuades a famous singer under contract with another theatre to sing for him instead, in breach of contract. The first theatre owner can sue for inducing breach of contract.

- A man is killed in a motor accident. His wife, children and parents receive compensation for loss of spousal, parental and filial consortium under the Motor Vehicles Act.

Case Laws

Case Law: Lumley v Gye

Year: 1853 **Court:** Court of Queen's Bench (England)

Facts / Background: Johanna Wagner, a famous opera singer, had agreed to sing exclusively at Lumley's theatre (Her Majesty's Theatre) for a period. Gye, the manager of a rival theatre (Covent Garden), knowing of the contract, induced her to break it and sing for him.

Legal Issue: Can a person who knowingly induces another to break a contract with a third person be sued in tort?

Court's Decision / What the Court Held: The Court held that Gye was liable in tort for maliciously procuring the breach of the contract. The action for enticing a servant was extended to the singer, who was in a position analogous to a servant.

Relevance to the Topic: The origin of the tort of **inducing breach of contract**, from the master-servant relationship.

Case Law: Best v Samuel Fox & Co Ltd

Year: 1952 **Court:** House of Lords (UK)

Facts / Background: The plaintiff's husband was injured at work due to the negligence of the defendants, his employers. As a result, he became impotent, and the plaintiff lost the possibility of sexual relations and having children. She sued for loss of consortium.

Legal Issue: Can a wife sue for loss of her husband's consortium caused by the negligent injury of her husband?

Court's Decision / What the Court Held: The House of Lords held that a wife had no right of action for loss of consortium caused by negligent injury to her husband. Their Lordships declined to extend the husband's anomalous common law action to the wife.

Relevance to the Topic: The common law did not recognise the **wife's action for loss of consortium**.

Case Law: Inland Revenue Commissioners v Hambrook

Year: 1956 **Court:** Court of Appeal (England)

Facts / Background: A civil servant employed by the Inland Revenue was injured in a road accident caused by the defendant's negligence. The Crown, as employer, paid his salary during his absence and sued the defendant for the loss of his services.

Legal Issue: Can the Crown sue for the loss of services of a civil servant under the action per quod servitium amisit?

Court's Decision / What the Court Held: The Court held that the action was not available, because it applied only to menial or domestic servants who were members of the master's household, and a civil servant was not such a servant.

Relevance to the Topic: The narrow scope of the **master's action for loss of services**.

Important Points

- Consortium: the right of a spouse to the society and services of the other spouse.
- At common law, the husband (not the wife) could sue for loss of consortium (*Best v Samuel Fox*).
- India: compensation for spousal, parental and filial consortium in motor accident cases.
- Per quod servitium amisit: action by a parent or master for loss of services; limited to domestic servants (*IRC v Hambrook*).
- Seduction, enticement and harbouring have been abolished in England.
- Inducing breach of contract (*Lumley v Gye*, 1853) is the most important modern survivor.

Remember: Many of these old actions are rarely used today, but loss of consortium is a regular head of compensation in Indian motor accident claims.

UNIT 4
Wrongs Affecting Property, Business, and Nuisance

Topics in this Unit

4.1 Torts against Immovable Property: Trespass to land, trespass ab initio, and dispossession.

4.2 Torts against Movable Property: Trespass to goods, detinue, and conversion.

4.3 Torts against Business Interests: Injurious falsehood, misstatements, and passing off.

4.4 Nuisance: Definition, essentials, and types; Acts constituting nuisance (obstructions of highways, interference with light and air, pollution of air, water, and noise).

Topic 4.1: Torts against Immovable Property: Trespass to land, trespass ab initio, and dispossession.

Introduction

A person in possession of land has the right to enjoy it without interference by others. The law of torts protects this right through the tort of **trespass to land**. Trespass is one of the oldest torts and is **actionable per se**, i.e. without proof of actual damage. Related topics are **trespass ab initio**, where a lawful entry becomes a trespass from the beginning because of later abuse, and **dispossession**, where a person is wrongfully deprived of possession of land.

Definition

> **Trespass to land:** the unjustifiable, direct and intentional interference with the possession of land of another person.

> **Winfield:** trespass to land is "unjustifiable interference with the possession of land".

Detailed Explanation

1. Essentials of Trespass to Land

1. **Interference with possession:** the plaintiff must be in possession of the land (not necessarily the owner). A tenant in possession can sue, even against the landlord. An owner out of possession cannot sue for trespass but may sue for recovery of possession.
2. **Direct interference:** the interference must be direct (e.g. entering the land, placing an object on it). Indirect interference (e.g. smoke or noise) is a nuisance, not a trespass.
3. **Without lawful justification:** there is no consent, licence or legal authority.
4. **Intention or negligence:** the act of entry must be voluntary. A mistaken belief that the land is one's own is not a defence.
5. **No damage is necessary:** trespass is actionable per se.

2. Forms of Trespass to Land

1. **Entry on land:** walking on, driving on, or entering a building on the land.
2. **Remaining on land:** remaining after the licence to stay has ended (e.g. a guest who refuses to leave when asked).
3. **Placing objects on land:** throwing stones, dumping waste, or placing a ladder against a wall.
4. **Trespass to airspace and subsoil:** the possessor of land owns the airspace above it and the subsoil below it to a reasonable extent (*cujus est solum ejus est usque ad coelum et ad inferos*: whoever owns the soil owns up to the heavens and down to the depths).
   - A sign projecting into the plaintiff's airspace is a trespass (*Kelsen v Imperial Tobacco Co*, 1957).
   - Aircraft flying at a reasonable height do not trespass (*Bernstein v Skyviews & General Ltd*, 1978).

- Tunnelling or mining under another's land is a trespass.

5. **Trespass by animals:** cattle trespass is a separate category; the owner of straying cattle may be liable.

3. Defences to Trespass

1. **Licence (consent):** permission to enter. A bare licence can be revoked; a licence coupled with an interest (or contract) may not be revoked at will.
2. **Legal authority:** entry under statutory power, e.g. police with a search warrant, officers executing a decree.
3. **Necessity:** e.g. entering land to put out a fire.
4. **Re-entry by the person entitled:** a person entitled to possession may re-enter using reasonable force (but see the Indian position on dispossession below).
5. **Easement or right of way:** e.g. a right of way over another's land.
6. **Adverse possession:** after the limitation period (12 years for private land, 30 years for government land under the Limitation Act), the title of the true owner is extinguished.

4. Trespass Ab Initio

1. **Meaning:** "trespass from the beginning". When a person enters land under **authority given by law** (not by the occupier's permission) and later **abuses** that authority by a positive wrongful act, his entry becomes a trespass from the very beginning.
2. **The Six Carpenters' Case (1610):** six carpenters entered an inn (which they had a legal right to do), ordered and consumed wine and bread, and refused to pay. The Court held that they were not trespassers ab initio, because the refusal to pay was a **mere non-feasance** (omission), not a positive act (misfeasance).
3. **Rules:**
   - The doctrine applies only to entry under **authority of law**, not entry under the permission of the occupier.
   - The abuse must be a **positive wrongful act** (misfeasance), not a mere omission (non-feasance).
4. **Examples:**
   - A police officer enters a house with a search warrant and then steals some property. He becomes a trespasser ab initio.
   - A person exercising a right of way stops to cause damage to the land.
5. **Criticism:** in *Chic Fashions (West Wales) Ltd v Jones* (1968), Lord Denning doubted the doctrine, and in *Elias v Pasmore* (1934), it was held that if part of what was done was lawful, the entry did not become wholly unlawful. The doctrine is now of limited importance.

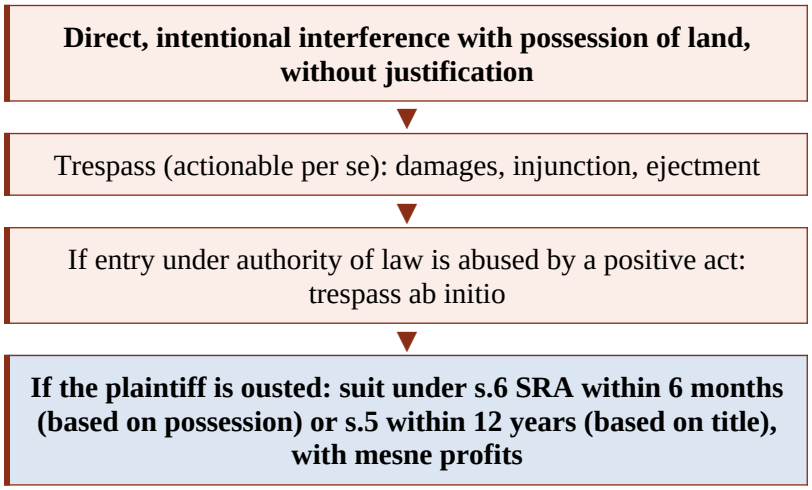
5. Dispossession

1. **Meaning:** dispossession is the wrongful taking away of possession of land from a person in possession, i.e. he is ousted from the land.
2. **Remedies of the dispossessed person:**
   - **Suit for recovery of possession** based on title (s.5, Specific Relief Act, 1963), within 12 years (Art 65, Limitation Act).

- **Summary suit based on possession** (s.6, Specific Relief Act, 1963): a person dispossessed without his consent, otherwise than in due course of law, may recover possession within **six months** of dispossession, without proving title. No appeal lies from such an order, but a review is allowed. The suit cannot be filed against the Government.
- **Mesne profits:** damages for the period during which the plaintiff was kept out of possession (s.2(12), CPC).
- **Injunction** to prevent threatened dispossession.
- **Criminal law:** criminal trespass (s.329 BNS; s.441 IPC) and house trespass; proceedings under s.164 BNSS (s.145 CrPC) for disputes likely to cause a breach of peace.

3. **Re-entry and self-help in India:** in India, even a true owner cannot forcibly dispossess a person in **settled possession**; he must use due process of law (*Rame Gowda v M. Varadappa Naidu*, 2004).

Flowchart: Remedies for trespass and dispossession



Examples

- A walks across B's field without permission. Even though no crops are damaged, B can sue A for trespass.
- A builds a wall that encroaches a few inches onto B's land. B can sue for trespass and seek a mandatory injunction to remove the wall.
- A is forcibly evicted from his house by B. Within six months, A can file a suit under s.6 of the Specific Relief Act to recover possession, without proving title.

Case Laws

Case Law: Entick v Carrington

Year: 1765 **Court:** Court of Common Pleas (England)

Facts / Background: The Secretary of State issued a general warrant to the King's messengers to search for and seize the papers of John Entick, who was suspected of writing seditious pamphlets. The messengers broke into his house and took away his papers.

Legal Issue: Were the King's messengers liable for trespass, or could they rely on the Secretary of State's warrant?

Court's Decision / What the Court Held: The Court held that the messengers were liable for trespass, since there was no law authorising the Secretary of State to issue such a general warrant. Lord Camden said that "by the laws of England every invasion of private property, be it ever so minute, is a trespass".

Relevance to the Topic: A foundational case on **trespass to land** and the rule of law: officials need legal authority for entry.

Case Law: The Six Carpenters' Case

Year: 1610 **Court:** Court of King's Bench (England)

Facts / Background: Six carpenters entered an inn and ordered a quart of wine and some bread. They consumed them and paid. Then they ordered another quart of wine and some bread, consumed them, and refused to pay. The innkeeper sued them for trespass.

Legal Issue: Did the carpenters' refusal to pay make them trespassers ab initio?

Court's Decision / What the Court Held: The Court held that they were not trespassers ab initio, because the refusal to pay was a mere non-feasance (omission), and the doctrine applies only to a positive wrongful act (misfeasance) by a person who entered under authority of law.

Relevance to the Topic: The leading case on **trespass ab initio**.

Case Law: Kelsen v Imperial Tobacco Co Ltd

Year: 1957 **Court:** Queen's Bench Division (England)

Facts / Background: The defendants put up an advertising sign on the building next to the plaintiff's shop. The sign projected about eight inches into the airspace above the plaintiff's shop.

Legal Issue: Is an intrusion into the airspace above the plaintiff's land a trespass?

Court's Decision / What the Court Held: The Court held that the intrusion was a trespass to the plaintiff's airspace, not merely a nuisance, and granted a mandatory injunction to remove the sign.

Relevance to the Topic: Trespass extends to the **airspace** above land.

Case Law: Rame Gowda v M. Varadappa Naidu

Year: 2004 **Court:** Supreme Court of India

Facts / Background: The plaintiff was in possession of a piece of land. The defendant, claiming to be the owner, tried to dispossess him by force. The plaintiff sued for an injunction to protect his possession.

Legal Issue: Can a true owner forcibly dispossess a person in settled possession, and can a person in settled possession defend his possession even against the true owner?

Court's Decision / What the Court Held: The Court held that a person in **settled possession** of property, even if he has no title, is entitled to defend his possession against the true owner, who must take recourse to law to recover possession. The true owner cannot take the law into his own hands. Possession must be settled, i.e. effective, undisturbed and to the knowledge of the owner, and not a stray or casual act of possession.

Relevance to the Topic: The Indian law on **dispossession and self-help**.

Important Points

- Trespass to land: direct and intentional interference with possession, actionable per se (*Entick v Carrington*).
- The plaintiff must be in possession; a tenant can sue the landlord.
- Trespass extends to airspace (*Kelsen*) and subsoil, to a reasonable extent (*Bernstein*).
- Trespass ab initio: entry under authority of law abused by a positive act (*Six Carpenters' Case*).
- Dispossession: s.6 SRA (six months, based on possession); s.5 SRA (title, 12 years).
- A person in settled possession can defend it even against the true owner (*Rame Gowda*, 2004).

Remember: Non-feasance does not make an entry a trespass ab initio; only misfeasance does.

Topic 4.2: Torts against Movable Property: Trespass to goods, detinue, and conversion.

Introduction

The law protects not only land but also **movable property (goods or chattels)**. A person's goods may be wrongfully interfered with in three main ways: **trespass to goods** (direct interference with possession), **detinue** (wrongful detention after demand) and **conversion** (dealing with goods in a way inconsistent with the owner's rights). In England, these are now governed by the Torts (Interference with Goods) Act, 1977, which abolished detinue as a separate tort and merged it with conversion. In India, the common law principles continue to apply, along with the Specific Relief Act, 1963.

Definition

> **Trespass to goods:** a wrongful, direct and intentional interference with goods in the possession of another person.

> **Detinue:** the wrongful detention of the goods of another person, after a demand for their return.

> **Conversion:** "an act of wilful interference, without lawful justification, with any chattel in a manner inconsistent with the right of another, whereby that other is deprived of the use and possession of it" (Salmond).

Detailed Explanation

1. Trespass to Goods

Essentials

1. The plaintiff must be in **possession** of the goods at the time of the interference.
2. There must be a **direct** interference (e.g. moving, damaging, taking away, touching).
3. The interference must be **intentional or negligent**.
4. **No damage is required:** it is generally actionable per se.

Examples

1. Moving goods from one place to another (*Kirk v Gregory*, 1876).
2. Scratching a car, beating an animal, removing a car's tyres.
3. Taking away goods temporarily.

Defences

Consent, lawful authority (e.g. seizure under a warrant), necessity, and the right to retake one's goods with reasonable force.

2. Detinue

1. **Meaning:** the wrongful detention (keeping) of the plaintiff's goods after he has demanded their return and the defendant has refused.
2. **Essentials:**
   - The plaintiff has the right to **immediate possession** of the goods.
   - The defendant is in **possession** of the goods.
   - The plaintiff **demanded** their return, and the defendant **refused** without lawful excuse.
3. **Remedy:** return of the specific goods (specific restitution) or their value, plus damages for detention. In India, see **ss.7 and 8, Specific Relief Act, 1963**.
4. **Example:** A lends his book to B. A asks for its return, but B refuses. A can sue B in detinue.

3. Conversion

Essentials

1. The plaintiff has **ownership or the right to possession** of the goods.
2. The defendant **wilfully** deals with the goods in a manner **inconsistent** with the plaintiff's rights.
3. The plaintiff is **deprived** of the use and possession of the goods.

Forms of Conversion

1. **Taking:** taking goods out of the possession of another with the intention of exercising permanent or temporary dominion over them.
2. **Detention:** refusing to return goods after demand (this overlaps with detinue).
3. **Wrongful delivery:** delivering goods to a person not entitled to them (e.g. a carrier delivering to the wrong person).
4. **Wrongful disposition:** selling or pledging another's goods.
5. **Destruction:** destroying or materially altering goods (e.g. converting wheat into flour).
6. **Use:** using the goods as one's own.

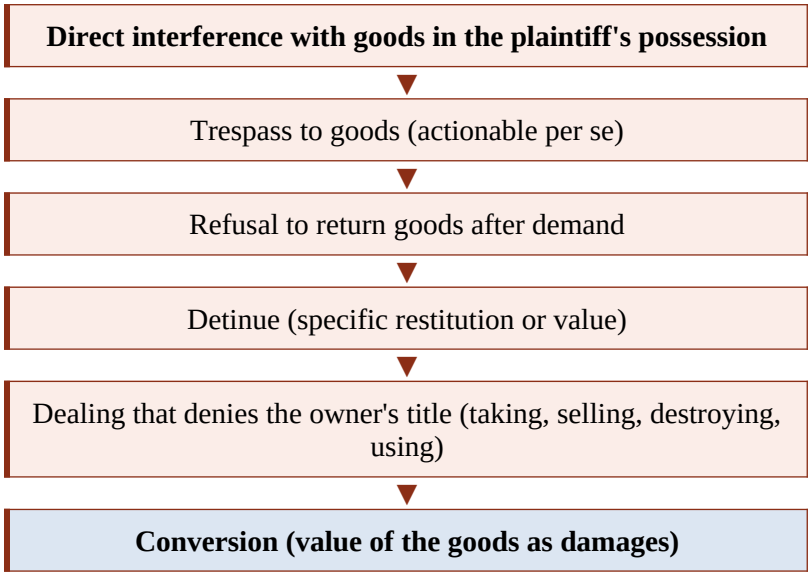
Important Rules

1. **Mistake or good faith is no defence.** An auctioneer or broker who innocently sells stolen goods is liable (*Hollins v Fowler*, 1875).
2. **Mere moving** of goods without denying the owner's title is not conversion, though it may be trespass (*Fouldes v Willoughby*, 1841).
3. **Finder's title:** a finder of goods has a good title against everyone except the true owner (*Armory v Delamirie*, 1722).
4. **Remedy:** damages equal to the value of the goods at the time of conversion, plus consequential loss.

Basis	Trespass to goods	Detinue	Conversion
Essence	Direct interference with possession	Wrongful detention after demand	Dealing inconsistent with the owner's rights

Basis	Trespass to goods	Detinue	Conversion
Plaintiff's interest	Possession	Right to immediate possession	Ownership or right to possession
Demand and refusal	Not needed	Essential	Not essential (except in conversion by detention)
Remedy	Damages	Return of the goods or their value, plus damages	Damages (value of the goods)
Example	Moving or scratching a car	Refusing to return a borrowed book	Selling another's car

Flowchart: Wrongs to goods



Examples

- A borrows B's bicycle for a day and then sells it to C. A has committed conversion. C may also be liable for conversion, even if he bought it in good faith.
- A moves B's car a few feet to make space for his own car, without permission. This is trespass to goods, but not conversion.

Case Laws

Case Law: Kirk v Gregory

Year: 1876 **Court:** Court of Exchequer (England)

Facts / Background: After the death of a man, his sister-in-law (the defendant) removed some jewellery from the room where he lay dead to another room in the house, thinking it would be safer there. The jewellery was stolen from that room. The executor sued her for trespass to goods.

Legal Issue: Is moving goods, even with good intentions, a trespass to goods?

Court's Decision / What the Court Held: The Court held that the defendant was liable for

trespass to goods, since she had moved the jewellery without authority, and it was not shown that the removal was reasonably necessary for its protection. Only nominal damages were awarded.

Relevance to the Topic: Even moving goods with good intentions is **trespass to goods**.

Case Law: Hollins v Fowler

Year: 1875 **Court:** House of Lords (UK)

Facts / Background: A rogue obtained cotton from the plaintiffs by fraud. The defendant, a cotton broker, bought the cotton from the rogue in good faith and sold it to a third person, receiving only his commission.

Legal Issue: Is a person who innocently deals with goods in a manner inconsistent with the owner's rights liable for conversion?

Court's Decision / What the Court Held: The House of Lords held the defendant liable for conversion, because he had dealt with the cotton in a manner that denied the plaintiff's title, even though he acted in good faith and without knowledge of the fraud.

Relevance to the Topic: Good faith is no defence in conversion.

Case Law: Fouldes v Willoughby

Year: 1841 **Court:** Court of Exchequer (England)

Facts / Background: The plaintiff came on board the defendant's ferry with two horses. Following a dispute, the defendant asked him to remove the horses, and when he refused, the defendant put them ashore. The plaintiff remained on board and crossed the river, and later lost the horses.

Legal Issue: Was putting the horses ashore an act of conversion?

Court's Decision / What the Court Held: The Court held that this was not conversion, because the defendant did not intend to deny the plaintiff's title to the horses or to exercise dominion over them. At most, it could be trespass.

Relevance to the Topic: Mere moving of goods without denying the owner's title is not conversion.

Case Law: Armory v Delamirie

Year: 1722 **Court:** Court of King's Bench (England)

Facts / Background: A chimney sweep's boy found a jewel and took it to a goldsmith's shop to find out its value. The goldsmith's apprentice took out the stones and refused to return them, offering a small sum instead. The boy sued the goldsmith.

Legal Issue: Does a finder of goods have a right to them against everyone except the true owner?

Court's Decision / What the Court Held: The Court held that the finder of a jewel has a title that is good against everyone except the true owner. The goldsmith was liable (vicariously for his apprentice), and in the absence of evidence of the value, the jury was directed to assume that the stones were of the finest quality.

Relevance to the Topic: The **finder's title** and the presumption against a wrongdoer.

Important Points

- Trespass to goods: direct interference with possession, actionable per se (*Kirk v Gregory*).
- Detinue: wrongful detention after demand; remedy of specific restitution (ss.7–8, Specific Relief Act).
- Conversion: dealing inconsistent with the owner's title; good faith no defence (*Hollins v Fowler*); mere moving not conversion (*Fouldes v Willoughby*).
- A finder's title is good against all except the true owner (*Armory v Delamirie*).
- In England, detinue was abolished by the Torts (Interference with Goods) Act, 1977.

Remember: In conversion, the defendant's innocence or good faith is no defence.

Topic 4.3: Torts against Business Interests: Injurious falsehood, misstatements, and passing off.

Introduction

Business interests such as goodwill, reputation of goods and trade, and economic relations are valuable. The law of torts protects them against unfair interference. This topic covers three important torts: **injurious falsehood** (false statements damaging a business), **misstatements** (deceit and negligent misstatement causing financial loss) and **passing off** (misrepresenting one's goods as those of another).

Definition

> **Injurious falsehood (malicious falsehood):** a false statement made maliciously by the defendant about the plaintiff's goods, property or business, to third persons, which causes the plaintiff financial loss.

> **Deceit (fraudulent misstatement):** a false statement made knowingly, or without belief in its truth, or recklessly, with the intention that the plaintiff should act on it, which the plaintiff acts upon and suffers loss.

> **Negligent misstatement:** a false statement made carelessly by a person who owes a duty of care to the person who relies on it.

> **Passing off:** a misrepresentation by a trader that his goods or services are those of another trader, causing damage to the goodwill of that trader.

Detailed Explanation

1. Injurious Falsehood

Essentials

1. A **false statement** about the plaintiff's goods, property or business.
2. Made **maliciously**, i.e. knowing it to be false, or recklessly, or with an improper motive.
3. Published to **third persons**.
4. **Special damage** to the plaintiff (actual financial loss), although in England the Defamation Act, 1952 (s.3) removed this requirement in certain cases.

Forms

1. **Slander of title:** a false statement that the plaintiff has no title to his property (e.g. claiming that the plaintiff's land belongs to someone else).
2. **Slander of goods:** a false statement disparaging the quality of the plaintiff's goods.

3. **Other falsehoods:** false statements about the plaintiff's business, e.g. that it has closed down (*Ratcliffe v Evans*, 1892).

Injurious Falsehood v Defamation

Basis	Injurious falsehood	Defamation
Protects	Economic interests and business	Personal reputation
Malice	Essential	Not essential
Damage	Special (financial) damage generally required	Libel actionable per se
Truth	The plaintiff must prove falsity	Truth is a defence to be proved by the defendant

Comparative Advertising

1. A trader may "puff" his own goods (claiming they are the best), but he cannot make false statements about the goods of a rival.
2. In India, courts have granted injunctions in disparagement cases (e.g. *Reckitt & Colman of India Ltd v Kiwi T.T.K. Ltd*, Delhi High Court, 1996, and *Pepsi Co Inc v Hindustan Coca Cola Ltd*, Delhi High Court, 2003).

2. Misstatements

Deceit (Fraudulent Misstatement)

1. **Derry v Peek (1889):** fraud is proved when it is shown that a false representation has been made (a) knowingly, or (b) without belief in its truth, or (c) recklessly, careless whether it is true or false.
2. **Essentials of deceit:**
   - A false representation of fact.
   - Knowledge of falsity or recklessness.
   - Intention that the plaintiff should act on it.
   - The plaintiff acted on it.
   - The plaintiff suffered damage.
3. Honest belief, however unreasonable, is not fraud (*Derry v Peek*).

Negligent Misstatement

1. Before 1964, there was no liability for an honest but careless statement causing purely financial loss, unless there was a contract or a fiduciary relationship (*Candler v Crane, Christmas & Co*, 1951, majority).
2. **Hedley Byrne & Co v Heller & Partners (1964):** the House of Lords held that a person who makes a statement in a situation of **special relationship**, where he knows or ought to know that the other will rely on his skill and judgment, owes a duty of care. If he makes the statement carelessly and the other relies on it and suffers loss, he is liable.
3. **Requirements:**
   - A special relationship (assumption of responsibility).

- Reasonable reliance by the plaintiff.
- Financial loss.
- No effective disclaimer.

4. **Limits:** *Caparo Industries v Dickman* (1990): auditors of a company owed no duty to potential investors who relied on the audited accounts to buy shares, because the accounts were prepared for shareholders as a body, not for investment decisions.
5. **India:** courts have applied these principles, and professionals (e.g. accountants, valuers, advocates) may also be liable under consumer law.

3. Passing Off

Meaning

1. "Nobody has any right to represent his goods as the goods of somebody else" (Lord Halsbury in *Reddaway v Banham*, 1896).
2. Passing off protects the **goodwill** of a business, i.e. the attractive force that brings in customers, associated with a name, mark, get-up or trade dress.

The Classical Trinity (Reckitt & Colman v Borden, 1990)

1. **Goodwill:** the plaintiff has goodwill or reputation attached to his goods or services, by association with an identifying name, mark or get-up.
2. **Misrepresentation:** the defendant has made a misrepresentation to the public (whether intentional or not) likely to lead them to believe that his goods or services are those of the plaintiff.
3. **Damage:** the plaintiff suffers, or is likely to suffer, damage due to the misrepresentation.

The Extended Form (Advocaat Case, 1979)

In *Erven Warnink BV v J. Townend & Sons* (1979), Lord Diplock laid down five characteristics: (1) a misrepresentation, (2) made by a trader in the course of trade, (3) to prospective customers or ultimate consumers, (4) calculated to injure the business or goodwill of another trader, and (5) causing actual damage or likely damage.

Passing Off and Trade Mark Infringement

Basis	Passing off	Trade mark infringement
Source	Common law tort	Statute (Trade Marks Act, 1999)
Registration	Not required	Registered mark required
Proof	Goodwill, misrepresentation and damage	Use of an identical or deceptively similar mark
Statutory saving	s.27(2), Trade Marks Act, 1999 preserves the passing off action	—

Factors in Indian Passing Off Cases (Cadila, 2001)

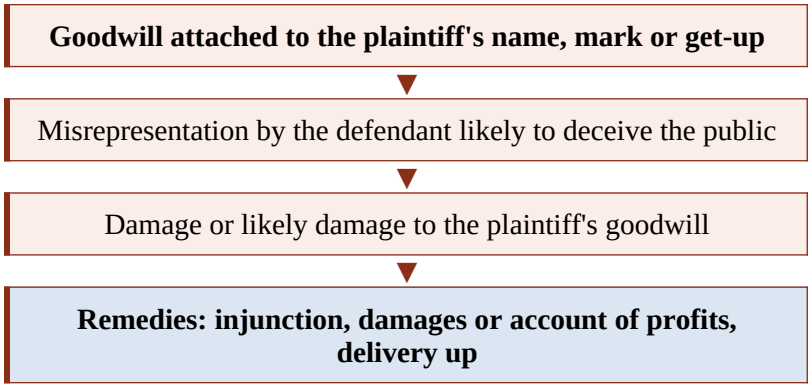
In *Cadila Health Care Ltd v Cadila Pharmaceuticals Ltd* (2001), the Supreme Court listed factors to decide whether a mark is deceptively similar: the nature of the marks; the degree of resemblance; the nature of the goods; the similarity in the nature, character and performance of

the goods; the class of purchasers; the mode of purchase; and other surrounding circumstances. The Court held that a stricter approach should be applied for medicinal products, because confusion could endanger health.

Remedies for Passing Off

1. Injunction (interim and permanent).
2. Damages or an account of profits.
3. Delivery up or destruction of infringing goods.

Flowchart: Elements of passing off



Examples

- A rival falsely tells the plaintiff's customers that the plaintiff's shop has closed down. This is injurious falsehood.
- A bank negligently gives a favourable credit reference about a customer to another business, which relies on it and loses money. The bank may be liable for negligent misstatement, unless it gave the reference with an effective disclaimer.
- A company sells biscuits in packets that look almost identical to those of a famous brand. The famous brand can sue for passing off.

Case Laws

Case Law: Ratcliffe v Evans

Year: 1892 **Court:** Court of Appeal (England)

Facts / Background: The plaintiff carried on business as an engineer and boilermaker under the name "Ratcliffe & Sons". The defendant, a newspaper publisher, falsely published that the plaintiff had ceased to carry on business. As a result, the plaintiff's business declined.

Legal Issue: Can the plaintiff recover damages for a false statement about his business, by proving a general loss of business without naming specific customers?

Court's Decision / What the Court Held: The Court held the defendant liable for injurious falsehood. A general loss of business was sufficient proof of special damage in such a case, since it was the natural result of the false statement.

Relevance to the Topic: The leading case on **injurious falsehood**.

Case Law: Derry v Peek

Year: 1889 **Court:** House of Lords (UK)

Facts / Background: The directors of a tramway company issued a prospectus stating that the company had the right to use steam power, believing that the consent of the Board of Trade, which was required, would be given as a formality. The Board refused consent, and the company was wound up. The plaintiff, who bought shares relying on the prospectus, sued the directors for deceit.

Legal Issue: Were the directors liable for deceit, since they honestly believed their statement to be true?

Court's Decision / What the Court Held: The House of Lords held that the directors were not liable for deceit, because they honestly believed that the statement was true. Lord Herschell laid down that fraud is proved when a false representation is made knowingly, or without belief in its truth, or recklessly, careless whether it be true or false.

Relevance to the Topic: The leading case on **deceit**: honest belief is not fraud.

Case Law: Hedley Byrne & Co Ltd v Heller & Partners Ltd

Year: 1964 **Court:** House of Lords (UK)

Facts / Background: The plaintiffs, advertising agents, asked their bank to inquire into the financial position of a client company, Easipower Ltd. The bank asked the defendants, Easipower's bankers, who gave a favourable reference "without responsibility". Relying on it, the plaintiffs extended credit to Easipower, which went into liquidation, and the plaintiffs lost money.

Legal Issue: Can a person be liable in tort for a negligent misstatement causing purely financial loss?

Court's Decision / What the Court Held: The House of Lords held that, in principle, a duty of care in making statements arises where there is a special relationship, in which the defendant knows that the plaintiff will rely on his skill and judgment. However, the defendants were not liable in this case because of the express disclaimer of responsibility.

Relevance to the Topic: The leading case on **negligent misstatement**.

Case Law: Reckitt & Colman Products Ltd v Borden Inc (Jif Lemon Case)

Year: 1990 **Court:** House of Lords (UK)

Facts / Background: The plaintiffs had sold lemon juice in plastic lemon-shaped containers under the name "Jif" for many years, and the shape had become associated with their product. The defendants proposed to sell lemon juice in similar lemon-shaped containers, with different labels.

Legal Issue: Could the plaintiffs prevent the defendants from selling lemon juice in lemon-

shaped containers as passing off?

Court's Decision / What the Court Held: The House of Lords held that the defendants were liable for passing off, since the public associated lemon-shaped containers with the plaintiffs' product, and the labels would not prevent confusion. Lord Oliver stated the "classical trinity": goodwill, misrepresentation and damage.

Relevance to the Topic: The leading case on the **elements of passing off**.

Case Law: Cadila Health Care Ltd v Cadila Pharmaceuticals Ltd

Year: 2001 **Court:** Supreme Court of India

Facts / Background: After the division of the Cadila group, the appellant marketed a drug for malaria under the name "Falcigo", and the respondent marketed a drug for the same disease under the name "Falcitab". The appellant sued for passing off and sought an injunction.

Legal Issue: What tests apply to decide whether a mark is deceptively similar in passing off cases, especially for medicines?

Court's Decision / What the Court Held: The Court laid down factors for deciding deceptive similarity, and held that in the case of medicinal products, a stricter approach should be adopted, because confusion between medicines could have disastrous effects on health. It directed the trial court to decide the case in the light of these principles.

Relevance to the Topic: The leading Indian case on **passing off**.

Important Points

- Injurious falsehood: false, malicious statement about the plaintiff's business causing special damage (*Ratcliffe v Evans*).
- Deceit: knowingly or recklessly false statement (*Derry v Peek*).
- Negligent misstatement: special relationship and reliance (*Hedley Byrne*); limits (*Caparo*).
- Passing off: goodwill, misrepresentation and damage (*Reckitt & Colman*); Indian factors (*Cadila*).
- Passing off is preserved by s.27(2) of the Trade Marks Act, 1999.

Remember: Malice is essential for injurious falsehood but not for defamation.

Topic 4.4: Nuisance: Definition, essentials, and types; Acts constituting nuisance (obstructions of highways, interference with light and air, pollution of air, water, and noise).

Introduction

Every person has a right to enjoy his land and to live in a reasonable environment. **Nuisance** protects this right against **indirect** interference, such as smoke, noise, smells, vibrations and pollution, coming from the defendant's activity. Nuisance is closely linked with environmental law. It may be a **public nuisance** (affecting the public) or a **private nuisance** (affecting an individual's land).

Definition

> **Winfield:** "Nuisance is incapable of exact definition, but for the purposes of the law of torts it may be described as unlawful interference with a person's use or enjoyment of land, or some right over, or in connection with it."

> **Salmond:** "The wrong of nuisance consists in causing or allowing without lawful justification the escape of any deleterious thing from his land or from elsewhere into land in possession of the plaintiff, e.g. water, smoke, fumes, gas, noise, heat, vibration, electricity, disease, germs, animals."

> **Public nuisance (s.270, BNS; s.268, IPC):** a person is guilty of public nuisance who does any act or is guilty of an illegal omission which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury, obstruction, danger or annoyance to persons who may have occasion to use any public right.

Detailed Explanation

1. Types of Nuisance

Basis	Public nuisance	Private nuisance
Affects	The public or a section of the public	A particular person's use or enjoyment of land
Nature	Both a crime and a tort	Only a tort
Who can sue	The Advocate-General or two or more persons with the leave of the court (s.91, CPC); an individual only if he suffers special damage	The person in possession of the land affected
Remedy	Criminal prosecution; civil suit; magisterial orders (BNSS)	Damages, injunction, abatement

Basis	Public nuisance	Private nuisance
Example	Obstructing a public highway; polluting a river	Smoke from a neighbour's chimney entering one's house

Public Nuisance

1. An individual can sue for public nuisance only if he proves **special damage**, i.e. damage over and above that suffered by the public in general.
2. Special damage must be direct and substantial.
3. **Section 91, CPC:** in the case of public nuisance, a suit for a declaration, injunction or other relief may be filed by the Advocate-General, or by two or more persons with the leave of the court, even if no special damage is caused to them.
4. **Magisterial remedies:** conditional orders for the removal of public nuisances (ss.152–162, BNSS; ss.133–143, CrPC); *Municipal Council, Ratlam v Vardhichand* (1980).

Private Nuisance

Private nuisance may take three forms:

1. **Encroachment** on a neighbour's land (e.g. roots or branches of trees).
2. **Physical injury** to a neighbour's land or property (e.g. damage to crops from fumes).
3. **Interference with the use or enjoyment** of land (e.g. noise, smells, vibrations, dust).

2. Essentials of Private Nuisance

1. **Unreasonable interference:** the interference must be substantial and unreasonable. The law expects "give and take" between neighbours.
2. **With the use or enjoyment of land, or a right over land:** the plaintiff must have an interest in the land (*Hunter v Canary Wharf Ltd*, 1997).
3. **Damage:** actual damage is usually required, either to property or to comfort and enjoyment. Nuisance is generally not actionable per se, except interference with easements.

3. Factors Determining Unreasonableness

1. **Locality:** what is a nuisance in a residential area may not be a nuisance in an industrial area (*Sturges v Bridgman*, 1879: "what would be a nuisance in Belgrave Square would not necessarily be so in Bermondsey"). But locality is irrelevant where there is physical damage to property (*St Helen's Smelting Co v Tipping*, 1865).
2. **Duration and frequency:** continuous or repeated interference is more likely to be a nuisance; a single event may be a nuisance if it results from a continuing state of affairs.
3. **Sensitivity of the plaintiff:** the law protects ordinary uses, not unusually sensitive ones (*Robinson v Kilvert*, 1889: heat damaging sensitive brown paper was not a nuisance).
4. **Malice:** a malicious motive may make an act unreasonable (*Christie v Davey*, 1893; *Hollywood Silver Fox Farm v Emmett*, 1936).
5. **Social utility:** the usefulness of the defendant's activity is not by itself a defence, but courts may consider it when deciding remedies.

4. Defences to Nuisance

Valid Defences

1. **Prescription:** a right to commit a private nuisance may be acquired by 20 years of continuous, open use as of right (Indian Easements Act, 1882, s.15, and Limitation Act). It does not apply to public nuisance.
2. **Statutory authority:** where a statute authorises an activity that necessarily causes a nuisance.
3. **Consent** of the plaintiff.
4. **Act of God**, in some cases.

Ineffective Defences

1. **Coming to the nuisance:** it is no defence that the plaintiff came to the place after the nuisance had started (*Sturges v Bridgman*, 1879).
2. **Public benefit:** it is no defence that the activity benefits the public.
3. **Reasonable care:** it is no defence that the defendant took all reasonable care, if the interference is unreasonable.
4. **Acts of others:** it is no defence that the nuisance is caused by the combined acts of several persons, each of which alone would not be a nuisance.
5. **Suitability of the place:** it is no defence that the place is the most suitable one for the activity.

5. Remedies

1. **Damages.**
2. **Injunction** (temporary, permanent, mandatory).
3. **Abatement:** the injured person may remove the nuisance himself (e.g. cutting overhanging branches), using reasonable means, without causing unnecessary damage, and usually after notice (see Topic 5.4).

6. Acts Constituting Nuisance

(a) Obstruction of Highways

1. Any unreasonable obstruction of a public highway is a public nuisance, e.g. digging a trench, placing materials, parking vehicles for long periods, or holding processions in a way that blocks traffic.
2. A person who suffers special damage (e.g. a shopkeeper whose access is blocked for a long period, or a person injured by falling into a trench) can sue.
3. Dangers adjoining the highway (e.g. a building about to collapse, overhanging branches) are also nuisances.
4. In India, encroachments on footpaths and roads are public nuisances, and municipal authorities have a duty to remove them.

(b) Interference with Light and Air

1. There is no natural right to light and air. A right to light and air may be acquired as an **easement** by prescription (20 years of continuous use) under s.15 of the Indian Easements Act, 1882, and by grant.
2. An action lies only if the obstruction causes **substantial** interference, making the building uncomfortable for ordinary use (*Colls v Home and Colonial Stores Ltd*, 1904).
3. Section 33 of the Indian Easements Act, 1882 requires the plaintiff to prove substantial interference with the physical comfort of the plaintiff or prevention of his carrying on his accustomed business as beneficially as before.

(c) Pollution of Air

1. Smoke, fumes, dust and smells that substantially interfere with the use and enjoyment of neighbouring land are nuisances.
2. Examples: emissions from factories, brick kilns, stone crushers and burning garbage.
3. Statutory controls: the Air (Prevention and Control of Pollution) Act, 1981 and the Environment (Protection) Act, 1986.
4. *Ram Raj Singh v Babulal* (Allahabad High Court, 1982): the dust from a brick-grinding machine affecting a doctor's clinic next door was held to be a nuisance.

(d) Pollution of Water

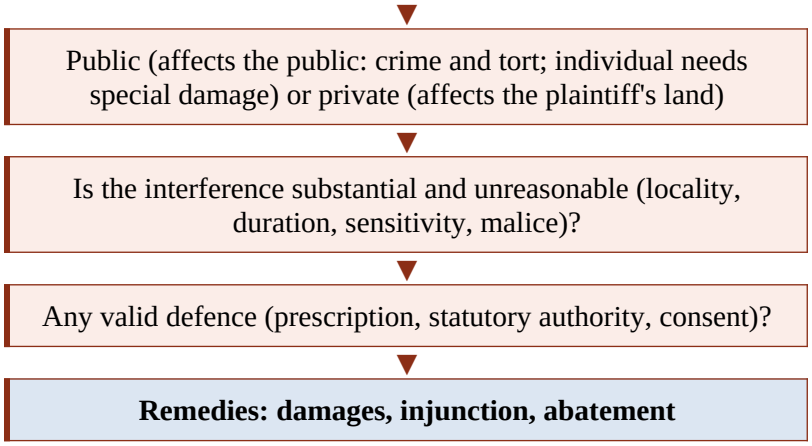
1. Polluting a stream, river or well used by others is a nuisance (both public and private).
2. Every riparian owner is entitled to the flow of water in its natural state, without sensible alteration in its quality.
3. Statutory controls: the Water (Prevention and Control of Pollution) Act, 1974.
4. *M.C. Mehta v Union of India* (Ganga Pollution Case, 1987–88): the Supreme Court directed the closure of tanneries polluting the Ganga until they installed treatment plants.

(e) Noise Pollution

1. Excessive and unreasonable noise, such as from loudspeakers, factories, generators, construction, firecrackers and music, is a nuisance.
2. The test is whether the noise is excessive and unreasonable for the locality, judged by the standard of ordinary people.
3. *Radhey Shyam v Gur Prasad Sharma* (Allahabad High Court, 1978): the noise and vibration from a flour mill in a residential area was held to be a nuisance.
4. **Noise Pollution (Regulation and Control) Rules, 2000** under the Environment (Protection) Act, 1986 fix noise limits for different zones and restrict loudspeakers between 10 p.m. and 6 a.m.
5. *In Re: Noise Pollution* (2005): the Supreme Court held that the right to live in freedom from noise pollution is part of Article 21, and gave directions on loudspeakers and firecrackers.

Flowchart: Is there an actionable nuisance?

Indirect interference: smoke, noise, smell, vibration, water pollution, obstruction



Examples

- A runs a noisy flour mill at night in a residential colony, preventing neighbours from sleeping. This is a private nuisance.
- A builder dumps construction material on a public road, blocking traffic for weeks. This is a public nuisance; a shopkeeper whose shop becomes inaccessible may sue for special damage.
- A factory discharges untreated effluents into a river used by villagers for drinking water. This is a public nuisance and an environmental tort.

Case Laws

Case Law: St Helen's Smelting Co v Tipping

Year: 1865 **Court:** House of Lords (UK)

Facts / Background: The plaintiff bought an estate near the defendant's copper smelting works. Fumes from the works damaged the trees and crops on his estate. The defendant argued that the area was an industrial area, and smelting was a reasonable use there.

Legal Issue: Is the character of the locality a defence when the nuisance causes physical damage to property?

Court's Decision / What the Court Held: The House of Lords held the defendant liable. It distinguished between nuisance causing **material injury to property**, where locality is irrelevant, and nuisance causing **personal discomfort**, where locality is relevant.

Relevance to the Topic: Locality is irrelevant where the nuisance causes physical damage to property.

Case Law: Sturges v Bridgman

Year: 1879 **Court:** Court of Appeal (England)

Facts / Background: The defendant, a confectioner, had used heavy pestles and mortars in his kitchen for more than 20 years. The plaintiff, a doctor, built a consulting room at the end of his garden, next to the defendant's kitchen. The noise and vibration made it impossible to

use the consulting room.

Legal Issue: Can the defendant rely on prescription (20 years' use) or on the fact that the plaintiff came to the nuisance?

Court's Decision / What the Court Held: The Court held the defendant liable. Prescription did not apply, because the noise had not been a nuisance (an actionable interference) until the consulting room was built. It was no defence that the plaintiff came to the nuisance. Thesiger L.J. observed that whether a thing is a nuisance depends on the locality.

Relevance to the Topic: Coming to the nuisance is no defence; locality matters for personal discomfort.

Case Law: Municipal Council, Ratlam v Vardhichand

Year: 1980 **Court:** Supreme Court of India

Facts / Background: Residents of a locality in Ratlam suffered from the stench and danger caused by open drains, public excreta and discharges from a nearby alcohol plant. They applied to the Magistrate under s.133 CrPC for the removal of the public nuisance. The Municipality pleaded lack of funds.

Legal Issue: Can a municipality avoid its statutory duty to remove a public nuisance by pleading lack of funds?

Court's Decision / What the Court Held: The Supreme Court (Justice V.R. Krishna Iyer) held that the Municipality was bound to perform its statutory duty to remove the nuisance, and lack of funds was no excuse. It upheld the Magistrate's order directing the Municipality to construct drains and take other steps within a fixed time.

Relevance to the Topic: The leading Indian case on **public nuisance** and the duty of public authorities.

Case Law: Radhey Shyam v Gur Prasad Sharma

Year: 1978 **Court:** Allahabad High Court

Facts / Background: The defendant installed a flour mill in a residential area, next to the plaintiff's house. The noise and vibration from the mill caused discomfort to the plaintiff and affected his health.

Legal Issue: Is the noise and vibration from a flour mill in a residential area an actionable nuisance?

Court's Decision / What the Court Held: The Court held that substantial addition to the noise in a locality by the defendant, which interferes materially with the ordinary comfort of the plaintiff, is a nuisance, and granted an injunction against running the mill. (Facts summarised briefly.)

Relevance to the Topic: An Indian example of **noise nuisance**.

Case Law: In Re: Noise Pollution

Year: 2005 **Court:** Supreme Court of India

Facts / Background: The Court took up a petition about noise pollution caused by loudspeakers, music systems, vehicles, firecrackers and other sources, especially at night.

Legal Issue: Is freedom from noise pollution part of the right to life, and what restrictions can be placed on noise?

Court's Decision / What the Court Held: The Court held that the right to live in an atmosphere free from noise pollution is part of the right to life under Article 21. Nobody can claim a right to create noise even in his own premises that would travel beyond his premises and cause nuisance to neighbours. It upheld restrictions on the use of loudspeakers and firecrackers between 10 p.m. and 6 a.m. (subject to some exceptions), and gave directions to the authorities.

Relevance to the Topic: The leading Indian case on **noise pollution**.

Important Points

- Nuisance: unlawful indirect interference with the use or enjoyment of land.
- Public nuisance: affects the public; crime (s.270 BNS) and tort; individual needs special damage; s.91 CPC.
- Private nuisance: affects the plaintiff's land; requires substantial and unreasonable interference.
- Locality matters for discomfort but not for physical damage (*St Helen's*); coming to the nuisance is no defence (*Sturges v Bridgman*).
- Defences: prescription, statutory authority, consent.
- Acts constituting nuisance: obstruction of highways, interference with light and air (easements, *Colls*), air, water and noise pollution.
- Indian cases: *Ratlam* (1980), *Radhey Shyam* (1978), *Noise Pollution* (2005).

Remember: Trespass is direct interference; nuisance is indirect interference.

UNIT 5
Negligence, Strict Liability, and Legal Remedies

Topics in this Unit

5.1 Negligence: Basic concepts, theories, standards of care, and the doctrine of contributory negligence.

5.2 Evidentiary Rules & Specific Negligence: Res ipsa loquitur, professional liability, liability of common carriers, and product liability of manufacturers.

5.3 Absolute and Strict Liability: The rule in Rylands v. Fletcher and liability for harm caused by inherently dangerous industries.

5.4 Legal Remedies: Award of damages (simple, special, punitive), remoteness of damage (foreseeability and directness), injunction, specific restitution, and extra-legal remedies (self-help, re-entry, distress damage feasant, and abetment of nuisance).

Topic 5.1: Negligence: Basic concepts, theories, standards of care, and the doctrine of contributory negligence.

Introduction

Negligence is the most important tort in modern times. Most claims for compensation, such as those arising from motor accidents, medical treatment, defective products and workplace injuries, are based on negligence. The word "negligence" has two meanings: (1) a **state of mind** (carelessness) in which a tort is committed; and (2) an **independent tort**, which consists of the breach of a legal duty to take care, resulting in damage to the plaintiff. Since *Donoghue v Stevenson* (1932), negligence has been recognised as an independent tort.

Definition

> **Alderson B. (Blyth v Birmingham Waterworks Co, 1856):** "Negligence is the omission to do something which a reasonable man, guided upon those considerations which ordinarily regulate the conduct of human affairs, would do, or doing something which a prudent and reasonable man would not do."

> **Winfield:** "Negligence as a tort is the breach of a legal duty to take care which results in damage, undesired by the defendant, to the plaintiff."

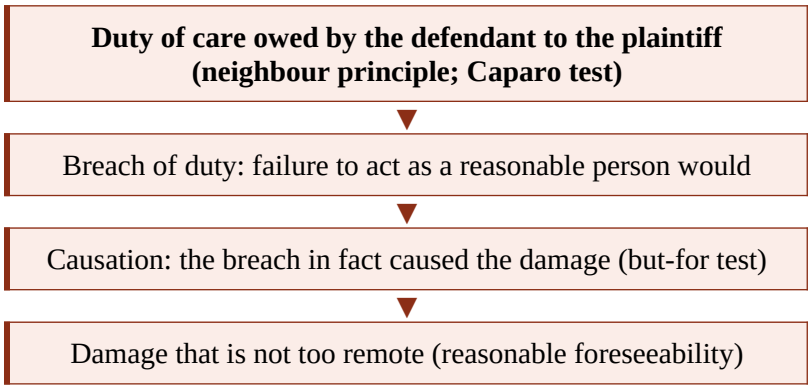
> **Contributory negligence:** the failure by the plaintiff to take reasonable care for his own safety, which contributes to the damage he suffers.

Detailed Explanation

1. Essentials of Negligence

1. **Duty of care:** the defendant owed a legal duty of care to the plaintiff.
2. **Breach of duty:** the defendant breached that duty by failing to meet the standard of care.
3. **Damage:** the breach caused damage to the plaintiff that is not too remote (causation and remoteness).

Flowchart: Essentials of the tort of negligence



▼

Liability, subject to defences such as contributory negligence and volenti

2. Duty of Care

The Neighbour Principle

1. Lord Atkin in *Donoghue v Stevenson* (1932): "You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour. Who, then, in law, is my neighbour? The answer seems to be persons who are so closely and directly affected by my act that I ought reasonably to have them in contemplation as being so affected when I am directing my mind to the acts or omissions which are called in question."

Development of the Test

Case	Year	Test
Donoghue v Stevenson	1932	Neighbour principle: reasonable foreseeability and proximity
Anns v Merton London Borough Council	1978	Two-stage test: (1) proximity and foreseeability; (2) policy considerations limiting the duty
Caparo Industries plc v Dickman	1990	Three-stage test: (1) foreseeability of damage; (2) proximity of relationship; (3) it is fair, just and reasonable to impose a duty
Robinson v Chief Constable of West Yorkshire Police	2018	The Caparo test is applied mainly in novel cases; established categories of duty apply directly

Established Duty Relationships

Road users to one another; doctors to patients; employers to employees; manufacturers to consumers; occupiers to visitors; teachers to pupils; carriers to passengers.

Limits on Duty

1. **Pure economic loss:** generally not recoverable in negligence, except in special relationships (*Hedley Byrne*, 1964; *Spartan Steel v Martin*, 1973).
2. **Omissions:** generally no duty to act to prevent harm, except where there is a special relationship or the defendant created the danger.
3. **Nervous shock:** limited (see Topic 3.3).

3. Theories of Negligence

1. **Subjective theory (state of mind theory):** negligence is a state of mind of indifference or carelessness about the consequences of one's conduct (supported by Salmond and Winfield in early writings).
2. **Objective theory (conduct theory):** negligence is not a state of mind but a type of **conduct**: failure to act as a reasonable man would act in the circumstances (supported by

Pollock and modern law). The objective theory is now accepted; the defendant's state of mind is not relevant, only his conduct measured against an objective standard.

Basis	Subjective theory	Objective theory
Meaning	Negligence is a careless state of mind	Negligence is careless conduct
Test	What the defendant thought	What a reasonable man would have done
Supporters	Salmond, Winfield (early)	Pollock; modern law
Accepted today?	No	Yes

4. Standard of Care: The Reasonable Man

1. **Objective standard:** the standard is that of a **reasonable and prudent man** in the circumstances. The defendant's personal abilities are generally irrelevant (*Vaughan v Menlove*, 1837).
2. **Learner drivers:** a learner driver must meet the standard of a reasonably competent driver (*Nettleship v Weston*, 1971).
3. **Professionals:** the standard is that of a reasonably competent member of the profession (*Bolam*, 1957; see Topic 5.2).
4. **Children:** the standard is that of a reasonable child of the same age (*Mullin v Richards*, 1998).
5. **Emergencies:** a person acting in an emergency is judged more leniently.

Factors Affecting the Standard of Care

1. **Magnitude (probability) of risk:** the greater the likelihood of harm, the greater the care required. In *Bolton v Stone* (1951), a cricket ball was hit out of the ground only about six times in 30 years, so the risk was too small to require precautions.
2. **Gravity (seriousness) of harm:** greater care is required where the possible harm is serious. In *Paris v Stepney Borough Council* (1951), an employer was liable for not providing goggles to a worker who was already blind in one eye, because the consequences of injury to his only good eye were very serious.
3. **Cost and practicability of precautions:** the law does not require precautions that are excessively costly compared to the risk (*Latimer v AEC Ltd*, 1953).
4. **Social utility of the activity:** the importance of the defendant's purpose may justify some risk (e.g. emergency services; *Watt v Hertfordshire County Council*, 1954).
5. **Common practice:** following common practice is evidence of reasonable care, but not conclusive.
6. **The state of knowledge at the time:** the defendant is judged by the knowledge available at the time, not with hindsight (*Roe v Minister of Health*, 1954).

5. Breach and Proof

1. The plaintiff must prove that the defendant fell below the standard of care.
2. In some cases, the doctrine of *res ipsa loquitur* helps the plaintiff (see Topic 5.2).

6. Causation and Damage

1. **Causation in fact (but-for test):** would the damage have occurred but for the defendant's breach? (*Barnett v Chelsea and Kensington Hospital Management Committee*, 1969: a doctor failed to examine a patient who later died of arsenic poisoning, but the patient would have died anyway, so the doctor was not liable.)
2. **Remoteness of damage:** the damage must be of a kind that was reasonably foreseeable (*Wagon Mound*, 1961; see Topic 5.4).

7. Doctrine of Contributory Negligence

Meaning

1. Contributory negligence is the plaintiff's own failure to take reasonable care for his own safety, which contributes to the damage.
2. **Example:** a pedestrian crosses a busy road without looking and is hit by a speeding car. Both are at fault.

Common Law Rule: Complete Defence

1. At common law, contributory negligence was a **complete defence**: if the plaintiff was negligent at all, he recovered nothing (*Butterfield v Forrester*, 1809).
2. This was very harsh, so the courts developed the **rule of last opportunity** (last clear chance): the party who had the last opportunity to avoid the accident was held solely liable (*Davies v Mann*, 1842; *British Columbia Electric Railway v Loach*, 1916).

Modern Rule: Apportionment

1. **England:** the **Law Reform (Contributory Negligence) Act, 1945** provides that where a person suffers damage partly due to his own fault and partly due to another's fault, his claim is not defeated, but damages are **reduced** to the extent the court thinks just and equitable, having regard to his share in the responsibility.
2. **India:** there is no general statute, but Indian courts follow the **apportionment** principle based on justice, equity and good conscience. In motor accident cases, compensation is reduced in proportion to the claimant's fault (e.g. *Pramodkumar Rasikbhai Jhaveri v Karmasey Kunvargi Tak*, 2002, where the Supreme Court explained that contributory negligence means the plaintiff's failure to take care of himself, which contributed to the accident).
3. **Seat belts and helmets:** failure to wear a seat belt or helmet may reduce damages (*Froom v Butcher*, 1976: reduction of 25% where wearing a seat belt would have prevented the injury altogether, and 15% where it would have reduced it).

Special Cases

1. **Children:** a child is judged by the standard of a reasonable child of his age; very young children are generally not held contributorily negligent.
2. **Agony of the moment (dilemma principle):** a person who, in an emergency created by the defendant, makes a wrong choice is not contributorily negligent (*Jones v Boyce*, 1816, where a passenger jumped from a coach believing it was about to overturn).

3. **Identification doctrine (abolished):** the negligence of a driver was once imputed to his passenger (*Thorogood v Bryan*, 1849), but this was rejected in *The Bernina* (1888).
4. **Composite negligence:** where the plaintiff is not at fault, and two or more defendants are negligent, they are jointly and severally liable (this is different from contributory negligence).

Basis	Contributory negligence	Composite negligence
Who is at fault	The plaintiff and the defendant	Two or more defendants; the plaintiff is not at fault
Effect	Damages reduced in proportion to the plaintiff's fault	All defendants jointly and severally liable for full damages

Examples

- A doctor leaves a swab inside a patient's abdomen after surgery. He is liable for negligence.
- A motorcyclist without a helmet is hit by a negligent truck driver. His compensation may be reduced for contributory negligence if the injury would have been less severe with a helmet.

Case Laws

Case Law: Donoghue v Stevenson

Year: 1932 **Court:** House of Lords (UK)

Facts / Background: Mrs. Donoghue's friend bought her a bottle of ginger beer in a café in Paisley, Scotland. The bottle was made of opaque glass. After she drank some of it, her friend poured the rest, and the decomposed remains of a snail floated out. Mrs. Donoghue suffered shock and gastroenteritis. She could not sue the café owner in contract, because she had not bought the drink herself, so she sued the manufacturer, Stevenson.

Legal Issue: Does a manufacturer owe a duty of care to the ultimate consumer, with whom he has no contract?

Court's Decision / What the Court Held: The House of Lords held (by a majority of 3:2) that the manufacturer owed a duty of care to the ultimate consumer, since the product was intended to reach the consumer in the form in which it left the manufacturer, without a reasonable possibility of intermediate examination. Lord Atkin laid down the **neighbour principle**.

Relevance to the Topic: The foundation of the modern **tort of negligence** and of product liability.

Case Law: Blyth v Birmingham Waterworks Co

Year: 1856 **Court:** Court of Exchequer (England)

Facts / Background: The defendants had installed a fire plug (hydrant) near the plaintiff's

house, according to the best known system. During an extraordinarily severe frost, the plug was damaged, causing water to escape and flood the plaintiff's house.

Legal Issue: Were the defendants negligent in failing to guard against such a severe frost?

Court's Decision / What the Court Held: The Court held that the defendants were not negligent, because they had taken the precautions a reasonable person would take, and the severity of the frost could not reasonably have been anticipated. Alderson B. gave the classic definition of negligence.

Relevance to the Topic: The classic **definition of negligence** and the reasonable man standard.

Case Law: Bolton v Stone

Year: 1951 **Court:** House of Lords (UK)

Facts / Background: The plaintiff was standing on a quiet road outside her house when she was hit by a cricket ball hit out of the defendants' cricket ground. The ground had a high fence, and balls had been hit out of the ground only about six times in the previous 30 years.

Legal Issue: Were the defendants negligent in failing to take further precautions against the risk of balls being hit out of the ground?

Court's Decision / What the Court Held: The House of Lords held that the defendants were not negligent, because the risk of injury was so small that a reasonable person would not have taken further precautions against it.

Relevance to the Topic: The **probability of harm** is a factor in deciding the standard of care.

Case Law: Nettleship v Weston

Year: 1971 **Court:** Court of Appeal (England)

Facts / Background: The plaintiff, a friend, gave the defendant driving lessons in her husband's car. During the third lesson, the defendant failed to straighten the car after turning a corner, and hit a lamp post, injuring the plaintiff's knee.

Legal Issue: Is a learner driver judged by a lower standard of care?

Court's Decision / What the Court Held: The Court held that a learner driver must meet the same objective standard as a reasonably competent and experienced driver. Her inexperience was no excuse. The plaintiff's damages were reduced by half for his own contributory negligence as instructor.

Relevance to the Topic: The **objective standard of care** applies even to learners.

Case Law: Butterfield v Forrester

Year: 1809 **Court:** Court of King's Bench (England)

Facts / Background: The defendant put a pole across part of a public road while repairing his house. The plaintiff, riding fast at dusk, did not see the pole, which could have been seen from 100 yards away, and was thrown from his horse.

Legal Issue: Can the plaintiff recover damages when his own negligence contributed to the accident?

Court's Decision / What the Court Held: The Court held that the plaintiff could not recover, because if he had used ordinary care, he would have seen and avoided the obstruction. His own negligence barred his claim.

Relevance to the Topic: The common law rule that **contributory negligence was a complete defence**.

Case Law: Davies v Mann

Year: 1842 **Court:** Court of Exchequer (England)

Facts / Background: The plaintiff negligently left his donkey tied up on a highway, with its forefeet fettered. The defendant's wagon, driven at a fast pace, ran over and killed the donkey.

Legal Issue: Can the plaintiff recover despite his own negligence in leaving the donkey on the road?

Court's Decision / What the Court Held: The Court held the defendant liable, because he could have avoided the accident by ordinary care; he had the **last opportunity** to avoid it.

Relevance to the Topic: The origin of the **rule of last opportunity**.

Important Points

- Negligence: breach of a legal duty to take care, causing damage (*Blyth*, *Donoghue*).
- Essentials: duty, breach, damage (causation and remoteness).
- Duty: neighbour principle (*Donoghue*); *Caparo* three-stage test.
- Objective theory of negligence is accepted.
- Standard of care: reasonable man (*Nettleship*); factors: probability (*Bolton v Stone*), gravity (*Paris*), cost, social utility.
- Contributory negligence: once a complete defence (*Butterfield*); last opportunity rule (*Davies v Mann*); now apportionment (1945 Act in England; equity in India).

Remember: In India, contributory negligence reduces damages; it does not defeat the claim.

Topic 5.2: Evidentiary Rules & Specific Negligence: Res ipsa loquitur, professional liability, liability of common carriers, and product liability of manufacturers.

Introduction

In negligence, the plaintiff normally has to prove that the defendant was careless. Sometimes, however, the facts themselves suggest negligence, and the plaintiff cannot know exactly what happened. The rule of **res ipsa loquitur** helps the plaintiff in such cases. This topic also explains negligence in specific situations: **professional liability** (doctors, lawyers and others), the liability of **common carriers**, and the **product liability** of manufacturers.

Definition

> **Res ipsa loquitur:** "the thing speaks for itself". It is a rule of evidence by which negligence may be inferred from the very nature of an accident, where the thing causing the harm was under the defendant's control and the accident would not ordinarily happen without negligence.

> **Common carrier:** a person who undertakes to carry goods (or passengers) for all persons without discrimination, for hire or reward.

> **Product liability (s.2(34), Consumer Protection Act, 2019):** "the responsibility of a product manufacturer or product seller, of any product or service, to compensate for any harm caused to a consumer by such defective product manufactured or sold or by deficiency in services relating thereto."

Detailed Explanation

A. Res Ipsa Loquitur

1. Essentials

1. **The thing causing the harm was under the management or control of the defendant** or his servants.
2. **The accident is such as would not ordinarily happen** if those who have control use proper care.
3. **There is no explanation** of how the accident occurred (if the cause is known, the rule does not apply; the court decides on the evidence).

These conditions were laid down by Erle C.J. in *Scott v London and St Katherine Docks Co* (1865).

2. Effect

1. The rule raises a **presumption (inference) of negligence** against the defendant.

2. The **burden shifts** to the defendant to show that he was not negligent, or that the accident was caused by something other than his negligence.
3. It is a rule of evidence, not a rule of substantive law.

3. Examples

1. A bag of flour falls from a warehouse window on a passer-by (*Byrne v Boadle*, 1863).
2. A clock tower collapses in a busy street (*Municipal Corporation of Delhi v Subhagwanti*, 1966).
3. A surgeon leaves a swab or instrument inside a patient after an operation.
4. A bus overturns on a straight road without any apparent reason.
5. A patient goes in for a minor operation and comes out with a burn injury.

B. Professional Liability

1. Standard of Care for Professionals

1. **The Bolam test:** a professional (e.g. a doctor) is not negligent if he acted in accordance with a practice accepted as proper by a **responsible body** of professional opinion skilled in that particular art, even if another body of opinion takes a contrary view (*Bolam v Friern Hospital Management Committee*, 1957).
2. **Bolitho v City and Hackney Health Authority (1997):** the professional opinion relied upon must have a logical basis; the court can reject an opinion that is not reasonable or responsible.
3. **Montgomery v Lanarkshire Health Board (2015):** in England, doctors must take reasonable care to inform patients of material risks of treatment (informed consent).

2. Medical Negligence in India

1. **Duties of a doctor** (*Laxman Balkrishna Joshi v Trimbak Bapu Godbole*, 1969): a duty of care in deciding whether to undertake the case, a duty of care in deciding what treatment to give, and a duty of care in the administration of that treatment.
2. **Consumer protection:** medical services (other than free services) are "services" under the Consumer Protection Act (*Indian Medical Association v V.P. Shantha*, 1995).
3. **Criminal negligence:** a higher degree of negligence (gross negligence) is needed for criminal liability (*Jacob Mathew v State of Punjab*, 2005). Under the BNS, causing death by negligence is punishable under s.106 (s.304A IPC); s.106(1) provides a lower punishment for registered medical practitioners.
4. **Hospitals:** a hospital is vicariously liable for its doctors and staff, and directly liable for failures in its systems.

3. Other Professionals

1. **Lawyers:** liable for negligence in advice and conduct of cases (in England, advocates' immunity was abolished in *Arthur J.S. Hall & Co v Simons*, 2000). In India, the Supreme Court held in *Bar of Indian Lawyers v D.K. Gandhi PS National Institute of Communicable Diseases* (2024) that services of advocates are not covered by the Consumer Protection Act, 2019, though they remain liable in tort and under professional conduct rules.

2. **Accountants, architects, engineers and valuers:** liable for negligent work and advice (*Hedley Byrne* principles).

C. Liability of Common Carriers

1. Common Carriers of Goods

1. At common law, a common carrier of goods was treated almost as an **insurer** of the goods: it was liable for any loss or damage to the goods, whether or not it was negligent, except where the loss was caused by:
   - an Act of God;
   - an act of the King's (State's) enemies;
   - an inherent vice or defect in the goods;
   - the fault of the consignor.
2. **India:** the **Carriage by Road Act, 2007** (which repealed the Carriers Act, 1865) governs common carriers by road.
   - A common carrier must register (s.3).
   - It is liable for loss of or damage to the consignment, except where caused by an Act of God, war or public enemy, riots, civil commotion, orders of a court, or other causes specified, if it has taken reasonable precautions (s.10 and the following sections).
   - Its liability may be limited by the goods forwarding note, unless the consignor has declared a higher value (s.10).
   - A notice of the claim must be given within 180 days (s.16).
3. **Patel Roadways Ltd v Prasad Trading Co (1991):** the Supreme Court held that the liability of a common carrier is that of an insurer, and the burden is on the carrier to prove that the loss was not due to its negligence or the negligence of its agents (s.9, Carriers Act, 1865).

2. Carriers of Passengers

1. A carrier of passengers is not an insurer; it is liable only for **negligence** (failure to take reasonable care for the safety of passengers).
2. **Railways:** the Railways Act, 1989 (s.124 and s.124A) imposes **no-fault** liability for death or injury in railway accidents and "untoward incidents".
3. **Air carriers:** the Carriage by Air Act, 1972 (applying the Warsaw and Montreal Conventions) imposes strict liability, subject to limits.
4. **Motor vehicles:** the Motor Vehicles Act, 1988 provides for no-fault liability (s.164) and fault-based claims (s.166).

D. Product Liability of Manufacturers

1. Common Law: Donoghue v Stevenson

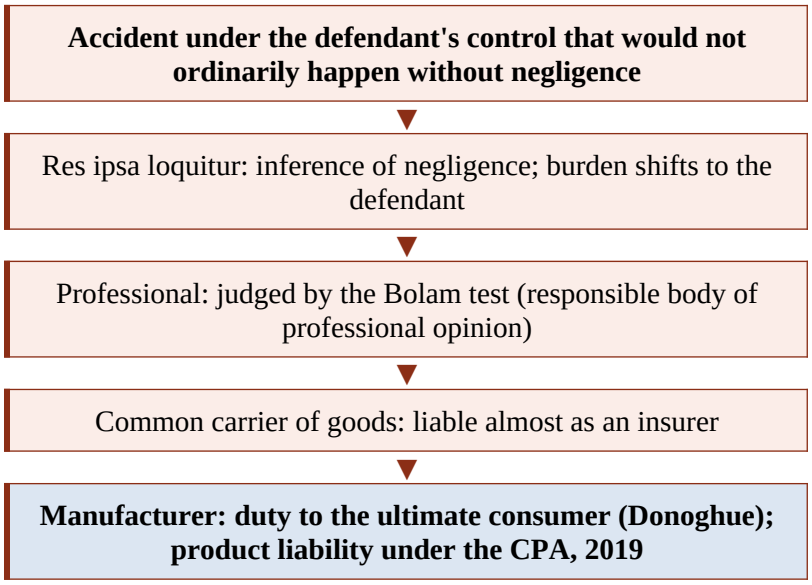
1. A manufacturer owes a duty of care to the ultimate consumer, where the product reaches the consumer in the same form, without a reasonable possibility of intermediate examination.

2. *Grant v Australian Knitting Mills Ltd* (1936): the principle was applied to underwear containing excess sulphites that caused dermatitis.

2. Consumer Protection Act, 2019 (Chapter VI)

1. **Section 82:** a product liability action can be brought by a complainant against a product manufacturer, product service provider or product seller for harm caused by a defective product.
2. **Section 84: liability of a product manufacturer**, if the product:
   - contains a manufacturing defect;
   - is defective in design;
   - deviates from manufacturing specifications;
   - does not conform to an express warranty;
   - fails to contain adequate instructions or warnings.
   - The manufacturer is liable even if he proves that he was **not negligent or fraudulent** in making the express warranty (s.84(2)).
3. **Section 85:** liability of a product service provider.
4. **Section 86:** liability of a product seller (e.g. where he has exercised substantial control over the design, has altered the product, or has made an express warranty).
5. **Section 87:** exceptions (e.g. misuse, alteration or modification of the product by the complainant; warnings given to the employer; products used under the supervision of an expert; obvious or commonly known dangers).

Flowchart: Proving negligence in special situations



Examples

- A patient undergoes surgery to remove his appendix, and later it is found that a pair of scissors was left inside his abdomen. Negligence is inferred under res ipsa loquitur.
- A transport company loses a consignment of goods in transit. It is liable unless it proves that the loss was caused by an excepted cause (e.g. an Act of God) and that it took reasonable precautions.

- A pressure cooker explodes because of a design defect. The manufacturer is liable under s.84 of the Consumer Protection Act, 2019.

Case Laws

Case Law: Byrne v Boadle

Year: 1863 **Court:** Court of Exchequer (England)

Facts / Background: The plaintiff was walking past the defendant's warehouse when a barrel of flour fell from an upper window and injured him. He could not prove how the barrel came to fall.

Legal Issue: Can negligence be inferred from the fact of the accident itself?

Court's Decision / What the Court Held: The Court held that the fact of the barrel falling was itself evidence of negligence, since barrels do not fall out of warehouses without negligence. The burden was on the defendant to explain.

Relevance to the Topic: The origin of **res ipsa loquitur**.

Case Law: Municipal Corporation of Delhi v Subhagwanti

Year: 1966 **Court:** Supreme Court of India

Facts / Background: The clock tower in the middle of Chandni Chowk, a busy market in Delhi, which was about 80 years old and under the control of the Municipal Corporation, suddenly collapsed, killing several persons. The legal representatives of the deceased sued the Corporation.

Legal Issue: Is the Corporation liable for negligence, though the exact cause of the collapse was not proved?

Court's Decision / What the Court Held: The Court applied the maxim res ipsa loquitur. The collapse of a clock tower under the control of the Corporation would not ordinarily occur if proper care were taken, and the Corporation, having failed to rebut the inference of negligence (e.g. by showing periodic inspections), was held liable.

Relevance to the Topic: The leading Indian case on **res ipsa loquitur**.

Case Law: Bolam v Friern Hospital Management Committee

Year: 1957 **Court:** Queen's Bench Division (England)

Facts / Background: The plaintiff was given electroconvulsive therapy (ECT) for mental illness at the defendants' hospital, without a relaxant drug or physical restraint. He suffered fractures. At the time, there were two bodies of medical opinion about the use of relaxants and restraints.

Legal Issue: What is the standard of care for doctors?

Court's Decision / What the Court Held: McNair J. directed the jury that a doctor is not guilty of negligence if he has acted in accordance with a practice accepted as proper by a

responsible body of medical men skilled in that particular art, merely because there is a body of opinion that would take a contrary view. The jury found for the defendants.

Relevance to the Topic: The **Bolam test** for professional negligence.

Case Law: Jacob Mathew v State of Punjab

Year: 2005 **Court:** Supreme Court of India

Facts / Background: A patient in a private hospital had breathing difficulty. The oxygen cylinder brought to his bed was found to be empty, and there was no arrangement for another cylinder for some time. The patient died. His son filed a criminal complaint against the doctors under s.304A IPC.

Legal Issue: What is the standard of negligence required to make a doctor criminally liable?

Court's Decision / What the Court Held: The Court held that for criminal liability, the negligence must be **gross** or of a very high degree; mere lack of care or error of judgment is not enough. It adopted the Bolam test for civil negligence, and laid down guidelines that a private complaint against a doctor should be supported by the credible opinion of another competent doctor, and that doctors should not be arrested routinely. The criminal proceedings against the doctors were quashed.

Relevance to the Topic: The leading Indian case on **medical negligence** (civil and criminal standards).

Case Law: Indian Medical Association v V.P. Shantha

Year: 1995 **Court:** Supreme Court of India

Facts / Background: The question arose whether medical services rendered by doctors and hospitals were "services" under the Consumer Protection Act, 1986, so that patients could file complaints of medical negligence in consumer fora.

Legal Issue: Are medical services covered by the Consumer Protection Act?

Court's Decision / What the Court Held: The Court held that services rendered by medical practitioners for consideration are "services" under the Act, except services rendered free of charge to all patients, or under a contract of personal service. Patients who pay (or whose treatment is paid for by others, such as an employer or insurer) can file consumer complaints.

Relevance to the Topic: Medical negligence claims can be brought in **consumer fora**.

Case Law: Patel Roadways Ltd v Prasad Trading Co

Year: 1991 **Court:** Supreme Court of India

Facts / Background: Goods entrusted by the respondents to the appellant, a common carrier, for transport were destroyed by a fire in the carrier's godown. The carrier claimed

that it was not liable, and relied on clauses in the consignment note.

Legal Issue: What is the nature of the liability of a common carrier for loss of goods?

Court's Decision / What the Court Held: The Court held that the liability of a common carrier under the Carriers Act, 1865 is that of an **insurer**, and under s.9 of the Act, in a suit for loss of goods, the plaintiff need not prove negligence; the burden is on the carrier to prove that it was not negligent. The carrier was held liable. (Facts summarised briefly.)

Relevance to the Topic: The leading Indian case on the **liability of common carriers**.

Case Law: Grant v Australian Knitting Mills Ltd

Year: 1936 **Court:** Privy Council (on appeal from Australia)

Facts / Background: The plaintiff bought woollen underwear made by the defendants. It contained an excess of sulphites, which caused him to suffer severe dermatitis. The sulphites were a hidden defect that could not be detected by ordinary examination.

Legal Issue: Is the manufacturer liable to the ultimate consumer for a defect in clothing?

Court's Decision / What the Court Held: The Privy Council held the manufacturers liable, applying the principle of *Donoghue v Stevenson*, since the defect was hidden, and the garments were intended to reach the consumer without any intermediate examination.

Relevance to the Topic: Extension of **manufacturers' liability** to all products.

Important Points

- Res ipsa loquitur: control by the defendant, accident not ordinarily occurring without negligence, no explanation (*Scott v London Docks*, *Byrne v Boadle*, *Subhagwanti*).
- Professionals: Bolam test (*Bolam*), refined by *Bolitho*; India: *Jacob Mathew* (2005), *V.P. Shantha* (1995).
- Criminal medical negligence requires gross negligence (s.106 BNS; s.304A IPC).
- Common carriers of goods: liable as insurers, subject to exceptions (*Patel Roadways*); Carriage by Road Act, 2007.
- Product liability: *Donoghue*, *Grant*; CPA, 2019, ss.82–87.

Remember: Res ipsa loquitur is a rule of evidence that shifts the burden to the defendant; it does not create a separate tort.

Topic 5.3: Absolute and Strict Liability: The rule in Rylands v. Fletcher and liability for harm caused by inherently dangerous industries.

Introduction

In most torts, liability depends on fault (intention or negligence). But in some situations, the law imposes liability **without fault**, because the defendant's activity is so dangerous that he must bear the risk of any harm it causes. The English rule of **strict liability** was laid down in *Rylands v Fletcher* (1868). In India, the Supreme Court went further in *M.C. Mehta v Union of India* (1987) and laid down the rule of **absolute liability** for hazardous and inherently dangerous industries, without the exceptions available under *Rylands v Fletcher*.

Definition

> **Rule in Rylands v Fletcher (Blackburn J.):** "The person who for his own purposes brings on his lands and collects and keeps there anything likely to do mischief if it escapes, must keep it in at his peril, and, if he does not do so, is prima facie answerable for all the damage which is the natural consequence of its escape."

> **Absolute liability (M.C. Mehta, 1987):** "an enterprise which is engaged in a hazardous or inherently dangerous industry which poses a potential threat to the health and safety of the persons working in the factory and residing in the surrounding areas owes an absolute and non-delegable duty to the community to ensure that no harm results to anyone on account of hazardous or inherently dangerous nature of the activity which it has undertaken."

Detailed Explanation

A. Strict Liability: The Rule in Rylands v Fletcher

1. Essentials

1. **Dangerous thing:** the defendant brought on his land something likely to do mischief if it escapes (e.g. water, gas, electricity, explosives, fire, poisonous trees, wild animals, noxious fumes).
2. **Escape:** the thing must escape from the defendant's land (or place under his control) to a place outside his control (*Read v J. Lyons & Co*, 1947).
3. **Non-natural use of land:** the use must be special and bring increased danger to others, not an ordinary use for the general benefit of the community (Lord Cairns in *Rylands v Fletcher*; *Rickards v Lothian*, 1913). Domestic water supply, ordinary fires in a grate and electric wiring in a house are natural uses.
4. **Damage:** the escape must cause damage to the plaintiff.
5. **Foreseeability:** in *Cambridge Water Co v Eastern Counties Leather plc* (1994), the House of Lords held that the type of damage must be reasonably foreseeable.

2. Exceptions (Defences) to the Rule

1. **Plaintiff's own default:** the damage was caused by the plaintiff's own fault (*Ponting v Noakes*, 1894: the plaintiff's horse reached over the boundary and ate leaves of a poisonous tree on the defendant's land; no escape and the plaintiff's own wrong).
2. **Act of God:** an extraordinary natural event (*Nichols v Marsland*, 1876).
3. **Consent of the plaintiff:** where the plaintiff has consented to the presence of the dangerous thing, e.g. a common water supply for the benefit of both parties.
4. **Act of a third party (stranger):** the escape was caused by the wrongful act of a stranger over whom the defendant had no control (*Box v Jubb*, 1879; *Rickards v Lothian*, 1913).
5. **Statutory authority:** where a statute authorises the activity (*Green v Chelsea Waterworks Co*, 1894).

Exception	Case
Plaintiff's own default	*Ponting v Noakes* (1894)
Act of God	*Nichols v Marsland* (1876)
Consent of the plaintiff	Common benefit cases
Act of a stranger	*Box v Jubb* (1879); *Rickards v Lothian* (1913)
Statutory authority	*Green v Chelsea Waterworks* (1894)

3. Strict Liability in India

Indian courts applied *Rylands v Fletcher* before 1987 (e.g. in cases of escape of water, electricity and fire), along with its exceptions.

B. Absolute Liability: Inherently Dangerous Industries

1. Background

1. **Bhopal Gas Tragedy (2–3 December 1984):** methyl isocyanate (MIC) gas leaked from the Union Carbide India Ltd plant in Bhopal, killing thousands of people and injuring lakhs of others.
2. **Oleum Gas Leak (4 and 6 December 1985):** oleum gas leaked from the Shriram Food and Fertilizer Industries plant in Delhi, injuring several people and killing one person.
3. These disasters showed that the rule in *Rylands v Fletcher*, with its many exceptions, was inadequate to protect people from hazardous industries.

2. The Rule in M.C. Mehta v Union of India (1987)

1. An enterprise engaged in a **hazardous or inherently dangerous activity** is **absolutely liable** to compensate all those affected by an accident in the operation of such activity.
2. The liability is **not subject to any of the exceptions** under *Rylands v Fletcher*.
3. The measure of compensation must be correlated to the **magnitude and capacity of the enterprise**, so that it has a deterrent effect: the larger and more prosperous the enterprise, the greater the compensation.
4. **Escape** from the land is not necessary; liability extends to persons inside and outside the premises.

5. **Non-natural use** is not a requirement.

3. Strict Liability v Absolute Liability

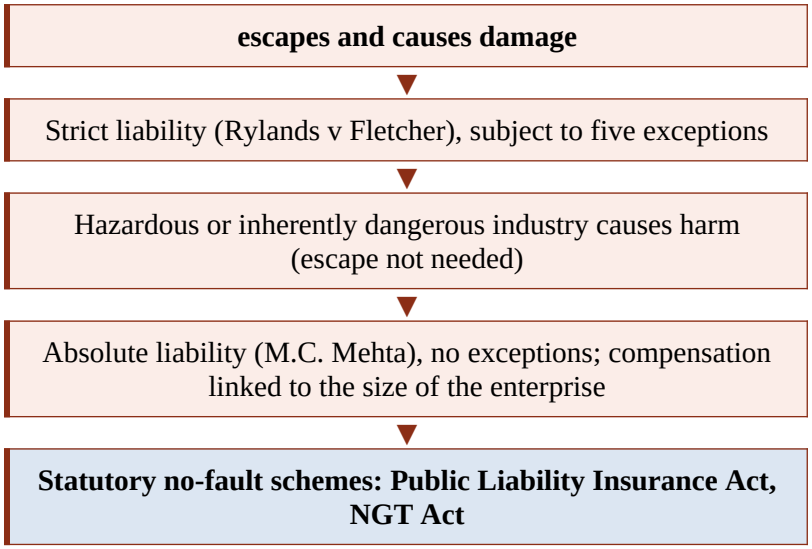
Basis	Strict liability (Rylands v Fletcher)	Absolute liability (M.C. Mehta)
Origin	English, 1868	Indian, 1987
Applies to	Dangerous things brought on land; non-natural use	Hazardous or inherently dangerous industries
Escape	Essential	Not necessary
Non-natural use	Essential	Not necessary
Exceptions	Act of God, act of a stranger, plaintiff's default, consent, statutory authority	No exceptions
Compensation	Compensatory (actual loss)	Related to the magnitude and capacity of the enterprise (deterrent)
Persons protected	Persons outside the defendant's land	All affected persons, including workers and residents

4. Later Developments

1. **Union Carbide Corporation v Union of India (1989, 1991):** the Bhopal claims were settled in 1989 for US $470 million; in 1991, the Supreme Court upheld the settlement, but restored criminal proceedings. A curative petition by the Union for additional compensation was dismissed in 2023.
2. **Indian Council for Enviro-Legal Action v Union of India (1996):** chemical industries in Bichhri village, Rajasthan, that polluted the soil and groundwater were held absolutely liable, applying *M.C. Mehta* and the **polluter pays principle**.
3. **Vellore Citizens' Welfare Forum v Union of India (1996):** recognised the **precautionary principle** and the polluter pays principle as part of Indian environmental law.
4. **Statutes:**
   - **Bhopal Gas Leak Disaster (Processing of Claims) Act, 1985:** gave the Union of India the exclusive right to represent the victims.
   - **Public Liability Insurance Act, 1991:** owners handling hazardous substances must take insurance and provide immediate relief on a **no-fault** basis.
   - **National Green Tribunal Act, 2010 (s.17(3)):** in claims for compensation for accidents, the Tribunal shall apply the principle of no fault.
   - **Civil Liability for Nuclear Damage Act, 2010:** strict liability of the operator of a nuclear installation, with a cap on liability.
5. **LG Polymers gas leak (Visakhapatnam, 2020):** the National Green Tribunal applied absolute liability and directed an interim deposit by the company.

Flowchart: Liability for dangerous things and activities

Dangerous thing brought on land for non-natural use



Examples

- A builds a reservoir on his land, and the water escapes through old mine shafts and floods B's mine. A is strictly liable (*Rylands v Fletcher*).
- A chemical factory leaks toxic gas, injuring workers and nearby residents. The factory is absolutely liable, even if the leak was caused by sabotage (an act of a stranger) or by an earthquake.

Case Laws

Case Law: Rylands v Fletcher

Year: 1868 **Court:** House of Lords (UK) (affirming the Court of Exchequer Chamber, 1866)

Facts / Background: The defendants, mill owners, employed independent contractors to build a reservoir on their land to supply water to their mill. Under the land were old disused mine shafts, which the contractors negligently failed to block. When the reservoir was filled, the water burst through the shafts and flooded the plaintiff's coal mine on adjoining land.

Legal Issue: Are the defendants liable for the damage caused by the escape of water, though they were not personally negligent?

Court's Decision / What the Court Held: The defendants were held liable. Blackburn J. in the Exchequer Chamber laid down the rule that a person who brings on his land anything likely to do mischief if it escapes must keep it in at his peril. The House of Lords affirmed, and Lord Cairns added the requirement of **non-natural use** of land.

Relevance to the Topic: The foundation of **strict liability**.

Case Law: Read v J. Lyons & Co Ltd

Year: 1947 **Court:** House of Lords (UK)

Facts / Background: The plaintiff, an inspector of munitions, was injured by the explosion

of a shell inside the defendants' munitions factory, where she was working. There was no negligence on the part of the defendants.

Legal Issue: Does the rule in *Rylands v Fletcher* apply when there is no escape from the defendant's premises?

Court's Decision / What the Court Held: The House of Lords held that the defendants were not liable under *Rylands v Fletcher*, because there was no **escape** of the dangerous thing from a place under the defendants' control to a place outside it.

Relevance to the Topic: Escape is an essential element of strict liability.

Case Law: M.C. Mehta v Union of India (Oleum Gas Leak Case)

Year: 1987 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Oleum gas leaked from one of the units of Shriram Food and Fertilizer Industries in Delhi in December 1985, affecting several persons, one of whom (an advocate) died. M.C. Mehta, who had already filed a public interest petition regarding the safety of the plant, sought compensation for the victims.

Legal Issue: What is the liability of an enterprise engaged in a hazardous or inherently dangerous industry for harm caused by an accident in its operation?

Court's Decision / What the Court Held: The Court laid down the rule of **absolute liability**: an enterprise engaged in a hazardous or inherently dangerous industry owes an absolute and non-delegable duty to the community, and is absolutely liable for any harm resulting from the activity, without any of the exceptions under *Rylands v Fletcher*. The measure of compensation should be correlated to the magnitude and capacity of the enterprise, so that it has a deterrent effect. Chief Justice P.N. Bhagwati observed that the law must keep pace with the needs of an industrial society and cannot be bound by 19th-century English law.

Relevance to the Topic: The leading case on **absolute liability** in India.

Case Law: Indian Council for Enviro-Legal Action v Union of India (Bichhri Case)

Year: 1996 **Court:** Supreme Court of India

Facts / Background: Certain chemical industries in Bichhri village, Udaipur district, Rajasthan, produced H-acid and discharged highly toxic waste (iron-based and gypsum-based sludge) without treatment. This polluted the soil and groundwater of the village and made it unfit for use, causing great harm to the villagers.

Legal Issue: Are the industries liable to compensate the villagers and pay for the remedial measures?

Court's Decision / What the Court Held: The Court held the industries absolutely liable, applying the rule in *M.C. Mehta*, and the **polluter pays principle**, under which the polluter must pay the cost of restoring the damaged environment, in addition to compensating the

victims. The Central Government was directed to determine and recover the cost of remedial measures from the industries.

Relevance to the Topic: The application of absolute liability and the **polluter pays principle** to environmental harm.

Important Points

- Strict liability (*Rylands v Fletcher*, 1868): dangerous thing, escape, non-natural use, damage; foreseeability (*Cambridge Water*, 1994).
- Exceptions: plaintiff's default, Act of God, consent, act of a stranger, statutory authority.
- Escape is essential (*Read v Lyons*, 1947).
- Absolute liability (*M.C. Mehta*, 1987): hazardous industries; no exceptions; compensation linked to the size of the enterprise.
- Bhopal (1984), Oleum (1985), Bichhri (1996); polluter pays and precautionary principles.
- Statutes: Public Liability Insurance Act, 1991; NGT Act, 2010 (s.17(3), no-fault); Civil Liability for Nuclear Damage Act, 2010.

Remember: Absolute liability allows no exceptions, and escape is not necessary.

Topic 5.4: Legal Remedies: Award of damages (simple, special, punitive), remoteness of damage (foreseeability and directness), injunction, specific restitution, and extra-legal remedies (self-help, re-entry, distress damage feasant, and abetment of nuisance).

Introduction

The purpose of the law of torts is to give a remedy to the injured person. Remedies are of two kinds: **judicial remedies**, which are granted by courts (damages, injunction and specific restitution of property), and **extra-judicial (extra-legal) remedies**, which the injured person may use himself without going to court (self-help, re-entry on land, recaption of goods, distress damage feasant and abatement of nuisance). An important question in damages is **remoteness**: for which consequences of his wrong is the defendant liable?

Definition

> **Damages:** a sum of money awarded by a court to compensate the plaintiff for the loss or injury caused by the defendant's tort.

> **Injunction:** an order of a court directing a person to do, or to refrain from doing, a particular act.

> **Remoteness of damage:** the rule that limits the defendant's liability to those consequences of his wrongful act that are not too remote, according to the test of reasonable foreseeability (or, under an older test, directness).

Detailed Explanation

A. Judicial Remedies

1. Damages

Kinds of Damages

Kind	Meaning	Example
Nominal damages	A small sum awarded where a legal right is violated but no actual loss is caused	*Ashby v White*; trespass without damage
Contemptuous damages	A very small sum (e.g. one rupee) awarded where the court feels the action should not have been brought, though the plaintiff technically wins	A defamation claim by a person of poor reputation
Compensatory (substantial, ordinary or simple) damages	Damages to compensate the plaintiff for the actual loss suffered	Medical expenses, loss of income, pain and suffering

Kind	Meaning	Example
General damages	Damages for loss that the law presumes to flow naturally from the wrong; not specifically quantified	Pain and suffering, loss of amenities
Special damages	Damages for specific, quantifiable losses that must be specially pleaded and proved	Medical bills, loss of earnings up to trial, repair costs
Aggravated damages	Additional compensation for injury to the plaintiff's feelings caused by the manner of the wrong	Humiliating or malicious conduct
Exemplary (punitive or vindictive) damages	Damages to punish the defendant and deter others, beyond compensation	Oppressive conduct of government servants; wrongs done for profit
Prospective damages	Damages for future loss that is likely to occur	Future medical expenses, loss of future earnings

Exemplary (Punitive) Damages

1. **Rookes v Barnard (1964):** Lord Devlin limited exemplary damages in English law to three categories:
   - **oppressive, arbitrary or unconstitutional action by servants of the government**;
   - conduct **calculated to make a profit** that may exceed the compensation payable;
   - cases where **statute** expressly authorises them.
2. **India:** Indian courts have awarded exemplary damages more freely, especially in cases of abuse of power and environmental damage, e.g. *M.C. Mehta v Kamal Nath* (2000), where the Supreme Court held that exemplary damages could be awarded for pollution under the polluter pays principle and that a polluter can be asked to pay exemplary damages, though a fine cannot be imposed on him without a trial.

Principles of Assessment

1. **Restitutio in integrum:** the plaintiff is to be put, as far as money can do it, in the same position as if the tort had not been committed.
2. **Personal injury:** pecuniary losses (medical expenses, loss of earnings, future losses) and non-pecuniary losses (pain and suffering, loss of amenities, loss of expectation of life).
3. **Death:** the multiplier method in motor accident cases (*Sarla Verma v DTC*, 2009; *National Insurance Co v Pranay Sethi*, 2017).
4. **Mitigation:** the plaintiff must take reasonable steps to reduce his loss.

2. Remoteness of Damage

A wrongful act may have a chain of consequences. The defendant is not liable for all of them; he is liable only for consequences that are **not too remote**. There are two tests.

(a) Test of Directness (Re Polemis, 1921)

1. The defendant is liable for **all the direct consequences** of his wrongful act, whether or not they were foreseeable, provided some damage was foreseeable.

2. **Re Polemis and Furness, Withy & Co (1921):** workers negligently dropped a plank into the hold of a ship, which caused a spark and ignited petrol vapour, destroying the ship. The fire was not foreseeable, but it was a direct consequence of the negligence, so the defendants were liable.
3. **Criticism:** the test could impose very wide liability for unforeseeable consequences.

(b) Test of Reasonable Foreseeability (Wagon Mound, 1961)

1. The defendant is liable only for damage of a **kind** that was **reasonably foreseeable**.
2. **Overseas Tankship (UK) Ltd v Morts Dock and Engineering Co Ltd (The Wagon Mound No. 1) (1961):** the Privy Council rejected *Re Polemis* and adopted the foreseeability test.
3. **Refinements:**
   - **Kind of damage, not its extent or manner:** if the kind of harm is foreseeable, the defendant is liable even if it occurs in an unforeseeable way or to an unforeseeable extent (*Hughes v Lord Advocate*, 1963).
   - **Thin skull (eggshell skull) rule:** the defendant must take the plaintiff as he finds him; if a foreseeable injury is made worse by the plaintiff's pre-existing condition, the defendant is liable for the full harm (*Smith v Leech Brain & Co*, 1962).

(c) Intervening Acts (Novus Actus Interveniens)

1. A new, independent act of a third party, the plaintiff or a natural event may break the chain of causation.
2. The chain is not broken if the intervening act was foreseeable (e.g. a rescuer's act, *Haynes v Harwood*, 1935).

Basis	Directness test	Foreseeability test
Case	*Re Polemis* (1921)	*Wagon Mound* (No. 1) (1961)
Liability for	All direct consequences	Only reasonably foreseeable kinds of damage
Status	Rejected in England	Generally accepted
Position in India	Indian courts generally follow the foreseeability test, though some decisions refer to directness	

3. Injunction

1. **Meaning:** an equitable remedy by which the court orders the defendant to do or not to do something. It is governed by the **Specific Relief Act, 1963 (ss.36–42)** and **Order XXXIX, CPC**.
2. **Kinds:**
   - **Temporary (interim) injunction:** granted during the pendency of a suit to preserve the status quo (Order XXXIX, Rules 1 and 2, CPC). Conditions: a prima facie case, balance of convenience, and irreparable injury (*Dalpat Kumar v Prahlad Singh*, 1992).

- **Perpetual (permanent) injunction:** granted by a decree at the end of the suit, permanently restraining the defendant (ss.37–38, SRA).
- **Mandatory injunction:** compels the defendant to do a positive act, e.g. to demolish an illegal construction (s.39, SRA).
- **Prohibitory injunction:** restrains the defendant from doing an act.
- **Quia timet injunction:** granted to prevent a threatened wrong before it occurs, where there is a strong probability of serious harm.

3. **Section 41, SRA:** lists cases where an injunction cannot be granted, e.g. where equally efficacious relief can be obtained by another usual mode of proceeding, or where the plaintiff's conduct disentitles him to the court's help.
4. **Damages in lieu of injunction:** under s.40 SRA, the court may award damages in addition to or in substitution for an injunction.

4. Specific Restitution of Property

1. Where the plaintiff has been wrongfully deprived of his property, the court may order its return.
2. **Immovable property:** recovery of possession under ss.5 and 6, Specific Relief Act, 1963 (see Topic 4.1).
3. **Movable property:** recovery of specific movable property under s.7, and against a person in possession who is not the owner under s.8, Specific Relief Act, 1963 (e.g. where the thing is held as agent or trustee, or compensation in money would not be adequate relief).

B. Extra-Legal (Extra-Judicial) Remedies

These are remedies that the injured person may use **himself**, without approaching a court. They must be used with **reasonable force** and in good faith; excessive force makes the person himself liable.

1. Self-Help (Self-Defence)

1. A person may use reasonable force to defend his person or property against an unlawful attack (see Topic 1.4, private defence).
2. The force must be proportionate to the threat.

2. Re-entry on Land

1. A person entitled to possession of land who has been wrongfully dispossessed may re-enter peaceably, using reasonable force.
2. **Indian position:** the courts discourage forcible re-entry. A person in **settled possession** cannot be evicted by force, even by the true owner, who must go to court (*Rame Gowda*, 2004). Forcible re-entry may also amount to criminal trespass.

3. Recaption of Goods

1. A person entitled to possession of goods may retake them from a person who wrongfully took or detains them, using reasonable force and without breach of the peace.
2. He may enter the land of the wrongdoer for this purpose, but generally not the land of an innocent third person unless the goods came there by the act of that person.

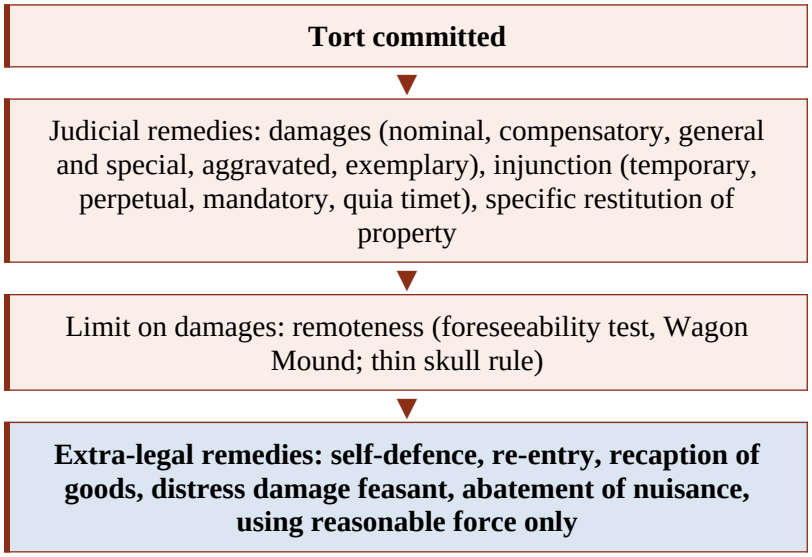
4. Distress Damage Feasant

1. **Meaning:** "distress for damage done". An occupier of land may seize and detain animals or chattels that have wrongfully come onto his land and are causing damage, until compensation is paid.
2. **Conditions:**
   - The animal or chattel must be on the land unlawfully and actually causing damage.
   - The right must be exercised while the thing is still on the land.
   - The thing may only be detained, not used or sold.
3. **India:** for straying cattle, the **Cattle Trespass Act, 1871** allows cattle damaging crops or land to be seized and sent to a cattle pound, from which the owner may recover them on payment of fines and charges.
4. **England:** the remedy for animals was replaced by statute (Animals Act, 1971).

5. Abatement of Nuisance

1. **Meaning:** the injured person may remove a nuisance himself, e.g. cutting branches or roots of a neighbour's tree that extend onto his land.
2. **Conditions:**
   - The force used must be reasonable, and no unnecessary damage must be caused.
   - Notice should generally be given to the wrongdoer before entering his land, except in emergencies.
   - The remedy should be used promptly; the courts prefer that legal remedies be sought for serious matters.
   - Overhanging branches and fruit remain the property of the tree owner, and the plaintiff must not keep them (*Mills v Brooker*, 1919).
3. The syllabus refers to this as "abetment of nuisance"; the correct term in the law of torts is **abatement** (removal) of nuisance.

Flowchart: Remedies in tort



Examples

- A negligently injures B in a road accident. B is awarded special damages for medical bills of Rs. 2 lakh and general damages for pain and suffering of Rs. 3 lakh.
- A's neighbour's tree branches overhang A's roof and damage his tiles. A may cut the overhanging branches (abatement), but must return them to the neighbour.
- A's goats stray into B's field and eat his crops. B may seize them and deliver them to the cattle pound under the Cattle Trespass Act, 1871.

Case Laws

Case Law: Rookes v Barnard

Year: 1964 **Court:** House of Lords (UK)

Facts / Background: The plaintiff, a draughtsman, resigned from his trade union. The union officials threatened his employer, BOAC, with a strike unless he was dismissed, and he was dismissed. He sued the union officials for the tort of intimidation and claimed exemplary damages.

Legal Issue: When can exemplary (punitive) damages be awarded in tort?

Court's Decision / What the Court Held: The House of Lords held that the union officials were liable for intimidation. Lord Devlin held that exemplary damages can be awarded only in three categories: oppressive, arbitrary or unconstitutional action by servants of the government; conduct calculated to make a profit exceeding the compensation payable; and cases where statute expressly authorises them.

Relevance to the Topic: The leading case on **exemplary damages**.

Case Law: Re Polemis and Furness, Withy & Co Ltd

Year: 1921 **Court:** Court of Appeal (England)

Facts / Background: The defendants chartered the plaintiffs' ship and loaded it with tins of benzine (petrol). While the ship was being unloaded, a stevedore employed by the defendants negligently dropped a plank into the hold. The plank struck something and caused a spark, which ignited the petrol vapour, and the ship was destroyed by fire.

Legal Issue: Are the defendants liable for the destruction of the ship by fire, which was not a foreseeable result of dropping a plank?

Court's Decision / What the Court Held: The Court held the defendants liable for all the direct consequences of the negligent act, even though the fire was not foreseeable. Some damage (to the ship) was foreseeable from dropping a plank, and the fire was a direct result.

Relevance to the Topic: The **test of directness** for remoteness of damage.

Case Law: Overseas Tankship (UK) Ltd v Morts Dock and Engineering Co Ltd (The Wagon Mound No. 1)

Year: 1961 **Court:** Privy Council (on appeal from New South Wales)

Facts / Background: The defendants' ship, the Wagon Mound, negligently discharged a large quantity of furnace oil into Sydney Harbour. The oil spread to the plaintiffs' wharf, where welding work was going on. The plaintiffs were advised that the oil could not be ignited on water, and continued welding. Molten metal fell on cotton waste floating in the oil, which ignited the oil, and the wharf was destroyed by fire.

Legal Issue: Are the defendants liable for the fire damage, which was not reasonably foreseeable?

Court's Decision / What the Court Held: The Privy Council held that the defendants were not liable for the fire damage, because the damage by fire was not reasonably foreseeable (it was foreseeable only that the oil would foul the wharf). It rejected the directness test of *Re Polemis* and adopted the test of **reasonable foreseeability**.

Relevance to the Topic: The **foreseeability test** for remoteness of damage.

Case Law: Hughes v Lord Advocate

Year: 1963 **Court:** House of Lords (UK)

Facts / Background: Post Office workers left an open manhole in a street, covered by a tent and surrounded by paraffin lamps, unattended. Two boys entered the tent, and one of them knocked a lamp into the manhole. The paraffin vapour exploded unexpectedly, and the boy fell into the manhole and suffered serious burns.

Legal Issue: Are the defendants liable when the kind of injury (burns) was foreseeable, but the manner in which it occurred (explosion) was not?

Court's Decision / What the Court Held: The House of Lords held the defendants liable, because burns from the lamp were a foreseeable kind of injury, and it did not matter that the injury occurred in an unforeseeable way or to an unforeseeable extent.

Relevance to the Topic: Only the **kind of damage** must be foreseeable, not the precise manner or extent.

Case Law: Smith v Leech Brain & Co Ltd

Year: 1962 **Court:** Queen's Bench Division (England)

Facts / Background: Due to the employers' negligence, a piece of molten metal splashed and burnt the lip of a workman. The burn activated a pre-cancerous condition, and he developed cancer and died three years later.

Legal Issue: Are the employers liable for the death, which was caused by the workman's pre-existing condition?

Court's Decision / What the Court Held: The Court held the employers liable for the full consequences, including the death, applying the **thin skull rule**: the defendant must take the

plaintiff as he finds him. The burn was a foreseeable kind of injury, and the employer was liable for its full extent.

Relevance to the Topic: The **thin skull (eggshell skull) rule**.

Important Points

- Judicial remedies: damages, injunction, specific restitution.
- Kinds of damages: nominal, contemptuous, compensatory, general, special, aggravated, exemplary, prospective.
- Exemplary damages: three categories (*Rookes v Barnard*, 1964); more freely awarded in India.
- Remoteness: directness (*Re Polemis*, 1921) replaced by foreseeability (*Wagon Mound*, 1961); kind of damage (*Hughes*); thin skull (*Smith v Leech Brain*).
- Injunctions: Specific Relief Act, ss.36–42; Order XXXIX CPC.
- Specific restitution: ss.5–8, Specific Relief Act.
- Extra-legal remedies: self-help, re-entry, recaption, distress damage feasant (Cattle Trespass Act, 1871), abatement of nuisance (reasonable force only).

Remember: The syllabus term "abetment of nuisance" refers to the remedy of **abatement** (removal) of nuisance.

References / Bibliography

Statutes

- The Limitation Act, 1963 (Schedule, Articles 72–91 and 113).
- The Legal Representatives' Suits Act, 1855.
- The Indian Succession Act, 1925 (s.306).
- The Fatal Accidents Act, 1855.
- The Specific Relief Act, 1963 (ss.5–8, 36–42).
- The Consumer Protection Act, 2019 (Chapter VI: Product Liability).
- The Carriage by Road Act, 2007 and the Carriers Act, 1865 (repealed by the 2007 Act).
- The Public Liability Insurance Act, 1991.
- The National Green Tribunal Act, 2010.
- The Bharatiya Nyaya Sanhita, 2023 (criminal counterparts of torts).
- The Constitution of India (Arts 21, 32, 105, 194, 226, 300).

Prescribed and Reference Books (as in the syllabus)

- Ratanlal and Dhirajlal, The Law of Torts (LexisNexis).
- P.S. Achuthan Pillai, The Law of Torts.
- Salmond and Heuston, On the Law of Torts (Sweet & Maxwell).
- Avtar Singh, Introduction to the Law of Torts (Eastern Book Company / LexisNexis).

Note on Case Laws

- Cases are cited with the court and year of judgment. English cases are included because the Indian law of torts is largely based on English common law, applied by Indian courts on the principle of justice, equity and good conscience. Where a factual detail is not certain, the notes say so rather than guess. Students should read the full judgments of the leading cases, especially Donoghue v Stevenson (1932), Rylands v Fletcher (1868), M.C. Mehta v Union of India (1987), Kasturilal v State of UP (1965) and Nilabati Behera v State of Orissa (1993).